

BLACKWOOD'S
Edinburgh
MAGAZINE.

VOL. LXIII.

JANUARY—JUNE, 1848.



WILLIAM BLACKWOOD & SONS, EDINBURGH;

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Title: Blackwood's Edinburgh Magazine, Volume 63, No. 387, January, 1848

Author: Various

Release date: February 28, 2019 [eBook #58979]

Language: English

Other information and formats: www.gutenberg.org/ebooks/58979

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EDINBURGH:

WILLIAM BLACKWOOD AND SONS, 45, GEORGE STREET;
AND 37, PATERNOSTER ROW, LONDON.

To whom all Communications (post paid) must be addressed.

SOLD BY ALL THE BOOKSELLERS IN THE UNITED KINGDOM.

PRINTED BY WILLIAM BLACKWOOD AND SONS, EDINBURGH.

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THIRTY YEARS OF LIBERAL LEGISLATION.

"EXPERIENCE," says Dr Johnson, "is the great test of truth, and is perpetually contradicting the theories of men." "If an empire," said Napoleon, "were made of granite, it would soon be reduced to powder by political economists." Never was there a period when the truths stated by these master minds were so clearly and strikingly illustrated as the present; never was there an epoch when the necessity was so fearfully evinced of casting off the speculative dogmas of former times, and shaping our course by the broad light which experience has thrown on human transactions. If this is done, if wisdom is learnt by experience, and error expelled by suffering, it is yet possible to remedy the evils; though not before a frightful and yet *unfelt* amount of misery has been encountered by the people.

For the last thirty years, the liberal party have had the almost uncontrolled direction of the affairs of the nation. One by one, they have beat down all the ancient safeguards of British industry, and given effect to the whole theoretical doctrines of the political economists. So complete has been their ascendancy in the national councils—so entire in general the acquiescence of the nation in their direction, that without one single exception ALL their doctrines have been carried into practice; and the year 1847 exhibits a fair, and it may be presumed average result of the liberal system when reduced into execution. The result is so curious, its lessons so pregnant with instruction, its warning of coming disaster so terrible, that we gladly avail ourselves of the opening of a new year, to portray them in a few paragraphs to our readers.

The first great change which took place in British policy was in 1819, by the famous Bank Restriction Act, passed in that year. Everyone knows that the obligation on the Bank of England to pay in specie, was suspended by Mr Pitt in February 1797; and that under that system the empire continued to rise with all the difficulties with which it was surrounded, until in the latter years of the war it bore without difficulty an annual expenditure of from £110,000,000 to £120,000,000 annually. But under the new system introduced in 1819, the currency was restricted by imposing on the bank the

obligation of paying its notes, when presented, not in gold *or silver*, but in GOLD ALONE. The currency was based on the article in commerce *most difficult to keep*, most easy of transport, most ready to slip away—the most precious of the precious metals. The result has been that the nation,—which, with a population of 18,000,000 of souls, raised without difficulty £71,000,000 annually by taxes, and from £30,000,000 to £40,000,000 annually by loans in 1813, 1814, and 1815, of which at least a half was sent abroad, and wholly lost to the nation—is now, with a population of 28,000,000, not able to raise in round numbers above £51,000,000 on an average of years by taxation, and is brought to the verge of ruin by the purchase of £33,000,000 worth of foreign grain in 1846 and 1847, and the expenditure of £35,000,000 in 1846, and £25,000,000 in the first six months of 1847 on domestic railways, every shilling of which last sum was spent at home, and puts in motion industry within the nation.

The next great change was made in the year 1821, when the reciprocity system was introduced by Mr Huskisson. This subject has acquired great importance now, from the avowed intention on the part of government, scarcely disguised in the opening speech of this session of Parliament, to follow up the labours of the committee which made such laborious inquiries last session, by a bill for the total abolition of the Navigation Laws. We shall not enlarge on this subject, the vastness and importance of which would require a separate paper. Suffice it to say, therefore, that here too, experience has decisively warned us of the pernicious tendency of the path on which we have entered, and of the truth of Adam Smith's remark, that "though some of the regulations of this famous act may have proceeded from national animosity, they *are all as wise as if dictated by the most deliberate wisdom*. As defence is of much more importance than opulence, the act of Navigation is perhaps the wisest of all the commercial regulations of England."^[1] It appears from the parliamentary tables compiled by Mr Porter, that, while the British tonnage with the Baltic powers had increased from 1801 to 1821, under the protective system, to a very considerable degree, theirs with us had declined during the same period; under the reciprocity system, our tonnage with them had on the whole decreased to *a third* of its former amount, while their shipping with us had, during the same period, quadrupled.^[2] It further appears, from the same tables, that the great increase which has taken place during the same period, has arisen

from the prodigious growth of our colonial trade, or increase of the countries with whom we had concluded *no* reciprocity treaties, but left them on the footing of the protection of the old Navigation Laws. And though the profits of shipping of all sorts have received a vast addition, from the enormous importations consequent upon Sir R. Peel's free-trade measures, yet the returns of these years prove that the greater part of this increase has accrued to foreign states and powers, which may at any time turn the maritime resources thus acquired against ourselves. Suffice it to say, as an example of this truth, that of the ships which, in 1846, imported four million nine hundred thousand quarters of corn into the British harbours, no less than three-fourths were foreign vessels, and only one-fourth British. Nevertheless, so insensible are political fanatics to the most decisive facts, when they militate against their favourite theories, that it is in the full knowledge of these facts that government are understood to be prepared to introduce, even in this session of parliament, a measure for the abolition, or at least the essential abrogation, of the Navigation Laws.

The third great change made during the last quarter of a century has been in the government of Ireland. Here, if any where, the liberal system has received its full development, and has had the fairest opportunity for displaying its unmixed blessings. The Catholic disabilities, which we had been told for thirty years were the main cause of its distressed condition, were repealed in 1829. A large measure of parliamentary reform—larger than the most vehement Irish patriots ventured to dream of—was conceded in 1832. Corporate reform succeeded in 1834; the Protestant corporations were dispossessed of power; the entire management of all the boroughs of the kingdom was put into the hands of the Romish multitude; and a large portion of the county magistracy were, by the appointment of successive liberal Lords Chancellor, drawn from the better part of those of the same religious persuasion. The Protestant clergy were deprived of a fourth of their incomes to appease the Romish Cerberus; and, to avoid the vexation of collecting tithes from persons of a different religious belief, they were laid directly as a burden on the land; Maynooth was supported by annual grants from government; the system of national education was modified so as to please the Roman Catholic clergy. Monster meetings, where sedition was always, treason often, spoken, headed by O'Connell, were allowed to go on, without the slightest opposition, for two years; and when at length the evil had risen to such a height that it could no longer be endured, the leading

agitator, after being convicted in Ireland, was liberated, in opposition to the opinion of a great majority of the twelve judges, by the casting-vote in the House of Peers of a Whig law-Lord. British liberality, when the season of distress came, was extended to the famishing Irish with unheard-of munificence; and while the Highlanders, who suffered equally under the potato failure, *got nothing* but from the never-failing kindness of British charity, Ireland, besides its full share of that charity, received a *national* grant of TEN MILLIONS STERLING, of which no less than eight millions were borrowed by Great Britain.

What have been the results? Has crime decreased, and industry improved, and civilisation advanced, under the liberal system? Has attachment to the British government become universal, and hatred of the stranger worn out, in consequence of the leniency with which they have been treated, and the unparalleled generosity with which their wants have been supplied? The facts are notoriously and painfully the reverse. Hatred of the Saxon was never so general or so vehement; idleness and recklessness were never so wide-spread; destitution was never so universal; life and property was never so insecure,—as after this long system of concession, and these unparalleled acts of private and public generosity. The Irish Repealers declare, that though Ireland, like England, has been blessed with an uncommonly fine harvest, there are *four millions* of persons in that country in a state of hopeless misery; and supposing, as is probably the case, that this statement is exaggerated, the authentic reports to Parliament on the state of the poor prove that there are above two millions of paupers, or a full fourth of the population, in a state verging on starvation. A new so-called Coercion Bill has been brought into Parliament in consequence of the great increase of crimes of violence, and, above all, of cold-blooded murders; and on the necessity that existed for its introduction the present Secretary of State must speak for himself. Sir George Grey said, on November 30, 1847, on moving the first reading of the Coercion Bill, that during the six months ending October 1846, the heinous crimes of violence over Ireland stood as follows:—

"Homicide,	68
Attempts upon life by firing at the person,	55
Robberies of arms,	207
Firing into dwelling-houses,	51

For the six months ending October 1847, the number increased to—

Homicides,	96
Attempts upon life by firing at the person,	126
Robberies of arms,	530
Firing into dwelling-houses,	116

It would thus be seen that there was a fearful increase in the amount of these four classes of crime. The whole of Ireland was implicated in the shame and disgrace consequent upon this large increase of crime. Looking at the police returns for the month of October, (for from that period it was that those crimes commenced to increase at such a fearful rate,) he found the following results for the whole of Ireland:—

Homicides,	19
Firing at the person,	32
Firing into dwelling-houses,	26
Robberies of arms,	118
	—
Making a total of cases,	195

Looking at the districts in which these crimes were committed, he found that the total number of all those crimes committed in three of the counties of Ireland, *i.e.*, Clare, Limerick, and Tipperary, was to the whole of Ireland as 139 to 175, or that 71 per cent of the whole amount of crime was committed in those three counties, which did not include more than 13 per cent of all Ireland."

Such has been the result of liberal government during twenty years in Ireland. And it is particularly worthy of notice, that the three counties in which this unenviable pre-eminence of atrocious crime exists, *viz.*, Clare, Limerick, and Tipperary, are precisely those in which the Romish faith is most inveterate, and the authority of the priesthood most unbounded.

The next great change introduced by the liberal party, was by the carrying through of the Reform Bill, and settling the constitution upon an entirely new basis by the act of 1832. We do not propose at present to resume any

part of that great debate, in which at the time this Magazine took so prominent a part. We have seen no cause to change any of the opinions then expressed, and only pray God that the predictions then made may not be too faithfully verified. As little shall we inquire whether the changes which have since ensued, and under which the nation is now so grievously labouring, are or are not to be ascribed to the constitution of government as then framed, and the urban ascendancy which the bestowing of two-thirds of the seats in the House of Commons upon towns necessarily occasioned; we are content to accept the constitution, as new-modelled by the Reform Bill, as the constitution of ourselves and our children, and to support it as such. We know that by it the government of the country is substantially vested in the majority of eight hundred thousand electors. We aim only at explaining facts and dispelling illusions to these electors. Suffice it to say, therefore, that, whether the Reform Bill has worked for good or for evil as regards the industrious classes; whether it has substituted or not substituted moneyed for landed ascendancy; whether or not the first devil has been expelled, but straightway he has returned with seven other devils worse than himself, and the last state of the man is worse than the first—in any of these cases the liberal party have got nothing to say, and have no title to complain of the results which have followed. They got every thing their own way; they remodelled the constitution according to the devices of their own hearts, and if they are now suffering, they are reaping the fruits of the seed which they themselves have sown.

But of all the innovations of the liberal party, that of which the consequences have been most disastrous within the sphere of their immediate influence, and which have now been demonstrated in the most decisive way by the results of experience, are the changes they have made on our West India colonies. They exhibit a series of alterations so perilous, so irrational, so disastrous, that we do not hesitate to say they are unparalleled in the annals, extensive as they are, of human folly and perversity. Only think what they were!

We first, in 1807, abolished the slave trade in our dominions. So far there can be no doubt that the step taken was both just and expedient—just, because the iniquitous traffic in human flesh should, at all hazards, be stopped in a Christian state; expedient, because we already possessed, in the colonies themselves, a large negro population, perfectly capable, if well

treated, of keeping up and increasing their own numbers, and performing all the field operations requisite for the cultivation of produce, which at that period employed two hundred and fifty thousand tons of British shipping for its transport, and maintained a population that consumed £3,500,000 worth of British manufactures. But as the British colonies were thus deprived of the aid of imported forced labour, which the rival sugar colonies of Cuba and the Brazils enjoyed, of course it was indispensable that the labour of the black cultivators in the British islands should be perpetuated, and the proprietors maintained in the means of getting that work from *them* which they were prohibited from acquiring from foreign labourers. The way to do this, and withal to give the greatest possible security and means of improvement to the black population of which they were susceptible, was evident, and was clearly and forcibly pointed out at the time. It was to maintain slavery in the meantime, doing every thing possible to mitigate its severity, till the negro population had come so much under the influence of artificial wants as to be ready, for their enjoyment, to submit to regular and continuous toil; to regulate their days of forced labour, and give them some days in the week to work for themselves, of which they might reap the fruits; and to allow every negro, who could thus amass a sum equal to his price, to purchase his freedom from his master. By this simple system, no one could become free without having proved himself fit to be a freeman, and therefore the whole evils of premature emancipation were avoided. It was thus that slavery wore out almost without being noticed in the European kingdoms; it was thus it almost disappeared, insensibly and without a convulsion, in Spanish South America.

Instead of this wise, judicious, and really humane course, what have we done? Why, we first, by the act of 1834, abolished slavery altogether in the British dominions, upon giving a compensation to the proprietors, which, large as it was, was not, on an average, the fourth part of the value of the slave population set free, at the expiration of a prospective apprenticeship of seven years; and at the end of four years, deeming that first time too long, we set them free altogether! We thought, in our wisdom, that a nation required no longer time to serve the apprenticeship to freedom than a freeman did to become expert in a trade. We proposed to do in a few years what nature could only accomplish in centuries. The consequences, so often and so fatally predicted, immediately ensued. The emancipated black population either refused to work, or did so at such high wages, and in so

desultory a manner, that the supply of sugar rapidly declined in the British islands. It, in consequence, rose considerably in price in the mother country; and upon that, partly under the influence of the free trade mania, partly from a desire to appease the clamorous multitude in the British towns, who had begun to feel, in the enhanced price of that article, the inevitable consequences of their own actions, we did a thing so unjust, so monstrous, so cruel, so inconsistent with all our former professions, that we believe the annals of the world may be searched in vain for its parallel. It was this:—

We first reduced to a half of its former amount the protective duty on foreign slave-grown sugar, and then, by the act of 1846, in pursuance of Sir R. Peel's principles, and with his approbation, passed an act for the progressive reduction, during three years, of the duties on foreign sugar, until, in 1849, those on foreign and colonial were to become equal to each other! That is, having first deprived our own colonies of their slave labour for less than a fourth of its value, we proceeded to admit foreign sugar RAISED BY SLAVES to the supply of the British markets, on terms which in two years will be those of perfect equality. We have seen what came of the attempt in the Mauritius, to compete with slave-labour by means of the labour of freemen. Even though the attempt was made under the most favourable auspices, with the colossal capital of Reid, Irving, and Company, and an ample supply of hill coolies to carry it on, the immense wealth of that house was swallowed up in the hopeless attempt, and it became bankrupt in consequence. Experience had long ago proved in St Domingo that the black population, when not compelled, will not raise sugar; for that noble island, which, anterior to the emancipation of its slaves by the Constituent Assembly of France, raised and exported 672,000,000 pounds of sugar, now *does not export a single pound*; and instead of consuming as then £9,890,000 worth of French manufactures, does *not import a single article*.^[3] To provide against this evidently approaching crisis in the supply of sugar for the British market, we have thrown open our harbours to *slave-grown sugar* from every quarter of the globe; and from the rapid decline in the produce of the West Indian islands, even before this last *coup-de-grace* was given them by the application of free trade, principles to their produce, it is painfully evident that a result precisely similar is about to take place in the British colonies.^[4] And it is little consolation to find that this injustice has recoiled upon the heads of the nation which perpetrated it, and that the

decline in the consumption of British manufactures by the West India islands is becoming proportioned to the ruin we have inflicted on them.^[5]

But most of all has this concatenation of fanaticism, infatuation, and injustice proved pernicious to the negro race, for whose benefit the changes were all undertaken. Happy would it have been for them if the British slave trade had never been abolished; that they had crossed the Atlantic chiefly in Liverpool or Glasgow slave-ships, and been brought to the British West India islands! For then the slave trade was subject to our direction, and regulations might have been adopted to place it on the best possible footing for its unhappy victims. But *now* we have thrown it entirely into the hands of the Spaniards and Portuguese, over whom we have no sort of control, and who exercise it in so frightful a manner that the heart absolutely sickens at the thought of the amount of human suffering, at the cost of which we have reduced the price of sugar to sixpence a pound. Compared with it, the English slave-ships and English slavery were an earthly paradise. Mr Buxton, the great anti-slavery advocate, admitted, some years ago, that the "number of blacks who now annually cross the Atlantic, is *double what it was* when Wilberforce and Clarkson first began their benevolent labours."^[6] Now, under the fostering influence of free trade in sugar, it may reasonably be expected that in a few years *the whole*, or nearly the whole sugar consumed by Europe, will be raised by the slave colonies, and wrung by the lash from the most wretched species of slaves—those of Cuba and Brazil! Moreover, the slave trade, to supply them, will be *triple* what it was in 1789, when the movement in favour of the negro population began! Thus, by the combined effects of fanaticism, ignorance, presumption, and free trade, we shall have succeeded, by the middle of this century, in totally destroying our own sugar colonies; adding, to no purpose, twenty millions to our national debt; annihilating property to the amount of £130,000,000 in our own dominions; doubling the produce of foreign slave possessions; cutting off a market of £3,500,000 a-year for our manufactures: and tripling the slave trade in extent, and quadrupling it in horror, throughout the globe.

Grave and serious matter for consideration as these results afford, all of which, be it observed, are *now ascertained by experience*—they yet sink into comparative insignificance compared with the gigantic measures of "free trade and a fettered currency," which have now spread ruin and desolation through the heart of the empire. It is here that the evil now

pressing is to be found; it is from hence that the cry of agony, which now resounds through the empire, has sprung. And unless a remedy is applied, and *speedily applied*, to the enormous evils which have arisen from the reckless and *simultaneous* adoption of these powerful engines on human affairs, it may safely be affirmed that the present distress will go on, with slight variations, from bad to worse, till the empire is destroyed, and three-fourths of its inhabitants are reduced to ruin. These are strong expressions, we know; but if they are so, it is from the testimony of the government, and the ablest advocates for the free trade and bullion system, and the facts which we see around us, that we are reluctantly compelled, not only to use them, but to believe they are true. Hear what the *Times* says, on the aspect of national monetary and commercial affairs:—

"In our wide sea of difficulties, therefore, we are without rudder or compass. We cannot base our proceedings on a calculation that the Bank Charter Act will be carried out; nor can we, on the other hand, assume that an inconvertible currency will be authorised, and thus frame our future contracts accordingly. All that we can discern before us is declining trade and grinding poverty, bankrupt railways, and increased taxation; but whether the lesson will be prolonged in its bitterness, and its salutary effect retarded by measures of national dishonour, is a point upon which it would be vain to prophesy. *Three years back an indignant negative might have been given to such a conjecture, but since then demoralisation has been rapid*, and time alone can determine if, by the deliberate proceedings of the legislature, the record of it is destined to become indelible."—*Times*, 26th November 1847.

This is tolerably strong evidence from the leading and ablest free trade and bullionist journal. Strong indeed must have been the testimony of facts around them, when the well-informed and powerful writers in the *Times* put forth such admissions as to the state of the country. Observe, the emphatic words wrung by woful experience from this journal. "Three years back an indignant negative would have been given to such conjectures; but SINCE THEN the progress of demoralisation has been rapid." Sir R. Peel's Bank Act was passed in 1844, and his free trade measures in 1846. And be it observed that that state arose *entirely under their own system*; at a time

when the Bank charter stood unchanged, and free trade, the grand panacea for all evils, was, and had been in a great degree, for years, in full and unrestrained operation. We shall see anon whether the Irish famine and English railways had any thing material to do with the matter. Strong as it is, however, this testimony is increased by the real evidence of facts in every direction, and of the acts and admissions of government. These are of such a kind as a few years ago would have passed for fabulous. They have outstripped the most gloomy predictions of the most gloomy of the Protectionists; they have out-Heroded Herod in the demonstration of the perilous tendency of the path we have so long been pursuing. They could not have been credited, if not supported by the evidence of our own senses, and the statements of ministers of high character, from undoubted and authentic sources of information. We subjoin a few of them, of universal and painful notoriety to every inhabitant of the empire at this time; not in the belief that we, in so doing, can add any facts not previously familiar to the nation, but in order that these facts, now so well known, should get into a more durable record than the daily journals, and not pass for fabulous in future, and it is to be hoped, happier times.

The first is, that the interest of money has, by the recommendation, and indeed express injunction of government, been raised to *eight percent*. This grievous and most calamitous effect, which was never heard of during the darkest period of the Revolutionary war, which did not ensue even at the time of the Mutiny of the Nore, or the suspension of cash payments in 1797, [7] has been publicly announced to the nation, in the Premier's and Chancellor of the Exchequer's Letter to the Directors. It is well known that, high as this rate of interest was, it was *less* than had been previously taken by private bankers, which had risen to nine, ten, and even fourteen or fifteen *per cent*. for short periods. These are the rates of interest which, anterior to their conquest by the British government, were common amidst Asiatic oppression in the distracted realm of Hindostan. They had not been so high in England before for a century and a quarter. It was reserved for Great Britain, in the middle of the nineteenth century, to render universal, by the effects of domestic legislation, at the end of thirty years' peace, and when in a state of entire amity with all the world, a rate of interest unknown for a century before in the British empire; which could previously be hardly credited as having existed, even in the days of feudal barbarity; and which had latterly been known only amidst the predatory warfare, fierce

devastations, and universal hoarding of specie, under the native powers of Hindostan.

In the next place, the public revenue for the quarter ending 1st October, 1847, is £1,500,000 less than it was in the corresponding quarter of the preceding year, which itself was below the corresponding quarter in 1845. Here then is an ascertained falling off of £1,500,000 a quarter, or SIX MILLIONS A-YEAR, in a revenue not exceeding £52,000,000 of net income, and of which upwards of a half is absorbed in paying the dividends on the public debt. There is no reason to hope for an amendment in the next or the succeeding quarter; happy if there is not a still greater falling off. This is, be it observed, in the thirty-second year of peace, when in amity with all the world, and when the war income-tax, producing £5,200,000 a-year, is added to the national income! But for that grinding war-addition, laid on to meet the disasters of the Affghanistaun expedition, and kept on to conceal the deficiency of income produced by Sir R. Peel's free trade measures, the deficiency *would be above £11,000,000 a-year*. And this occurs just after a proper and suitable thanksgiving for an uncommonly fine harvest; when all the world is at peace; five years after Sir R. Peel's tariff in 1842, which was to add so much to our foreign trade; three years after the act of 1844, which was to impose the requisite checks on imprudent speculation; and eighteen months after the adoption of general free trade, and the abolition of the corn laws by the act of July 1846, by which the commerce and revenue of the country were to be so much improved!

In the third place, nearly the whole railways in progress in the United Kingdom have been stopped, or are to be in a few days, in consequence partly of this exorbitant rate of interest, partly of the impossibility of getting money even on these monstrous and hitherto unheard-of terms. It is calculated that three hundred thousand labourers, embracing with their families little short of a million of persons, have been from this cause suddenly thrown out of work, and deprived of bread. Already the effects of this grievous and sudden stoppage are apparent in the metropolis, Manchester, Liverpool, Glasgow, and other great cities, in the groups, at once pitiable and alarming, of rude and uncouth, but sturdy and formidable labourers, who are seen congregating at the corners of the principal streets. But if this is the effect of the sudden stoppage on the mere navigators, the hod and barrow-men, what must it be on the vast multitude of mechanics

and iron workmen, thrown idle from the inability of the railway companies, at present, at least, to go on with their contracts? So dreadful has been the effects of this stoppage in Lanarkshire and Ayrshire, the two principal iron districts of Scotland, that before these pages issue from the press, forty thousand persons in the former county, and thirty thousand in the latter, including the families of the workmen, will be out of employment in the iron and coal trades alone! The greater part of this immense and destitute mass will fall on Glasgow, where already half the mills are stopped or on short time, and in which city, since the beginning of the year, no less than 49,993 Irish^[8] have landed, nine-tenths of whom were in the last stage of destitution, and no inconsiderable part bringing with them the contagion of typhus fever.

In the fourth place, the great marts of manufacturing industry, both for the home and the export trade, are in nearly as deplorable a condition as the iron trade; and the multitude who will be out of bread in them is not less appalling than in the railway and iron departments. As a specimen of the condition to which they have been brought by the combined operation of free trade and a fettered currency, we subjoin the weekly return of the state of trade in Manchester for the week ending November 23. It is well known that this return is made up under the direction of the admirable police of that city, with the utmost accuracy.

Weekly return made up to yesterday, (November 23), in the improved form, of the state of the various cotton, silk, and worsted mills, and other large establishments and works in Manchester:—

Description of Mills, Factories, &c.	Full Time								
	(a)	(b)	(c)	(d)	(e)	(f)	(g)	(h)	(i)
Cotton Mills,	91	44	10	21	16	28,033	15,060	6,079	6,894
Silk Mills,	8	2	...	6	...	3,009	621	2,138	250
Smallware Mills,	18	11	3	3	1	1,937	1,232	601	104
Worsted Mills,	2	2	...	...	...	155	155	...	...
Dye Works,	20	3	...	17	...	1,675	470	862	403
Hat Manufactures,	2	...	1	1	...	107	7	49	51
Mechanists,	32	7	10	12	3	6,079	2,777	1,615	1,687

Totals,	173	69	24	60	20	40,995	20,322	11,284	9,389
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Key:

- (a) Total No. of Mills, Works, &c.
- (b) No. working full time, with full complement of hands.
- (c) No. working full time with a portion only of hands employed.
- (d) Short Time.
- (e) Stopped.
- (f) Total No. of hands.
- (g) No. working full time.
- (h) No. working short time.
- (i) No. wholly out of employment.

From this Table it appears that out of 40,995 workers employed in the factories of Manchester, 11,284 are working short time, and no less than 9,389 are *wholly out of employment*. This last class, with their families, cannot embrace less, at the lowest computation, than thirty thousand souls, who are entirely destitute. The state of matters in Glasgow is at least as bad; about half of the mills there are shut, or working short time. And this is the condition of our manufactures, we repeat, in the thirty-second year of profound peace, when we are engaged in no foreign war whatever; when, so far from being distressed for the ordinary supply of subsistence, we have just returned thanks to heaven for the finest harvest reaped in the memory of man; and when, under the combined operation of home produce and an immense foreign importation, wheat is selling for 52s. the quarter; three years after the imposing of the golden fetters which were for ever to preclude improvident speculation; and a year and a half after the adoption of the free trade principles, which were to open up new and unheard-of sources of manufacturing prosperity.

In the fifth place, if the general state of our exports, and of the importation of the raw material, from which they are prepared, is considered, it will not appear surprising that the principal marts of manufacturing industry should be in so deplorable a situation. The declared value of the exports of our manufactures, for nine months, ending October 10, in each of the following years, have stood thus, according to Lord John Russell's statement:—

1845.	1846.	1847.
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First nine months of year, £41,732,143 £40,008,874 £39,975,207

Single month of October, 5,323,553 5,477,389 4,665,409^[9]

This decline is of itself sufficiently alarming, the more especially when coming in the wake of the great free trade change, from which so great an extension of our exports was predicted. Here is a decline of exports in two years of three millions, which in last October had swelled to a decrease of NEARLY A MILLION in a single month. But from the following Table it appears that this falling off, considerable as it is, exhibits but a small portion of the general decline of manufacturing industry in the nation; and that the stoppage of industry for the home market is much more serious.

RAW MATERIAL IMPORTED, JAN. 5 TO OCT. 10.

	1845.	1846.	1847.
Flax, cwt.,	1,048,390	744,861	732,034
Hemp,	624,866	588,034	465,220
Silk, raw, lbs.	2,865,605	3,429,260	3,051,015
Do. thrown,	311,413	293,402	200,719
Do. Waste, cwt.	11,288	6,173	7,279
Cotton Wool, cwt.	5,495,799	3,866,089	3,423,061
Sheep's Wool, lbs.	57,308,477	51,058,209	43,348,336

This Table exhibits an alarming decline in the importation of all the materials for our staple manufactures, except raw silk, which has considerably increased. That increase has not arisen from any increased sale of articles of clothing, viewed as a whole, in the nation since 1845, but solely from the great extent to which, since that time, the fashion of ladies' dress has run in favour of silk attire. And, accordingly, the decline in wool and cotton imported is so very considerable, that it amounts, since 1845, to fully a fourth. We are aware how much the price of cotton rose in 1845; but it has since rapidly declined; and yet, even at the present low prices, Lord George Bentinck stated in his place in the House of Commons, in the course of the debate on bringing up the address in this session of Parliament, without contradiction from the practical men there, that so miserable were the prices of export markets just now, that cotton manufactured goods were exported cheaper than the raw material from which they are formed could be imported to this country.

It is a poor set-off to these facts demonstrating the declining state of our foreign manufactures, to say that the exportation of iron and machinery has greatly increased during the same years, and that we have imported enormously all kinds of foreign subsistence.^[10] So it has been; but what does that indicate? The first, that foreigners, under our liberal system of free trade, even in the articles vital to our manufacturing wealth, are largely importing the machinery which is to enable them to rival our staple manufacturing fabrics; and the iron rails which are to give them the means of bringing their establishments, for practical purposes, nearer each other, and compensating the immense advantages we have hitherto derived from the narrowness and compact nature of our territory, and our insular and highly favourable maritime situation. The last, which undoubtedly has risen in so short a time to a height which the most decided and gloomy Protectionist never ventured to anticipate,^[11] only demonstrates that free trade is even more rapidly than was anticipated by its opponents, working out the downfall of our agricultural industry, and reducing us to the pitiable condition of the Roman empire, when, instead as of old sending supplies of provisions to the legions from Italy into distant provinces, they were entirely fed by them, and the life of the Roman people was committed to the chances of the winds and the waves.

In the sixth place, the depreciation of property and ruin to individuals which has ensued and is going on from the present crisis, is so prodigious, that the mind can scarcely apprehend it, even by the aid of the most ardent imagination. Not to mention the extreme embarrassment to merchants which must ensue from the present extravagant rate of interest and discount, and which must in most branches of commerce *entirely absorb the profits of stock for this year*—not to mention the vast number of the most respectable houses which have sunk under the pressure of the times—not to mention the prodigious burden imposed on landed proprietors and debtors in mortgages and bonds on personal security, by the general rise of interest to five per cent. and often above that sum, from three and a half or four *per cent*—let us endeavour to estimate, on something approaching to authentic data, the depreciation and destruction of property which had taken place even so early as 26th October last, when Government most properly stepped in to arrest the ruinous effects of Sir Robert Peel's currency bill of 1844.

We estimate the National Debt, funded and unfunded, in round numbers at £800,000,000; the railway property, which now produces a revenue of above £9,000,000 a-year, of which half is profit, at £100,000,000;^[12] bank and other joint stock at as much; and the capital embarked in commerce and manufactures at £500,000,000. Thus, the loss on the moveable property of Great Britain by the present crisis, may be estimated as follows:—The three per cents. in August, 1845, were at £100-7/8, and for a considerable time were about 100: when Lord John Russell stepped in by his letter of 26th October, 1847, to arrest the consequences of Sir Robert Peel's bill of 1844, they were at 79; and the effect of that partial remedy, even with the bank advances for a month after at eight per cent., has been to raise them to 85. The depreciation of funded property, till the Act of 1844 was broken through, had been in two years from 100 to 80, or a fifth. Take the depreciation of all other moveable property engaged in fluctuating employments, on an average at the *same amount and no more*. We need not say how this understates the matter. How happy would a large part of the railway stockholders, merchants, and manufacturers of the United Kingdom be, if the depreciation of their property could truly be estimated at no larger an amount! But take it on an average as a fifth only,—the strength of the argument, as Mr Malthus said of his famous arithmetical and geometrical progression, will admit of almost any concession. The depreciation and destruction of property since 1845, will then stand thus:—

Funded property,	£800,000,000
Railway property,	100,000,000
Banking and other joint-stock companies,	100,000,000
Capital invested in commerce and manufacture,	500,000,000
	£ 1,500,000,000
Depreciated, a-fifth,	300,000,000

Here, then, is the result of thirty years' legislation, during which time, under different administrations, some bearing the names of Tory, others of Whig, liberal principles in every department of government have been without intermission in the ascendant. The Catholic emancipators, the Negro emancipators, reciprocity advocates, reformers, self-government men, bullionists, and free-traders, have got every thing their own way. The

triumph over the old system was not immediate; it took a quarter of a century to complete it: like Wellington at Waterloo, it was late in the evening before the victory was gained. But gained it has been; and that not in one branch of government, but in every branch. The ancient system has been universally changed, and to such an extent, that scarcely a vestige of it now remains in the policy of Government. So uniform has been the alteration in every thing, that one would think our modern reformers had adopted the principle of their predecessors in the days of Calvin, who stood up to pray for no other reason but because the Roman Catholics knelt down. And what have been the results? Ireland, with some millions of paupers, in a state of anarchy and crime unparalleled in modern Europe; a hundred millions of property almost destroyed in the West Indies; the slave trade, tripled in extent, and quadrupled in horror throughout the globe; an irresistible ascendancy given in the Legislature to urban electors; all protection to agriculture destroyed; from ten to twelve millions of quarters of grain—a full sixth of the annual subsistence—imported in a single year; the national independence virtually destroyed, by being placed to such an extent at the mercy of foreigners, for the food of the people; foreign shipping rapidly encroaching on British, so as to render the loss of our maritime superiority, at no distant period, if the same system be continued, a matter of certainty; the practical annihilation of the sinking fund; the permanent imposition of the war income-tax, in the thirty-second year of profound peace; a falling off in the revenue at the rate of six millions, and in our exports at the rate of twelve millions a-year; the depreciation and destruction of property to the amount of three hundred millions in two years in Great Britain; and, finally, the general stoppage of railway undertakings over the whole country, and the shutting or putting on short time of half the mills in our manufacturing cities, for whose benefit all these changes were intended! We doubt if the history of the Fall of Rome exhibited such a uniform and multifarious decay in an equal period; certainly no parallel to it has yet been presented in the annals of modern Europe.

If we thought that this long and portentous catalogue of disasters was unavoidable, and could not be remedied by human wisdom, we would submit to it in silence, and we trust with resignation, as we do to the certainty of death, or the chances of plague, pestilence, or famine, arising from the dispensations of Providence, for wise and inscrutable purposes, but over which we have no control. But this is very far from being the case.

We believe, as firmly as we do in our own existence, that they are *entirely of our own creation*,—that they are the result solely and exclusively of false principles diffused through our people, and false measures in consequence forced upon our Government; and that, though the consequences of these false principles must be long and disastrous, yet it is still possible to remedy the evil, to convert a land of mourning into a land of joy, and restore again the merry days to Old England. The retreat from the ways of error never was to nations, any more than individuals, by any other path but the path of suffering; but if the retreat is made, and the suffering borne, we trust in the good providence of God, and energy of the British character to repair all that is past.

The distress which prevails in the nation, and, most of all, *in the commercial districts and cities*, being universal and undeniable, the supporters of the present system, which has led to such results, are sorely puzzled how to explain so decisive and damning a practical refutation of their theories. The common theory put forth by the free traders and bullionists is, that it is the railways and Irish famine which have done it all. This is the explanation which for months has been daily advanced by the *Times*, and which has been formally adopted by the leaders of government in both Houses. We are a miserably poor nation; we have *eaten up our resources*; the strain upon our wealth has been greater than we could bear. This, of having eaten up our resources, has, in a peculiar manner, got hold of the imaginations of the able writers in the *Times*; and, forgetting that a great importation of food was the very thing which they themselves had held forth as the great blessing to be derived from free trade, they give the following alarming account of the food devoured by the nation in the first nine months of 1847:—

"Of live animals and provisions imported in 1847, there is an excess over last year of more than 100 per cent., of butter (duty paid) 35 per cent.; of cheese 15 per cent.; of grain and flour 300 per cent.; of coffee (duty paid) between 8 and 9 per cent.; of sugar (duty paid) 15 per cent., and of spirits (duty paid) 25 per cent. *This has all been eaten and drunk*. But how, it will be said, is it possible it can have been paid for? and what a splendid export trade the nation must have carried on, when all this has taken place, and only six millions of bullion have disappeared! Unfortunately, however, the explanation lies deeper.

Although we have been extravagant in our living, we have starved our manufactories. We have sold our goods wherever we could find a market for them, and we have abstained from purchasing the materials out of which we may make more. We have not increased our export trade. It shows, in fact, a diminution as compared with last year; but in our avidity to consume luxuries, we have foregone, as we could not sustain the expenditure of both, keeping up the stock by which our mills and manufactories are to be fed."—*Times*, November 24, 1847.

So that the free traders have at last discovered that the unlimited importation of food is not, after all, so great a blessing as they had so long held forth. They have found to their cost that there is some little difference between sending *thirty millions* in twelve months in hard cash to America and the Continent for grain, and sending it to Kent, Yorkshire, Essex, and Scotland. They have discovered that there is such a thing as a nation increasing its imports enormously and beyond all example, and at the same time its exports declining in the same proportion, from the abstraction of the circulating medium requisite to carry on domestic fabrics. All this is what the Protectionists constantly predicted would follow the adoption of free trade principles; and they warned government in the most earnest manner two years ago, that no increase of exports, but the reverse, would follow the throwing open our ports to foreign grain; and that, unless provision were made for extending the currency when our sovereigns were sent abroad for foreign grain, general ruin would ensue. Two years ago Mr Alison observed:—

"Holding it to be clear that, under the free trade system, a very large importation of grain into these islands may be looked for now, even in ordinary seasons, and an *immense one in bad harvests*, it is essential that the country should look steadily in the face *the constant drain upon its metallic resources which such a trade must occasion*. Adverting to the disastrous effects of such an exportation of the precious metals in 1839, from a *single year* of such extensive importation of foreign corn, it is impossible to contemplate without the most serious alarm the conversion of that drain into a permanent burden upon the specie of the country. As the change now to be made will undoubtedly depress agricultural industry, it is devoutly to be

hoped that, as some compensation, the *expected increase* of our manufactures for foreign markets may take place. But this extension will, of course, require a proportional augmentation of the currency to carry it on. And how is that to be provided under the metallic system, when the simultaneous import of foreign grain is *every day drawing more and more of the precious metals out of the country, in exchange for food?*"—(*England in 1815 and 1845*, third edition, *Preface*, page xi. published in April 1846.)

But let it be conceded that the government and the *Times* are in the right on this point; that the importation of grain, coexisting with the absorption of capital in the railways, was more than so poor a nation as Great Britain could bear, and that the dreadful crisis which ensued was the consequence—we would beg to ask, *who has made us so poor?* We shall lay before our readers a few facts in regard to the resources of this miserably poor nation—this poverty-stricken people, who have eaten up their little all in the form of 10,000,000 quarters of grain and 176,000 live cattle, imported in the last nine months. We shall show what they were before the free trade and fettered currency system began; and having done so, we shall repeat the question,—"*Who has made us so poor?*"

This miserable poverty-stricken people, in the years 1813, 1814, and 1815—in the close of a bloody and costly war of twenty years' duration, during which they raised £585,000,000 by loans to government, and, on an average, £50,000,000 annually by taxes, from a population, including Ireland, not in those last years exceeding 18,000,000 of souls—made the following advances and contributions to government for the public service:

Population.		Raised by Taxes.	Debt contracted.		Total Debt contracted.	Total Payments into the Exchequer.
			Funded.	Unfunded.		
17,750,000	1813	£68,748,363	£52,118,722	£55,478,938	£107,597,660	£176,346,023
17,900,000	1814	71,134,503	39,692,536	53,841,731	92,934,267	164,068,770
18,150,000	1815	72,210,512	50,964,366	46,968,138	97,932,501	170,143,016
In 3 years,		£212,093,378	£142,175,624	£156,288,807	£298,464,428	£510,557,809

If any one supposes these figures are inaccurate, or this statement exaggerated, we beg to say they are not our own. They are copied *literatim*

from Porter's *Parliamentary Tables*, vol. i. p. 1; and we beg to refer to that gentleman at the Board of Trade, to whom, on account of his well-known accuracy, the Chancellor refers for all his statistical facts, for an explanation of these, we admit, astounding ones.

Was the capital of the country exhausted by these enormous contributions of A HUNDRED AND SEVENTY MILLIONS annually to the public service, in the twentieth year of the most costly war on record? So far from it, the great loan for 1814 of £39,000,000 was made at the *rate of* £4, 11s. 1d. PER CENT; that of 1813 at £5, 10s. on an average; that of 1815 at £5, 11s. *per cent.*^[13] And it is evidently immaterial whether the immense amount of £100,000,000 debt, funded and unfunded together, was contracted in the form of direct loan to government, or of Exchequer bills issued from the Treasury, and forming the unfunded debt. Such bills required to be discounted before they were of any value; and their proceeds, as Mr Porter very properly states, were so much money paid into the public treasury. They were an exchange of the capital of the nation for Treasury bills, and were, therefore, just as much a draft on that capital as the exchange of the sums subscribed in loans for the inscription of certain sums in the 3 *per cent.* consols.

In the next place, this poor nation, which has now nearly eaten up its resources in a single season, in the year 1844 possessed, in the two islands, real or heritable property of the yearly value of £105,000,000 sterling,^[14] corresponding to a capital, at thirty years' purchase, of £3,150,000,000; and at twenty-five years' purchase, to one of £2,625,000,000. These figures are ascertained in the most authentic manner; that of England by the Report of the Lords' Committee on the burdens of real property;^[15] that of Ireland by the Poors' Rate returns; and that of Scotland from an estimate founded on the amount of income-tax paid, as no poors' rate as yet extends universally over the country.

Further, we have the authority of Lord Palmerston, in the debate in last session of Parliament on foreign loans, for the assertion that this poor nation has advanced £150,000,000 in loans to republics since 1824, or to monarchies surrounded with republican institutions; the greater part of which has been lost. Yet so far have these copious drafts been from exhausting, or even seriously trenching, on the capital of the nation, that it

appears from the subjoined valuable table, furnished from returns allowed to be taken from the great bill-broking house of Overend and Gurney in London, [\[16\]](#) that during that whole period the interest of money, even in the years when the pressure was severest, never rose above 6 *per cent.*, and immediately after fell to 3½ or 3 *per cent.*, and in 1844 and 1845, it is well known, it was still lower, at some times as low as 2½ *per cent.*

Again, the income-tax returns for 1846, of this miserably poor nation, exhibit a revenue of £5,200,000 yearly drawn from this source, though the tax is only 7d. in the pound, or £2, 18s. 4d. *per cent.*, and though the tax did not legally go below incomes of £150, and in practice generally excluded those under £200 a-year. The income-tax, in the last year of the war, produced £15,000,000 at 10 *per cent.*, reaching all incomes above £60 a-year. Had the same standard been adopted in 1842, when it was reimposed by Sir R. Peel, it would have produced at least £18,000,000 yearly, which sum, increased by 33 *per cent.* from the enhanced value of money by the operation of the act of 1819, would correspond to about £24,000,000, according to the value of money in 1815. This proves that the wealth of the nation had *more than kept pace* with the increase of its population; for the numbers of the people in the two islands in 1815 were 18,000,000, and in 1845 about 28,000,000, or somewhat above 50 *per cent.* increase.

Lastly, this miserably poor nation, which has eaten up its resources in the shape of quarters of grain and fat bullocks in a single year, exported and imported in the three years 1812, 1814, and 1815, and 1843, 1844, and 1845, before free-trade began, respectively as follows:

	Exports.	Imports.
	Official value.	Official value.
1812,	£29,508,517	£24,923,922
1813	—Records destroyed by fire.	
1814,	34,207,253	32,622,711
1815,	42,875,996	31,822,053
1843,	£117,877,278	£70,093,353
1844,	131,564,503	75,441,555
1845,	132,444,503	85,281,958

Such were the commercial transactions of this nation, which, in the interval from 1815 to 1845, had become so miserably poor.

Keeping these facts in view, we again ask: Having down to 1845 been so rich, *what has since made us so poor?* The free-traders and bullionists tell us it was neither the abolition of the corn-laws nor the Bank Charter Act. Then what is it which in so short a time has produced so great, so terrible a revulsion? Government, and their organs in the press, assert that it was the Irish famine, and the absorption of capital in railways. To avoid any chance of misconception on so vital a point, we subjoin the words of the Chancellor of the Exchequer in the debate on the currency on 30th November 1847, as reported in the *Morning Post* of December 1, which were in substance the same as those employed by the Marquis of Lansdowne in the House of Lords:—

"Up to October there had been no great pressure; but in that month the pressure rapidly rose by reason of the *abstraction of capital for railways and corn*. The House would be surprised to hear the amount of capital thus abstracted for corn in fifteen months.

June 1846 to January 1847,	£5,139 000
January 1847 to July 1847,	14,184,000
July to October,	<u>14,240,000</u>
Total,	£33,563,000

Then as to the capital absorbed in railroads, it had been in each year, from 1840, on an average, to

1843,	£4,500,000
1844,	6,000,000
1845,	14,000,000
1846 { First half-year,	9,000,800
{ Second half-year,	26,600,000
1847, First half-year,	25,770,000
1847, Last half-year,	38,000,000

the latter being, of course, estimated on the supposition of the expenditure having continued at the same rates."—*Morning Post*, December 1, 1847.

Now of all the marvellous statements that ever were put forth by a government to explain a great public disaster, we do not hesitate to say this is the most marvellous. For let it be conceded that these are the real causes of the distress,—that it is the railways and the importation of foreign corn which have done it all—Who introduced the railways and let in an unlimited supply of foreign corn? Who passed all the railway bills, and encouraged the nation in the undertakings which are now held forth as so entirely disproportioned to its strength? Who took credit to themselves for the prosperity which the construction of railways at first occasioned, and dwelt with peculiar complacency, in the opening of the Session of 1846, on the increased produce of the excise, and diminution of crime, as indicating at once the augmented enjoyments and diminished disorders of the poor? Who disregarded the cautious, and as the event has proved, wise warnings of Lord Dalhousie at the Board of Trade? Who opened the railway of the Trent Valley with a silver trowel, and enlarged in eloquent terms on the immense advantages which that and similar undertakings would bring to the country? Sir Robert Peel and the party who now put down the whole evils which have ensued to the foreign corn and railways. Was a single word heard from them condemnatory of the mania which had seized the nation, and prophetic of the disasters which would ensue from its continuance? Did Sir Robert Peel warn the people that the currency was put on a new footing; that the act of 1844 had forbid its extension beyond thirty-two millions issuable on securities, and that as credit was thus materially abridged, the capital of the nation would be found inadequate to the undertakings in which it had engaged? Quite the reverse; he did none of these things. He encouraged the embarking of the capital of the nation in railways to the extent of above two hundred millions,^[17] all to be executed in the next four years; and now we are told that the disasters which have ensued are mainly owing to that very unmanageable railway progeny which he himself produced!

Again, as to the importation of foreign grain, the second scape-goat let go to bear the sins of the nation—who let that scape-goat loose? Who introduced the free trade system, and destroyed the former protection on native

agriculture, and disregarded or ridiculed all the warnings so strenuously given by the Protection party, that it would induce such a drain on the metallic resources of the country as must induce a speedy monetary crisis, and would subject the nation permanently to that ruinous wasting away which proved fatal to the Roman empire, when the harvests of Egypt and Libya came to supplant those of Italy in supplying the cities of the heart of the empire with food? Who declared that the great thing is to increase our importations, and that provided this is done the exportations will take care of themselves? Who laughed at the warning, "Two things may go out, manufactures *or specie*"? It was Sir Robert Peel and his free trade followers who did all these things; and yet he and his party, in or out of administration, (for they are all his party,) coolly now turn round and tell us that the misery is all owing to the foreign corn and the railways, which they themselves introduced!

The Irish potato rot of 1846, it is said, occasioned the great importation of grain, which for the next winter and spring deluged the country; and but for them we should have been landed in the horrors of actual famine over a great part of the country. We entirely agree with this statement. The Protectionists always were the first not only to admit, but *urgently to insist* that absolute freedom of importation should be allowed *in periods of real scarcity*. The sliding-scale formerly in use expressly provided for this; for the duty began to fall when wheat reached sixty-three shillings, and declined till at seventy-three shillings it was only one shilling a-quarter. It was on the propriety of admitting grain duty-free in periods of *average or fine harvests*, such as we have just been blessed with, that they were at issue with their opponents. Under the old system, nearly all the grain which was imported in the winter of 1846 and spring of 1847, would have come in, for the duties became nominal when wheat rose to seventy-three shillings a-quarter, and it rose during that period to one hundred and five and one hundred and ten shillings. What the Protectionists said, and said earnestly, when this vast importation, *necessary at the time*, was going on, that it *anticipated* the effects of a free importation of grain, and by its effect on the currency, while it lasted, might teach the nation what they had to expect when *a similar drain*, by the effects of free trade, *became perpetual*. Eight months ago, on March 1, 1847, we made the following observations in this Magazine:-

"The quantity of grain imported in seven months only, viz. from 5th July 1846, to 5th February 1847, exceeded six millions of quarters, at the very time when our exports were diminishing. It may be imagined how prodigious must have been the drain upon the metallic resources of the country to make up the balance. The potato rot, it is said, has *concealed* the effects of free trade. Quite the reverse. Providence has done the thing at once. We have got on at railway speed to the blessings of the new system. Free trade was to lead to the *much desired substitution of six millions of quarters of foreign, for six millions of quarters of home growth in three years*. But the potato rot has done it *in one*. The free trade policy could not have done it so expeditiously, but it would have done it as effectually. It is a total mistake, therefore, to represent the famine in Ireland and the West of Scotland as an external calamity which has concealed the effects of free trade. *It has only brought them to light at once.*"—LESSONS FROM THE FAMINE. *Blackwood's Magazine*, March 1847.

The real amount of the famine in Ireland, of which so much has been said, was very much magnified, however, by the fears of some parties and the interested exaggerations of others. The deficiency in the two islands has been stated variously, at from sixteen to twenty million pounds worth. Take it at the larger sum to avoid all idea of misrepresentation—what is this to the total agricultural produce of Great Britain and Ireland? That is estimated by Mr Porter on very rational grounds at three hundred millions annually, in produce of all kinds. The subtraction of twenty millions worth;—*a fifteenth part*, at the very utmost, could never account for the prodigious rise of prices from forty-nine shillings a-quarter to one hundred and ten shillings, which wheat rose to in March 1847. It was the impulse given to speculation in grain, by the sudden throwing open of the ports by Sir Robert Peel's free trade measures, which really occasioned the prodigious importation so much exceeding what was required, which actually took place. The defalcation occasioned by the Irish potato rot, and the deficiency of the oat-crop in Great Britain, was at the very utmost a fifteenth part of the annual supply. But the grain imported in the first nine months of this year has exceeded ten millions of quarters, being a full *sixth* part of the annual consumption of the nation, which for the use of man and animals together is estimated at sixty million quarters. And hence the rapid fall of prices which

followed the fine harvest of 1847, from one hundred shillings to fifty shillings, which has involved in ruin so many houses concerned in the corn trade.

But what is particularly worthy of notice, and what we in the most earnest manner beg to impress upon our readers as by far the most luminous and important fact which the recent discussions in parliament have elicited, is this. It is stated, as has been already noticed, by the Chancellor of the Exchequer, that the sum paid for foreign grain in the three months ending November 30th 1847, that is in the months of September, October, and November, 1847, had reached the enormous and unprecedented amount of £14,240,000! The same statement was made by Lord Lansdowne in the House of Lords; and the Chancellor of the Exchequer added, that to be sure of the figures, he had them remitted to and corrected by Mr Porter. Now, this immense importation, be it recollected, took place IN THE FACE OF THE FINEST HARVEST KNOWN FOR YEARS, and for which a public and solemn thanksgiving has just been returned. We say nothing of the prospects of foreign importation which this fact opens to our agricultural interests,—that furnishes ample subject for future consideration; what we pray the public attention to, is the warning which it gives of the effects of free trade upon the *monetary concerns* of the nation, and above all on the credit of the trading and commercial classes. This is the importation, in an uncommonly fine season, with a noble harvest in both islands, just reaped! The dreadful monetary crisis of October 1847, which rendered the suspension of the Bank Charter Act, on the 25th of that month, indispensable, was evidently owing to the prodigious importation which all the fineness of the preceding harvest could not check. The crisis of April 1847, may with justice be ascribed to the failure of the potato crop in Ireland, and would probably have come on, though not with the same intensity, though the change on the corn laws had been made by Sir Robert Peel in the July preceding. But it is rather too much to go on talking in December 1847, about the failure of the crop of 1846 in Ireland, four months after one of the finest crops in the memory of man had been reaped in the British dominions.

This points to one great and lasting truth, the due appreciation of which by the people of Great Britain is of such paramount importance, that it will be cheaply purchased even at the cost of all the misery and destruction of

property which the late crisis has occasioned in the British empire. This is, that the great importation of grain, and consequent abstraction of the precious metals consequent upon the free-trade system, may be expected *to be permanent*. We have repeatedly warned the nation in every possible form that this would be the case, but our warnings during the free-trade mania met with no attention. Now, however, it has been proved by the event that they were too well founded. The old and rich state will always be undersold by the young and poor one in the supply of grain for its own market. The grain-growing state never will take manufactures to any proportional extent, but *always will take gold in exchange*. This was the case with Rome in ancient days; this is the case with England in these times. The steam-engine and machinery do little or nothing for agriculture, though every thing for manufactures. The great grain states are always those nations in which the labouring-class are poor, or have few artificial wants, and consequently take few or no manufactures. Poland, the Ukraine, the Valley of the Mississippi, are examples. Gold is what they want, and what they will have; for it is the cheapness of their production which enables them to export to advantage. So universal is this truth, of such paramount importance is it upon the fortunes of an old and highly civilised state, that, it may safely be affirmed, its existence in its old age depends on the requisite safeguards against the danger thence arising being established. Such are the effects of the constant drain of gold and importation of grain on such a state in its advanced stages, that even the strongest nation will sink in time under the strain, as Rome did, if nothing is done to avert the danger.

The present dreadful crisis under which the nation is labouring, therefore, is not owing to a want of capital for all its undertakings, nor to any present deficiency in our native supply of food. It is in vain that Sir R. Peel, to throw the blame off the Bank Charter Act, says it is all owing to a deficiency of capital to carry on our undertakings. Has the Right Hon. Baronet forgotten that, so recently as *March last*, the Chancellor of the Exchequer borrowed £8,000,000 for the destitute Irish at £3, 7s. 6d. *per cent.*? Was this like a nation, the capital of which was exhausted? Has he forgotten that, till within these few months, the funds were from 88 to 90, and interest generally at 3 or 3½ *per cent.*? What has come of all this capital since August last? Has it vanished before the genial showers and bright sun which gave us so fine a harvest? But if deficient capital has been the cause of our disasters, how has it happened that Lord John Russell's letter of 25th

October, authorising the Bank to make advances beyond what the Act allowed, has already had a sensible effect in arresting the disorder, at least in the metropolis? Can it be said that that letter added one pound to the realised capital of the country? It might as well be affirmed that it added a cubit to every man's stature in it, or a quarter to the produce of every field it contained. Then how has it to some degree arrested the panic in London, raised the 3 *per cents.* from 79 to 86, and lowered the interest of money from 8 or 9 to 6 or 7 *per cent.*? Evidently by its effect upon CREDIT; because it begat a hope—not likely, we fear, to be realised—that government had at last become sensible of the ruinous effect of the Bank Charter Act, and would speedily restore the circulation of the country to that amount, which the magnitude of its population and transactions imperatively required.

To illustrate the terrible and all-powerful operation of this deplorable Act on the best interests of the country, let it be supposed for a moment that the *whole* currency of the country, without any change in its laws as affecting debtor and creditor, were to be withdrawn. What would be the result? Evidently that every man and woman it contained, from Queen Victoria and the Chancellor of the Exchequer downwards, would become bankrupt. A nation possessing real property, as the income-tax and poor-rate returns show, of the value of £3,000,000,000 sterling, and moveable property of £2,000,000,000 more, would, without the exception of a single living creature in it, become bankrupt because £70,000,000 or £80,000,000 was withdrawn from its circulation, while its laws remained unchanged. By these laws, every debtor must discharge his liabilities *in money*; and therefore, if the whole money was withdrawn, no debt could be discharged at all, and universal bankruptcy would ensue.

Now, the contraction of the currency to any considerable extent operates, so far as it goes, in just the same way on general credit and the national fortunes. When money becomes scarce, no one can, without difficulty, discharge his obligations, because the banks, who are the reservoirs from which payment of all considerable transactions are drawn, cannot afford the usual accommodation. Those who are not in first-rate credit can get nothing from them at all, and at once become bankrupt. The sum-total of difficulty and embarrassment thus occasioned, is not to be measured by the amount of specie or bank-notes actually withdrawn from circulation by the Bank of

England, though that on occasion of the present crisis has been very considerable. It is to be measured by the shock given to credit; the increase in the practice of hoarding, which a feeling of general insecurity never fails to engender; the reluctance in the country banks to make advances; the universal effort made to recover debts at the very time when the means of discharging them have been rendered most difficult; the rapid diminution in the private bills put in circulation from the experienced impossibility of getting them discounted. The contraction of the currency on the part of the Bank of England, from July 1846, when it was £21,000,000, to September 1847, when it was only £17,840,000, was no less than £3,160,000. Including the simultaneous and consequent contraction by the country banks in Great Britain and Ireland, the diminution of the paper currency was above £5,000,000. But this, considerable as it is, was but a small part of the evil. The bills in circulation in Great Britain in 1839 were estimated by Mr Leatham, a most experienced Yorkshire banker, at £130,000,000. In 1845, it may safely be assumed, that they had reached £160,000,000 or £170,000,000. Without a doubt this immense sum was reduced by at least a fourth, probably a half, from the contraction of the currency consequent on the Bank Act of 1844. It is this prodigious contraction, the necessary consequence of the banks having been rendered unable or unwilling to discount bills, which is the real cause of the present universal distress and general stoppage of all undertakings. And it was the more ruinous from the circumstance, that it occurred at *the very time* when, from the vast encouragement given by government to domestic railways by the bills they passed, and to foreign trade from the abolition of the main duties protective of industry by them, the nation was landed in transactions of unheard-of magnitude, and producing an unparalleled strain upon its metallic resources.

This last is a consideration of such paramount importance, that it is of itself adequate to explain the whole phenomena, which have occurred; and yet, strange to say, it has hitherto met with very little attention either in or out of Parliament. The point to which we allude, and to which we crave, in an especial manner, the attention of the nation, is *the progressive and now alarming disproportion between the money value of our imports and our exports* which has grown up ever since Sir Robert Peel's tariff was introduced in 1842, and which has now, from the action of the free-trade in corn, risen to such a height as to be absolutely frightful. The declared or

money values of our total exports and official value of our imports since Sir Robert Peel's tariff was passed in 1842, have stood as follows:—

Imports, official value.		Exports, declared value.	
1841,	£64,377,962	1841,	£51,604,430
1842,	65,204,729	1842,	47,361,043
1843,	70,093,353	1843,	52,278,449
1844,	75,441,555	1844,	Not made up.
1845,	85,281,958	1845,	53,298,026
1846,	Not made up.	1846,	57,279,735
Three first quarters of		1847,	39,240,000
1847,	Not made up.		

The imports for 1847 have not yet been made up, and cannot be till January next, when the year is concluded. But in the figures we have given, there is abundant room for the most serious reflection. The fact which the Chancellor of the Exchequer has mentioned as to the sums paid *for grain alone*, in fifteen months, having reached the enormous and unprecedented amount of £33,000,000, leaves no room for doubt that, in the year 1847, our imports *will have reached £100,000,000, while our exports have sunk below £50,000,000.*^[18] Now, how was this fearful balance paid? The answer is evident. In cash. Here then, without going farther, is a balance on the exports and imports already returned, in 1846, of *forty millions* against the nation, on the transactions of the present year, of probably not less than FIFTY MILLIONS STERLING.^[19] Whoever considers these figures with attention, will be at no loss to perceive from what cause in the main the present disasters have arisen.

To give only one example of the way in which, under the system of free importation, the balance of trade has been turned against this country, we subjoin the official returns of the progress of our trade with America since Sir Robert Peel's tariff was introduced in 1842, and for five years previously.^[20] From that it appears that the trade with that country, which in 1830 was £8,000,000 on each side, has now so immensely changed, especially since the tariff of 1842, that, while our exports to it in 1845 were £10,000,000, our imports from it were £22,000,000! How was the balance of £12,000,000 paid? The answer is, *in money*; and that money it was which enabled them to conquer the Mexicans. We shall look with anxiety for the returns of our exports to, and importations from America for the last two years. When they appear, it will at once be seen where the money, the want of which is now so severely felt, has gone, under the fostering influence of free trade.

Sir Robert Peel says that the Americans have tried the system of paper money, and they have had enough of it. We thank the Right Honourable Baronet for having reminded us of this example of the effects of a contracted currency. It appears that in 1836 the imports of English manufactures into the United States were £15,116,300. In the next year they were only £5,693,094 official value; and the declared or real value in that year was only £4,695,225; and the declared value of the imports from Great Britain in 1842, was only £3,528,807.^[21] What occasioned this extraordinary defalcation, we shall inform the Right Honourable Baronet. In spring 1837, the metallic system was introduced by General Jackson, then President of the United States, (by his refusal to take any thing but specie in payment of government claims,) the country being at the time engaged in vast railway and other undertakings, with the concurrence and by the authority of government. Thence the prodigious falling off in the imports from this country, under which our own manufacturers suffered so severely, and from which they have scarcely yet recovered. Thence the destruction of three-fourths of the mercantile capital of the United States. May heaven avert a similar catastrophe, resulting from the same policy, in this country!

The causes, then, to which the present dreadful crisis is owing, are as plain as if the proofs of them were to be found in Holy Writ. We shall simply record what Sir Robert Peel and the bullion party have done for the last five

years, and then ask whether under such a system it was possible a catastrophe could be averted.

In the first place, they introduced the tariff of 1842, which so materially diminished the duties on importation in this country, and gave so great an impulse to the introduction of foreign articles of all sorts into the consumption of the people, as raised our imports in 1845 to £85,000,000, while our exports were only £53,000,000, exhibiting a balance of £32,000,000 against the country, which of course required to be paid in the precious metals.

Secondly, having established this great drain of nearly *thirty millions* annually on the metallic resources of the country, Sir Robert Peel next proceeded to pass the Bank Charter Acts, for England of 1844, and for Scotland and Ireland of 1845, which limited the bank notes of the empire, issuable on securities, to £32,000,000,^[22] and enacted that for every note issued beyond that amount, a sovereign should be in the bank's strong-room to represent it.

Thirdly, having imposed these firm restrictions on the increase of the paper circulation, and left no room for an augmentation to meet the growing wants of the community but by an addition to the stores of bullion in the country, and compelled a proportional contraction of the currency when the bullion was withdrawn, the Right Honourable Baronet and his administration next passed railway bills to the amount of above £150,000,000 sterling, to be executed in the next three years, and gave every facility to the undertaking of such projects, by lowering the deposits required from ten to five *per cent.* on the estimated cost of the undertakings.

Fourthly, when the strain on the metallic resources of the country was beginning to be felt, from the immense balance of thirty millions in our commerce against us, and the calls on railway shares were becoming considerable, the Right Honourable Baronet next, as a permanent system, not an extraordinary remedy to meet a temporary disaster, introduced a free trade in grain, which was immediately applied by his successors to sugar. He thus sent thirty-three millions, in gold and silver, abroad in fifteen months. The consequence has been that the imports of the empire have probably become *double* its exports in money value; that a balance of nearly £50,000,000 has this year been sent abroad in payment of articles of

import; that the sums paid for grain alone in the three months immediately *following the finest harvest on record*, have exceeded £14,000,000; that nearly all the railways in the country have been stopped from the necessary contraction which, under the existing law, this export of specie occasioned to the currency; that distress of dreadful magnitude pervades the mercantile and manufacturing classes; and that our exports have fallen off at the rate of a million a-month, and our revenue above six millions a-year.

Such are the principles and results of that splendid combination effected by modern wisdom—FREE TRADE AND A FETTERED CURRENCY. And as these results flow naturally and necessarily from the principles put in practice, it is evident that they may be expected in a less or greater degree *to be permanent*, so long as these principles regulate the policy of government.

Suppose a general at the head of one hundred thousand men were to double, by orders issued or licenses granted from head-quarters, the distance to be marched, and the work done by the men, and *at the same time* to establish a system which sent half of the commissariat stores out of the camp,—what could be expected from such a policy but starvation, discontent, and ultimate mutiny among the soldiers? Or suppose a master manufacturer, as a great improvement on the machinery of his mill, were to introduce a system which abstracted the oil in proportion to the quickened movement of the wheels, or diminished the moving power in proportion to the increase of the work to be done,—what could be expected from such a change, but that the machine would stop when it had most work to do? And yet, is not a currency, and *a sufficient currency*, as necessary to an industrious nation as food to the soldier, or coals to the steam-engine, or oil to the wheels? Can we be surprised that such a system, when applied to a nation, terminated in disappointment and ruin? But one result of inestimable value has followed from its adoption; it is in periods of suffering that truth is learned, because the consequences of error are experienced. It is now seen what the true principles on the subject are, because the effects of the opposite principles have been demonstrated. With truth may it be said, that Sir R. Peel is the philosopher who "HAS INSTRUCTED US IN THE CURRENCY."

It is the same thing, it is often said, whether we send specie abroad in return for imports or manufactures of our own creation, for specie is not the growth of this country, and it could only have been brought here in return

for some produce of ours previously exported. The common sense of mankind, founded on experienced suffering arising from the abstraction of specie, has ever repudiated this doctrine of the schools; and present experience has amply demonstrated that, how specious soever it may appear, there is some fallacy in it. Nor is it difficult to see what that fallacy is. If we send manufactures abroad in exchange for specie, we make a fair exchange; but if, having got the specie, we send it abroad *again*, instead of manufactures, to buy food,—we have *only one* export of British produce to set off against *two* imports of foreign. For instance, if we send £5,000,000 worth of manufactures to South America to buy that amount of specie, it is a fair exchange, and there is no unfavourable balance established against us. But if, having got the £5,000,000 worth of specie, we again send it to North America for grain, which is imported into this country, instead of sending £5,000,000 worth of manufactures, we have, on the whole, only exported £5,000,000 worth of manufactures for £10,000,000 worth of produce, bullion and corn imported: that is, there is a balance of trade to the amount of £5,000,000 established against us, which, to that extent, is a drain on our metallic resources. Had we sent £5,000,000 worth of manufactures instead of the same amount of specie to North America to buy food, our exports on the whole would have been £10,000,000 instead of £5,000,000; and the difference of £5,000,000, instead of being *a deduction from*, would have been *an addition to* the metallic resources, that is, the life-blood of the nation. It is because a great import of grain invariably leads to such an export of specie, that it is so hazardous a trade for a nation: it is because Sir R. Peel's policy contracted the paper currency at the very time that he sent the metallic abroad in quest of food, that he has brought such calamities on the State.

The Right Hon. Baronet's defence of his policy is mainly to be found in the following paragraph of his late able speech, in the close of the currency debate:—

"I think there has been some misapprehension as to the objects contemplated by the Act of 1844. I do not deny that one of them was the prevention of the convulsions that had theretofore occurred in consequence of the Bank of England not taking due precautions as to the regulation of its issues. I did hope, after the experience of former crises, that the Bank of England would adhere to those principles of

banking which the directors acknowledged to be just, but from which they admitted they have departed. (Hear, hear, hear.) I am bound to admit that in that hope, and in that object, I have been disappointed; and I also admit, seeing the number of houses that have been swept away—some of which, I fear, were long insolvent—(Hear, hear)—and others which, being solvent, have suffered from the failure of other houses—I am bound to say that in that object of the Bill I have been disappointed. (Hear, hear.) It was in the power of the Bank to have, at an early period of the distress, raised the rate of discount, and to have refused some of the accommodation they granted between 1844 and 1846. (Hear, hear, hear.) I cannot, therefore, say that the defect is exclusively, or mainly, in the Bill—(Hear, hear)—but my belief is, that executive interference might have been given without the necessity of the authority of the noble lord."—*Morning Post*, Dec. 2, 1847.

The observations which have now been made, show that these remarks are not only unfounded, but precisely the reverse of the truth. Had the Bank of England drawn in their discounts, and raised the rate of interest between 1844 and 1846, at the very time when the railway and free-trade work, into which Sir Robert Peel had plunged the nation, was at its height, what must have been the result? Nothing but this: that the catastrophe which has ensued would have come on two years sooner than it has actually done. The Right Hon. Baronet would have been prevented from making his emphatic speech on the admirable effects of his policy, and the diminution of crime, in the opening of the Session of 1846; he would have found the jails and the workhouses full enough, at the period of that glowing eulogium on free-trade policy and its effects. By making liberal advances to railway companies in 1844 and 1845, the Bank of England, and the other banks which followed its example, only enabled the country for a time to do the work upon which Sir Robert Peel had set it. By enabling, by similar advances, the manufacturers for two years longer than they otherwise could have done, to send a large export of manufactures abroad, the Bank, for that period, averted or postponed the catastrophe which must ensue in a commercial state, when its imports, for a series of years, have come greatly to exceed its exports. It is because the contraction of the currency, rendered imperative on the Bank by the Right Hon. Baronet's bill, has disabled our manufacturers from carrying on their operations to their wonted extent, that

the import of the raw materials employed in manufactures, has decreased during the last eighteen months to such an extent, our export of manufactures declined in a corresponding degree, and the drain of specie abroad to pay for the enormous importations simultaneously introduced, increased to such a ruinous extent.

Sir R. Peel reminds us of the great catastrophe of December 1825, and observes that that disaster, at least, cannot be ascribed to his Bank Charter Act, and that it arose from the everlasting tendency to overtrading in the people of this country. Again we thank the Right Hon. Bart. for reminding us of that disastrous epoch, which, in the still greater suffering with which we are now surrounded, had been well-nigh forgotten. We entirely agree with him as to the magnitude of that crisis, and we will tell him to what it was owing, and how it was surmounted. It was owing to Mr Secretary Canning, in pursuance of liberal principles, "calling a new world into existence," by violating the faith and breaking through the duties of the old one. It arose from the prodigious loans sent from this country to prop up the rickety, faithless, insolvent republics of South America, and the boundless incitements held out to wild speculation at that period by "Mr Prosperity Robinson," especially in South American mining speculations. It arose from all this being done and encouraged by the government, at the very time when the act of 1819, introduced by Sir R. Peel, compelled the Bank,—though drained almost to the last guinea, by the prodigious quantity of gold sent headlong to South America to support these speculations, induced or fostered by the government,—to pay all its notes in gold. This was what induced the crisis. And what arrested it? Lord Ashburton has told us it was the issue of £2,000,000 of forgotten *bank-notes*, drawn out of a cellar of the Bank; but which sum, inconsiderable as it was, proved sufficient to arrest the consequences of the gold being all sent away to South America, in pursuance of liberal principles, to prop up "healthy young republics," carved out of the dominions of an old and faithful ally. Sir R. Peel, two-and-twenty years afterwards, has repeated the same error, by sending the gold to North America in the midst of great domestic transactions for grain, but he has not repeated the same remedy.

In truth, the system now established in regard to the bank by the acts of 1819 and 1844, *necessarily* induces that very feverish excitement in periods of prosperity, and sudden contraction in those of adversity, of the

consequences of which Sir R. Peel so loudly complains. When the bank is obliged to accumulate and keep in its vaults so prodigious a treasure as £15,000,000 in prosperous times, and £9,000,000 or £10,000,000 in those of adversity, *lying* dead in its possession; *how is it to indemnify itself for so vast an outlay*, without, whenever an opportunity presents itself, pushing its circulation to the utmost? The very interest of this treasure amounts, at 5 *per cent.*, to above £700,000 a-year; at 7 *per cent.*, the present rate, it will reach a million. How is this sum to be made up, the expense of the establishment defrayed, and any profit at all realised for the proprietors, if paper, to a large amount, is not pushed out whenever an opportunity presents itself for doing so to advantage?

Again, in adverse times, when there is a heavy drain upon the establishment for buying foreign grain, or discharging adverse exchanges, how is the bank to avoid insolvency, without at once, and suddenly, contracting its issues? The thing is unavoidable. Undue encouragement to speculation in prosperity, and undue contraction of credit in adversity, is to the Bank, since the acts of 1819 and 1844, not merely an essential preliminary to profit, but in trouble the condition of existence. Yet Sir R. Peel complains of the Bank doing that which his own acts have rendered indispensable to that establishment.

Sir R. Peel asserts that many of the houses which have lately become insolvent, have done so from excessive imprudence of speculation; and he succeeded in eliciting some cheers and laughter from the House of Commons, by contrasting in some extreme cases the amount of the debts brought out in bankruptcy with the assets. Without deeming it necessary to defend the conduct of all the houses, the affairs of which have been rendered public by the vast corn trade and railway speculations into which he plunged the nation, it seems sufficient to observe, that *all* fortunes made by credit must, if suddenly arrested in the course of formation by such a contraction of the currency as we have lately experienced, exhibit the same, or nearly the same, results. Fortunes, with the magnitude of which the Right Hon. Baronet and Mr Jones Loyd are well acquainted, might possibly, if they had been thrown on their beam-ends suddenly, by such a tornado, have exhibited, when in growth, not a much more flattering feature. But the "Pilot who weathered the storm" was then at the helm, and he weathered it for their fortunes not less than for those of the country. He *aided*

commercial distress in adversity by increasing, instead of *aggravating* it by contracting, the currency. It is credit which has made us what we are, and credit which must keep us such. Had the monetary system of Sir R. Peel been adopted forty years ago, as the bullion committee said it should, we shall tell the Right Hon. Baronet what would have been the result. Great Britain would have been a province of France: the fortunes of all its merchants would have been destroyed: the business talents of Mr Jones Loyd would probably have procured for him the situation of cashier of the branch of the Bank of France established in London; and possibly the rhetorical abilities of Sir R. Peel might have raised him to the station of the English M. De Fontaine, the orator on the government side in the British Chamber of Deputies, held under an imperial viceroy on the banks of the Thames.

Sir R. Peel admits his bill has failed in checking improvident speculation in the nation; nor could he well have maintained the reverse, when the most extravagant speculations on record, at least in this island, succeeded, in the *very next year*, the passing of his bill. Experience has proved that it required to be suspended by the authority of the executive when the disaster came; and the effect of that suspension has already been to raise the *three per cents* from 79 to 86. It is ineffective during prosperity to check imprudence; it requires to be suspended in adversity, because it aggravates disaster. This is all on the Right Hon. Baronet's own admission. What good then has it done, or what can be ascribed to it, to counterbalance the numerous evils which have followed in its train?

Sir R. Peel says the experience of the last half century proves, that every period of prosperity is followed by a corresponding period of disaster, and that it is under one of the latter periods of depression that the nation is now labouring. We agree with the Right Honourable Baronet that for thirty years past this has been the case, and we will tell him the reason why. It is because for that period his principles have been in operation. But there was a period before that when no such deplorable alternations of good and evil took place; when the nation in prosperity was strong without running riot, and the government in adversity checked disaster, instead of aggravating it. It was the period from 1793 to 1815, when a currency adequate to the wants of the nation was supplied for its necessities, and our rulers had not yet embraced the principle that, in proportion as you increase the work men

have to do, and enlarge their number, you should diminish their food. It was the period when Mr Pitt or his successors in principle were at the helm. Three commercial crises came on at that time, all occasioned by the abstraction of specie for the use of the great armies then contending on the Continent,—those of 1793, 1797, and 1810. In the first, the panic was stopped by Mr Pitt's advance of £5,000,000 exchequer bills; in the second, by the suspension of cash payments; in the third, when gold was so scarce that the guinea was selling for twenty-five shillings, by the issue of bank-notes to the extent of £48,000,000. That last period, which under the present system would at once have ruined the nation, was coincident with its highest prosperity: with the Torres Vedras campaign, and a revenue raised by taxes of £65,000,000 yearly. All the panics on record have arisen from the abstraction of gold in large quantities, and have been cured by the issue, sometimes speedy, sometimes tardy, of a corresponding amount of paper. Sir R. Peel's policy doubles the evil, for it at once sends abroad the cash under his act of 1846, even in the finest seasons, to buy grain, and, under the act of 1844, at the very same moment contracts the currency, by the increase of which alone the evil could be remedied.

Sir R. Peel, however, has completely, as already noticed, instructed us in the true principles of the currency. It is his policy which has brought them to light. He contracts the currency when gold is scarce, and expands it when it is abundant. The true principle is just the reverse: it is to contract the paper when gold is abundant, and an expansion of the currency is therefore little needed: and to expand it when it is scarce, and therefore an addition to it is imperatively called for. The price of gold will at once tell when the one or the other requires to be done.

We conclude in the words we used on *this day twenty-two years*, on Jan. 1, 1826, immediately after the cessation of the dreadful panic of December 1825:—"It may be that the Ministry is right, and that all these changes are wise and necessary, but we cannot discover it. The more accurately we examine, the more firmly we are convinced of the truth of our own opinions. Time has brought no refutation to us, whatever it may have done to those from whom we differ; in so far as experiment has gone, we may point to it in triumph in confirmation of our principles and predictions. If at the last we be proved to be in error, we shall at least have the consolation of knowing that we have not erred from apostasy; that we have not erred in

broaching new doctrines and schemes, and supporting innovation and subversion; that we have not erred in company with the infidel and revolutionist,—with the enemies of God and man. We shall have the consolation of knowing that we have erred in following the parents of England's greatness,—in defending that under which we have become the first of nations, and in protecting the fairest fabric that ever was raised under the face of heaven, to dispense freedom and happiness to our species. Our error will bring us no infamy, and it will sit lightly on our ashes when we shall be no more!"

SOMETHING LIKE A COUNTRY-HOUSE.

THERE is an ancient mansion we often go to, just where the hills of Herefordshire rise confounded with those of Radnor, built in the reign of James I., but in a style that tells of the traditions of rather an earlier epoch, and, as common report goes, due to the genius of Inigo Jones. It is erected in a long line east and west, with the principal fronts north and south; on either side of the mansion prim-looking gables rise over the windows of the third storey, and stately chimneys keep guard on the roof above. The windows are all ample, well and fitly monialled and transomed. The colour of the stone is a rich warm-tinted gray, passing on the southern front into orange-shades of glorious hue; and the whole edifice wears the aspect of nobility and good taste. Ample gardens with terraces and lawns are spread around, and the tall avenue of limes that leads down from the ancient gates on the main road, is answered by a goodly belt of contemporaneous oaks and beeches circling round the gardens, and shutting them out from the rest of the estate. When you enter the great hall, you observe large square bay windows, and, in the recesses, deer-skins spread out for carpets, with halberts and other arms filling up the corners. The lower rooms are all wainscoted with black oak, and the furniture, mostly as old as the mansion itself, is of that solid stately kind which befitted the dignified style in which our ancestors gloried to live. As you mount the ample stairs, you find yourself amidst an endless series of portraits, from the time of the bluff tyrant King Hal, down to the homely age of good King George,—stiff gentlemen and ladies in doublets and ruffs,—others with cuirasses and long flowing hair, and black dresses and love-locks, be-speaking the well known cavalier principles of the House in the times of the rebellion; and ever and anon gentlemen in long three-quarter frames, with many a square yard of pink or blue velvet for their coats, cuffs turned up to their elbows, waistcoats big enough to make surtouts for any of us degenerate moderns; the forefinger and thumb of one hand on the pummel of the sword, the other gently placed on some gilded table,—the head turned disdainfully aside, or else courting with graceful pride some comely dame in a green negligé, or habited as a shepherdess,—the Corydon and Chloe of the court of Queen

Anne. The staircase leads to an enormous drawing-room, that looks as if some three or four other rooms had been thrown into one, with two bay-windows on one side, and a fireplace—ah! such a fireplace!—on the other. But here no personages more ancient than the days of George the Second are allowed to show their canvasses on the walls,—the great grandfathers and grandmothers of the present possessors,—the men looking like rakish Quakers, the ladies all in flimsy white muslin, straw hats, and powdered locks. They may have more interest for those to whom they are related, but we always consider them much worse company than their progenitors on the staircase,—those glories and beauties of an earlier day, whom they are themselves destined to join hereafter, when thrust out from their present quarters by a future squire. A stray Sir Joshua may be seen in one corner of the room, and an early Sir Thomas is by one of the windows. The furniture here is of that remarkable, rickety kind, which our own dads admired so much when this nineteenth century of ours was making its appearance, and which—but we may have bad taste herein—we would willingly consign *en masse* to the kitchen fire or the broker's shop.

Not far from the drawing-room door runs off one of the many long corridors of the mansion, and then at the end is the Closed Chamber. It has never been opened since the year 1718, when the young lady, one of the daughters of the house, that used to sleep in it, lost her lover who had been out for the "right cause," and lost his head for his loyalty to a dethroned sovereign; and she, poor girl, walked into the great fish-pond one night, and was found in the tangled weeds by the old gardener next morning. The squire of that day, her disconsolate father, had the pond immediately drained off, and it is now one of the prettiest flower parterres of the garden: but the lady's elm is still pointed out at one end—a shattered withered trunk—'twas under it the poor thing's body lay. And now at nightfall, and in the depth of the night itself, long-drawn sighs and the rustling of stiff silk may be heard along the passage and by her room-door, while within,—but no one knows nor even talks of what is within,—all that is really known is, that once in the autumn, 'tis now fifty years ago, when the old housekeeper was alive, on a peculiarly still night, while the master was away up in London, and no one but two or three servants left in the gloomy mansion, the door of the chamber burst open with a loud noise, and such a crash was heard within, followed by an unearthly shriek, that the people in the servants' hall below nearly went out of their minds through fright. Next morning, when

the gardener had called in the village constable and the smith, and all three had mounted the stairs and had come to the mysterious door, they found within a wainscoted room a worm-eaten bed of ancient form, all in a heap on the floor; one of the windows was broken in, the cobwebs were blowing about in the wind that whistled through the apartment; over the chimney-piece was a portrait, so black that it could be hardly made out, only they could see that it had once shown the lineaments of a young and a female face: but there was nothing, absolutely nothing to indicate the cause, of the disturbance during the night. It is true that the smith, as he was going out, picked up a ribbon near the chimney, which he maliciously declared he knew to be Betty the housemaid's garter, but nothing more ever came of it, so the window was mended, the shutters were closed, and the door has ever since been fastened up with stout coffin screws. There's not a servant that would go to the end of that passage at night and listen with her ear at the keyhole, (though they all say they would not mind doing it at any other door in the house) no, not for a twelvemonth's extra wages.

We have slept in many a chamber of that goodly and hospitable mansion: there was the bachelor's room, a nice little square apartment, about twice as high as it was broad, all panelled in oak, which, however, some Goth of a squire had painted light blue; with a fireplace that would let not only the bachelor, but eke the bachelor's better half, creep inside on a winter's night; and with a curious kind of a bed, not higher from the ground than your knee, but with thin light posts spiring up some dozen of feet aloft, and supporting a superfluity of green damask, enough to make a tent with. In the panel over the fireplace was an apology for a looking-glass, once deemed no doubt an uncommonly correct thing, all cut in facettes and diamonds at the sides and diversified with bouquets of flowers tied by true-lovers' knots in the middle. 'Twas no doubt a bridal gift to some fair lady in the time of King Charles, and then might have gloried in a frame of gold; but now its glories are departed, and, for us at least, it served no higher purpose than to display the horrors of our bristly chin. There's no position in the world more comfortable for a bedroom mirror than over the fireplace; shaving can there be conducted with science and with gusto. And every other panel opened by some wonderful kind of fastening, into a cupboard big enough to stow away more habiliments than ever in our bachelor days we were likely to possess. A quaint little goggle-eyed commode, tortured into fanciful elegance, filled up one corner of the room; and a nondescript

table de toilette occupied the other. Here, in a three-cornered arm-chair, the senior piece of furniture in the whole room, have we watched over the flickering ashes of the wood-fed fire for hours; and often when we had shaken hands with our worthy host at ten, have we prolonged our vigil till early morn, amused with the acute ribaldry of *Tom Jones*, or lost in the intricate wit of *Tristram Shandy*. The wintry blasts would make the old casement rattle, but we only gave the flaming log another turn,—crack! crack! would go the wood, over went another leaf of the book, and so we continued till taper and eyelid alike failed us.

The Yellow Room was also a capital place to take up your quarters in for the night; there was very pretty sleeping in that vasty bed, where some four might snore side by side, and yet never doubt but that they were each sole occupant of the couch. But it was somewhat melancholy to turn in there by yourself; your taper, though it burned as bright as wax could make it, served to illumine only a small portion of the middle space, while in each corner of the apartment was a mass of black nonentity, of darkness visible, that might make you superstitious and ghostlike. It was something like going to bed in Westminster Hall, and from the fireplace to the bedside, when in the last stage of dishabille, was quite a journey. But there was such a host of arm-chairs with soft downy cushions, such a bevy of footstools, such a goodly couple of ottomans, such a preponderating wardrobe, and such ample splashing-room on the marble surface of the toilette, that here you could expatiate in the morning, and could walk in and out and round the chairs and tables and footstools and ottomans, and back again, for a mile or two before breakfast, simply while dressing. Here were some famous pictures of Cupids and Venuses, and a view of the park-gates, and a drawing of the alcove at the end of the long walk, and an enormous sampler that must have taken two or three years to work, with B. W. A.D. 1732, ending the series of devices. Here, too, were some portly bottles of arquebusade, and elder-flower water always kept over the mantel-piece, and a set of steps, like a small flight of stairs, to mount up into bed by; but the books on the shelves were of a staid and approved description,—Dryden's *Virgil*, *The Spectator*, and *The Whole Duty of Man*, keeping in countenance the sober black-letter Bible and Common Prayer, that held their accustomed station by the bedside. This was the chamber where the neighbouring squires and their dames, when they "crossed the country in a carriage and four," coming some five-and-twenty miles to dinner, used to be lodged for the night. It had

once been the nuptial chamber of our worthy host, but he has long since betaken himself to a quieter and less expansive berth.

Up above, and on the higher storey of the house, runs a long gallery, from one end right to the other—like the corridor of a barrack—with bedroom doors opening into it on either side at frequent intervals. Here are lodged the young ladies and gentlemen of the family; the governess and the tutor. The nursery is at one extremity, and the ladies' working-room at the other. The gallery is thickly matted all the way along; and on its walls are hung all those productions of the arts which are not judged of sufficient excellence to be admitted down stairs. There is an enormous map of the estate, and a bird's-eye view of the house, and the first flower-piece by aunt Mary, when she was a little girl at school in Bath, and Mr Henry's black spaniel stuffed, under a glass case. Here, on a wet day, the children can take their wonted exercise, and have even a game at cricket if necessary; here the lady's-maid and nurse-maid sit in the afternoon and work; here, any one who is a very particular friend of the family is allowed to come up and "see the children;" here you may have a swing or a romp according as you are inclined; and here, you cannot but confess, that you have found out one of the most useful and comfortable features of the whole edifice,—an in-door promenade, a domestic gymnasium.

We have been admitted into every room in the house, big and little, up stairs and down stairs. We know the quaint little smoking parlour that was, now turned into the squire's "office," or justice-room. Here he meets his steward and sits at a desk like any dirty cotton lord in his factory; here he keeps his guns and fishing rods; and here, on a small set of shelves, are his books—"Burn's Justice," and "Taplin's Farriery;" here one of his dogs is sure to be lying before the fire, and some aged tenant or other is ever coming in to ask for some little favour or other, which the kind landlord seldom refuses; here he determines what fields shall be put down in turnips this year, and what vagabonds shall be put in the stocks; in short it is the sacrarium of the house,—the place where the *primum mobile* of the whole is stationed; and, in our eyes, one of the snuggest and most useful appendages of the mansion.

Leading out from this room is a door that you might suppose would conduct you into a closet—but no; it opens on a flight of steps, down which you descend a little, and then find yourself at the edge of an opening that looks

like a well. This was part of the ancient manor-house, or castle, which was destroyed in one of the Border feuds, when the Welch and English, in the time of Owen Glyndwr, used to give each other rather warm reception. It then formed the dungeon or prison, which each chieftain of the march country had within his residence, and where he could detain refractory tenants or unpleasant neighbours. The worthy squire has now turned it into his Madeira cellar, and keeps in it a hogshead of the most particular East India that ever left the island and crossed the Line. He has it under his own special lock and key; tastes it only now and then, and threatens to keep it in the cask till his son comes of age.

The real cellars themselves are goodly things to see; none of your cramped up wee bits of things that they build now-a-days, but where, besides the usual stock of beer and strong ale, for the general run of the house and neighbourhood, there is left room enough for stowing away a hogshead brewed on the birth of each child of the family, and destined to remain there till they each attain their one-and-twentieth year. They are fourteen in number, and bear the names of those in whose honour they were filled; there, then, is Master Thomas and Miss Lucy, and Miss Susan and Master William; and so on, through the whole of the rising generation. As for the wine-cellar, 'tis an unfathomable recess; there is port and claret in it enough for the whole county; and the fountain in the court might be made to run sherry for a week before the stock would be exhausted. A pile of champagne-cases stands at one end, and some dozen bins of the extra particulars are built up by themselves. It would do good to the heart of any man to wander about these cellars for a morning.

And it is not far to the church—just beyond the outer garden-hedge where you cross the deep ha-ha, made to keep rabbits and cattle out, and close to the clump of birch-trees that rise on the hill,—an ancient edifice, with a bit of architecture of every period that English antiquaries can boast of. The tower "ivy-mantled," according to the most approved rule; the peal of bells thoroughly harmonious, and allowing triple-bob-majors to be rung on them with the full swing of the lustiest youths of the village. In the chancel is a formidable-looking pew, put up in Charles's time, all in black oak, with quaint figures of angels and dragons, and fantastic flowers, sprawling over every vacant space. Within, it is right comfortably carpeted and cushioned; in the midst is a stove to keep out the cool humours of the church, and to

comfort the squire's lady on a Christmas morning; while round the walls of the little chapel, which the pew fills, are all the family monuments, from the stiff-necked and stiff-ruffed knight of the days of the virgin Queen, down to the full-bottomed wig and portentous bands of the judge in the time of George II. A little plain white marble slab in one corner bears the simple inscription,—

MARIA.

1820.

But at this I have often observed that the good lady of the house never looks; and once, during the sermon, I saw the squire, while listlessly gazing upon it, allow the tears to glide down his cheeks as though he was a child.

There's a summer-house at the end of the nut walk, so hidden by bushes and winding paths, that it is hard to find the entrance,—a low squat-looking kind of a place, built in the Dutch fashion, with four windows, one in each side, and with a dome on the top; it stands close by a pond, and is all grown over with ivy. Indeed, when you arrive at the door, you have to remove the clematis and damask rose twigs with your hand, ere you can obtain an entrance. On the walls are numerous names commemorated both with pencil and knife; and in particular, under a true lover's knot, are deeply cut the letters M and H. It is a standing joke at the squire's table between himself and the amiable hostess—but I never could get to the bottom of it—only if any of the children or the company should by any chance make even the most distant allusion to their having been near the summer-house during the day, the squire immediately calls out, "Let me have a glass of that port! —Mary, my love, do you remember the summer-house?"—to which the invariable reply is,—"Henry, dear, I thought you had been more sensible: you must not, indeed!" However, the gardens are truly delightful,—full of rich parterres, and clumps of flowering shrubs; with trim-cut walks of yew and beech, over which the various kinds of the pine tribe and the cedar of Libanus rear their heads in sombre luxuriance. You may walk, I forget how many miles, in the garden, without going over the same ground twice in the same direction; but the gardener is apt to exaggerate on this head. There is enough variety to occupy the most fastidious for an afternoon, and beauty enough to occupy the lover of nature for a week.

Time passes happily and swiftly in a home like this; rides and field-sports, and public business, take up the mornings of the gentlemen; the fine arts, the interchange of neighbouring courtesies, and the visiting of the village give occupation to the ladies. Hospitality, and the sweetest display of domestic elegance, shed an indescribable charm over the cheerful evenings passed in their society,—the family are the honour and main stay of the parish, and, indeed, of many an adjoining one; while the house and grounds are the pride and boast of all that side of the county.

EVENINGS AT SEA.—NO. III.

THE ship's surgeon was a favourite with us all, he was a pale sickly little man, of some five or six-and-thirty years of age, with lank yellow hair, and very little of it, even such as it was. He was so quiet and unassuming, that he rarely joined in the conversation, but he listened with great attention, even to the dullest among the narrators, and whenever any thing pathetic was brought forward, a misty twinkling was sure to be visible in the tender-hearted little doctor's small green eyes. The qualities of his head were unfortunately not equal to those of his heart; every effort he had made to establish himself in a practice had failed; in these attempts he had consumed the pittance of his inheritance, and he was now obliged to obtain a living in the not very lucrative or agreeable situation of surgeon to a sailing packet. As he seldom spoke on any subject, and scarcely ever of himself, it was some time before we discovered, that, in the pursuit of professional advancement, he had for a short period given his services to the unfortunate British Legion, during the late civil war in Spain. With great difficulty we persuaded the modest little man to give us the benefit of some of his recollections, while an actor in those scenes of stirring and melancholy interest. He commenced timidly, but warmed with his theme as it continued, and although somewhat discursive and unconnected in his narrative, he did not fail to interest his hearers. Thus he spoke.

THE SURGEON.

My father had been a medical officer in the East India Company's service, but died while I was still very young. My mother was left with me and two sisters, many years older than myself, to provide for, out of her widow's pension, and a small sum of money her husband had saved during his stay in India. We took up our abode in an humble but neat house, not far from London, and as soon as I was of sufficient age, I was set to work to prepare myself for my late father's branch of the service, as inexpensively as possible.

My progress was not very rapid, although I was by no means an idle boy; indeed, on the contrary, I did my very utmost to get on, as the best way to

reward my poor mother for the strict economy that enabled me to be kept at school. On account of my steady ways, the other boys often teased me, and laughed at me a good deal, but being convinced that I was doing what was right, I bore it as I best could.

However, on one occasion I did give way to bad temper; on returning to school after the vacation, I was about to unpack my little trunk, and arrange its contents, in the chest of drawers, when one of the boys who used to annoy me most came into the room. He saw that my clothes were not very new, though they were as well brushed and as tidily packed as if they had been better; and my linen was, perhaps, a little coarse, but then my mother had mended it all very neatly, and had it washed as white as snow before I left home. He teased me about having such "poor things," as he called them, and threw some dirty water upon them. This made me very angry, but when he laughed at the careful way my mother had packed them, my passion got the better of me, and I tried to put him out of the room. I was but a weak boy, however, and he was a strong one, so he beat me till I was not able to stir, and then threw all my neat clothes out over the floor and stamped upon them. This made a great impression on me at the time; I do not think I shall ever altogether forget it, but I am very proud to feel that I soon forgave it, and the day came some years after when I had the power to do this boy a great kindness; I gladly did what I could for him, but he proved himself altogether ungrateful for it.

In due time I left school, and entered upon the study of medicine; it was necessary for me to work hard for my final examination, not being as I before said, naturally very quick in learning. When the time came I was so frightened and anxious, that I could scarcely answer a word, and although, perhaps, better prepared than some of those who passed, I was turned back. My poor mother was much grieved at this, but tried to cheer me on to better success next time. I was also greatly discouraged; nevertheless I sat down patiently to begin my studies over again, and at last succeeded in getting my certificates.

My next step was to place over our door a board, bearing my name in gilt letters, with "Surgeon" under it, and a hand with a finger pointing round the corner to the little side door where the patients were to enter. I also put an advertisement in a newspaper, and told those among the neighbours with whom we were acquainted that I had now started in business. Being of a

hopeful disposition, I expected that every day some lucky chance would occur to bring me at once into great practice; as I had often read and heard of this having happened with other people. But a long time passed away, and no sudden occasion arrived where my help was called for; except, indeed, one frosty morning when a poor old man slipped on the pavement close by our house, and broke his arm. Seeing "Surgeon" over my door, some people carried the sufferer there, and as I was in waiting, left him in my charge. I took great pains with this my first case, but was very nervous about it, feeling sure that all eyes were upon me; besides, the poor old man told me that, if the use of his arm were not soon restored to him, he should be driven to go to the workhouse. He could not move that day, so I made up a sort of bed for him in the surgery; the following evening his son came for him, and took him away. I had no money to give him, but seeing that his shoes were very bad, I let him have a pair of mine, that were not quite worn out; he then went his way, after having thanked me heartily. I pitied the poor old man very much, and would have been glad to have heard that he had done well; besides, there was my professional vanity interested in the business; it so happened, however, that I never heard any thing more of my patient.

At last, I began to fear that my gilt sign-board, advertisement and all, had fairly failed; no one called for me. I was very unhappy to be such a burden to my mother, instead of helping her on, as I had hoped to do; but she never complained of this; she knew I would willingly work if I had the opportunity, and—as she said, "I could not make the people break their arms."

While thinking over my affairs, one January morning, at the door of the surgery, a young man passed by, whose face appeared familiar: he first looked at me, then at the sign-board, and at once claimed acquaintance as an old school-fellow. I invited him in, and we sat down together; he asked me if I was getting on well, and had many patients. I told him no, but did not omit to say that some months before I had set an old man's arm with great skill. As we talked on, however, it came out that, in spite of my old man's arm, I was in very low estate, and willing to undertake any honest labour, to get my bread, and help my mother. After a little thought, he asked me if I should like to be a military surgeon. I supposed he was bantering me as they used to do at school, for I had no great friends to get me such

promotion; but he seemed serious, and said, "I think I can get you a commission as surgeon in the army, that is, in General Evans' army in Spain." I had not heard or read of that General at the time, for I never saw newspapers, except the old one, in which my advertisement was printed. I was, however, rejoiced to hear of this opening, and when my old school-fellow left me, promising to let me know in a day or two as to what he could do for me, I went straight to my mother to tell her of my good fortune. She, good soul! did nothing but cry all the evening, and try to dissuade me from going; but I had made up my mind, come what might, to be a burthen upon her no longer. I did not tell her this as a reason, for it would have had no weight with her; but I dwelt very much upon the great advantage it would certainly be to me, and how getting such an appointment would be the high road to my fortune. In short, if she was not convinced, she at least saw there was no use in opposing me, so she reluctantly consented. In a short time my friend came to inform me that I had been appointed a supernumerary assistant surgeon upon the staff of the British Legion, then at San Sebastian; that a steamer was to sail from Greenwich in a few days, to carry out stores, and some recruits to the army, and that I was to take medical charge of the latter. My friend was also to go in the same vessel. I was very busy till I sailed in selling whatever I could part with, getting my outfit, and above all, in trying to comfort my mother and sisters. I provided myself with a Spanish grammar, that while on the voyage I might lose no time in learning the language of the country where I was going. At length the day of parting came; I shall say nothing about that; indeed, I have said a great deal too much of myself already, but I wanted to show how I came to be in Spain. For the future I shall speak more of other people.

The men on board the steamer were a very turbulent and evil disposed set, apparently the dregs of the population; most of them were Londoners, probably well-known to the police. There was one among them, seemingly a broken down gentleman, the most desperate character I ever met. He struck his officer soon after we started, and vowed he would throw him overboard, for refusing to allow more brandy; but for this he was cruelly flogged, and as he was of a tender constitution, he remained under my care all the rest of the voyage.

We arrived at San Sebastian on the forenoon of the sixth day after our departure. The climate had changed rapidly since we left England behind us. On this morning the sun was shining cheerily, and the air genial as in our May. The harbour is a wondrously beautiful sight. Two high rocks rise boldly out of the sea; the little bay lies, crescent-shaped, between them, its waters deep blue, the sandy shore a golden yellow. The country beyond, for some distance, is undulating, of a rich verdure, saddened and beautified by ruined convents and villages. Next come the Pyrenees, clothed with dark-oak forests nearly to their summits; their crests huge rocks strangely shaped. Those great mountains are thrown together confusedly; you might think they were the waves of some stormy sea suddenly turned into stone. Many among them are of a great size; far as the eye can reach rises peak over peak, bluer and fainter in the distance, the outline more irregular and indistinct, till at last the blue of earth and the blue of heaven are one. The rugged little island of Santa Clara is midway between the rocky points of the crescent-harbour; it lies to the right hand as we enter the shallow and dangerous waters. On the headland beyond stands a lighthouse, now turned into a fortress. We could see in the distance little dark figures moving about this tower like mites on a cheese, and swarming up to the top, probably to look at us. "Those are Carlists," said my friend. How I strained my eyes to see them! Real, living enemies—men pledged to slay us with shot and steel—in fight or in calm vengeance! But we have left our homes and come over the sea to slay them! A few days, and we shall meet once, we who have never met before—some of us not to part again, but to lie down in a long sleep close together, perhaps to cross each other's path no more in this wide world. Away, among those blue mountains, mothers are sadly thinking of their soldier sons, the little moving specks before us, perhaps almost as sadly as mine thinks of me. That sun warms us and our foes alike; and, from far beyond, He who bade men to "love one another," looks down with sorrowing pity on us both. I spoke some of these thoughts to my schoolfellow; they did not please him much; so he told me that I was only a doctor, and knew nothing about glory. I had then no more to say.

The town of San Sebastian lay on our left hand, walled and bastioned in with jealous care. A sandy peninsula connects it with the land; a huge rock, crowned with an embattled citadel, shelters it from the sea. This was the first time I had ever seen a strange country, but I have been much about the world since then, and have not seen so foreign a looking place any where

else, or any fairer sight than on that January morning. Three large war-steamers lay as near the quays as the depth of water would allow; some thousand of Spanish troops were disembarking from them in dozens of boats and barges, each regiment, as it was completed, throwing themselves into a long line upon the beach, while their magnificent bands cheered them, after their weary voyage, with hymns of liberty. Then, in a little time, they marched away to the undulating green hills, to take up their stations among some of the ruined villages within the lines. Thousands of the town's people, in bright gay dresses, welcomed their landing with loud cries of joy; hundreds of banners waved over the throng, and from a distant hill, where the red coats of the legion caught the eye, the English cannon thundered a salute.

My schoolfellow and I were soon ashore; and, after some little delay, found our billets in two rooms next each other, looking out upon the great square. Then we went forth again to see the town. Oh such strange sights! such tall, gloomy Gothic churches, and such gaudy French shops! such bright eyes and such glossy hair! Oh the long black veils, in folds of wondrous grace, and the proud neck, and tiny feet, and stately step! And sullen men, wrapped in dark heavy cloaks, and gay dragoons, and plumed aides-de-camp, and plaided Highlanders, and sombre riflemen, and nuns and priests, sailors and muleteers, soldiers with crutches, bandaged heads, and pale faces, and hardy peasants with scarlet cap and sash, and Biscayan girls with ruddy checks and long fair hair hanging in plaits over their falling shoulders. We could scarce win our way through this vast masquerade—our eyes confused by bright and varied colours, and our ears by martial music, distant firing, rattling of hoofs and wheels, and the ceaseless clamour of Babel voices. Now a string of fifty mules would trot past us, with their jingling bells and gay caparisons; then a half-naked crowd of drunken legionaries burst through the throng with frantic cries and gestures; again a battalion of Spanish grenadiers, clothed in dark gray coats, with measured step and glittering bayonets, press up the narrow streets.

Soon after nightfall all was still in the town; the loiterers had gone to their homes, the soldiers were recalled to their barracks, the shops and markets were deserted. Few cared to pace the streets when unprotected by the light of day, for the thirst for gold and blood was strong among the fierce men brought here in those evil days; and the turbulent legionaries at times did

frightful outrage in their drunken fury. My friend and I dined at a small inn, and about ten o'clock at night bent our steps towards the billets. As we went our way, we suddenly saw a bright flame shoot up from behind a street at some distance, and, urged by curiosity, hastened to the place whence it arose. We found a large wooden stable on fire. Many noble English horses, belonging to the officers of the Legion were in the building; some of the soldiers, the grooms and their families, occupied the loft above. The mischief had but just begun; some straw was blazing at the door; on it was lying a drunken soldier with a pipe in his mouth, probably the cause of the fire. Though he must have been somewhat scorched, he seemed to regard the whole matter with stupid indifference. My friend rushed at him and shook him vigorously, calling out, "You are on fire—the city is on fire." The drunken man barely winked his eyes, and tried to go to sleep again, mumbling—"City! city! what do I care for this city or any other city—barrin' the city of Cork." However, we dragged him away, and put out the fire, already consuming his clothes, in a wet gutter, where he went to sleep again more at his ease, as soon as he had ceased abusing us for disturbing him.

Meanwhile crowds of people assembled, uselessly swarming about the burning stables, and embarrassing those really at work. The blaze spread rapidly, and in a very short time the roof took fire. All the horses, and, as we thought, all the people had been got out of the building, so we stood looking on in indifference, when a poor Irishwoman, apparently in a transport of despair, rushed through the throng, and cried, "Oh my child! my poor child!"

"Where—where?" shouted a dozen eager voices.

"Oh God help me! up in the loft, to be sure. Oh good gentlemen! save my child!"

It was a fearful risk—the wooden beams were blazing fiercely, smoke and even flame burst out of the upper windows now and then; one end of the building already tottered under the fiery storm, but the woman's shriek sounded louder in my brave friend's ear than the roar of the furious flame. His stout English heart was a ready prompter. In a moment he seized a ladder, placed it against an open window, ran up rapidly, and plunged into the smoke and flame, while a cheer of admiration burst from the crowd

below. There was a minute of terrible suspense; he was seeking the lost child in vain. Again he rushes to the window, half-suffocated with the smoke—"Where was the child?" he cried; "I cannot find it." My heart sank within me as I thought of the mother's despair; but she seemed less desperate than before, and, running under the window, cried—"Sorra a child I have at all, your honour; but since you *are* up there, will you just throw me down the bit of a matrass that's in the corner, for it's all I have in the world."

My friend sprang out of the window and slipped down the ladder. He was just in time; the next moment, with a tremendous crash, the main props gave way, and the whole, building fell into a heap of blazing ruins. Now I only tell you this long story, to show what quaint, wild creatures were those Irish that General Evans took with him to Spain.

In the room next to mine a young Spanish cadet, belonging to the 2d light infantry, was billeted. He was about fourteen years of age, the son of a grandee of Spain. As his family was great and powerful, it was only necessary for him to go through the form of joining the army on service, when a commission in the royal guard would be given him. We soon made acquaintance. He was amused by my odd attempts to speak Spanish, and I was charmed with him. He was a rarely beautiful boy; his, regular features, long curling hair, small hands and feet, would have given him the appearance of effeminacy, but for the vigorous activity of his movements, and his bright bold eye. The best blood of Old Castile flowed in his veins and mantled in his cheek. The little cadet was most dainty in his dress; his uniform was the smartest, his plume the gayest, his boots the brightest, his gold lace the freshest in his regiment. His cap, epaulettes, and sword made expressly for him very small and light, in proportion to his size; and a beautiful black Andalusian pony to match, completed his equipments.

He rode out with me one day—that is, he rode, and I walked, soon after we became known to each other. Our way lay through the principal street of the town; the tall, white, solid-looking houses on each side had balconies for every window, some of them filled with gay groups of Spanish ladies, honouring us with their notice, as we passed. When we approached a large handsome dwelling, with huge gates opening into a court-yard, the black pony began to show symptoms of excitement, and by the time we got directly opposite, he was dancing about a great rate. The little animal was

evidently accustomed at this place to such hints of the spur and rein as would make him display his paces to the greatest advantage. A tall, noble-looking woman and a graceful girl leant over the railing of the balcony, and kissed their hands to the cadet as he rode up. He answered by taking, off his gay cap and making a low bow, while the pony pranced more than ever. "Come, Doctor," said the youth to me, "You must know Dolòres and Pepita." He threw his bridle-rein to a boy, and before I could recover from my surprise, had hurried me up stairs, and into the presence of his fair friends.

They were, sisters—Dolòres ten years older than Pepita; both much alike, except in the stamp of years, so deep and unsparing in that sunny land. Their hair and eyes were black, glossy, and bright; their complexion deep olive; their teeth of dazzling whiteness; and there was something about the head and neck that made me, in spite of myself, think of swans and empresses. With what stately grace they welcomed us—with what a soft rich accent they spoke, telling us to "live a thousand years!" The little cadet declared that he was "at their feet;" but I suppose this was only a Spanish compliment, for instead of placing himself there, he kissed Pepita's hand, sat down beside her, and began talking with perfect familiarity. Dolòres said something to me, but I could not understand it; and being dreadfully confused, I went to the balcony, and looked up the street. The young girl and the little cadet had a great deal to say to each other; they chattered and laughed merrily; then at times Pepita would try to look grave, and, with a solemn face, lecture the beautiful boy, shaking her fan threateningly at him, when they would laugh more than ever.

At last I saw them looking at me, and heard him say that I was a doctor. Pepita seemed struck with a sudden thought at this, and rose up, beckoning to him and me to follow. She led us across the court-yard into a long, passage; a large heavy door was at the end. She pointed to it, and said something to my companion in a pitying voice; then, instantly resuming her gaiety, pulled off the cadet's cap, threw it at him, and ran off, laughing merrily. At the end of the passage she turned, kissed her little white hand, and we saw no more of her.

"I do love Pepita," said the boy; "I must win a ribbon in the battle, and then she will be so proud of her playfellow."

We opened the door and entered.

Near an open window lay an emaciated man upon a small camp bed. The fair complexion and blue eye bespoke him an Englishman. His face was covered with a bushy beard; his cheeks were hollow, his features pinched and sharpened. Pillows supported his head and shoulders; his arms lay helplessly on the outside of the bed, worn and thin; but the large joints, broad bony hand, and square-built shoulders, showed how powerful had been the frame that now lay wrecked before us. He raised his dull sunken eyes, as if by an effort, as we entered, and when he observed me, something like a smile of recognition passed over his wan face. I knew him at once, though he was strangely altered; he it was who, when a boy at school, had done me the insulting wrong. The blood rushed red to my face for a moment; but when I thought how pale and faint he was, it went back again, to my heart I suppose, for my pity yearned towards the poor sufferer.

He told me in a few words, slowly and painfully, that he had been wounded in a skirmish some weeks before, and afterwards attacked with typhus fever. His servant had that morning deserted, carrying off the little money he possessed, and every thing of value in the room. He was on unfriendly terms with all his brother officers, had quarrelled with the regimental doctor, and was now utterly destitute and helpless. The Spanish family, in whose house he was billeted, were very kind to him, particularly the two sisters; but they were in great poverty from these troublous times, and had sickness also among themselves.

With some difficulty I got my billet changed to a room adjoining his; my servant was then able to help the sick man: as I had still a little money left, I procured the necessary medicines, and such nourishment as I thought he might safely bear. During the day my duties in the hospital pretty well occupied me, but at night I was always able to sit up for some time with him, and be of a little service. As you may suppose, I did not see the less of my young friend, the cadet, by this change; he had so often to come to ask after the invalid for Pepita's information, that at length he began to take an interest himself, and during the crisis of the complaint, at a time when I was forced to be absent on my duties, he, with Pepita's assistance, took my place as a watcher, and they actually remained for hours without speaking a word lest they should waken the sick sleeper. However, I have no doubt they made amends for it afterwards. The sisters soon became very kind to me for

my gay little friend's sake; they joined him in teaching me their beautiful language, and though I was very stupid about it, I could not but make good progress under such kind teachers. The younger sister used to laugh at me and tease me very much, but I could not help liking her more and more; so the time passed rapidly away, and day by day the fair Spanish girl and her boy lover wound themselves closer round my heart, till they became dear to me as if they had been my children.

A tall, sallow, down looking Spaniard was a frequent visiter at the house of these two sisters: he was a man of considerable wealth, the son of a Cadiz merchant, and at this time captain of the carbineers—the company of "élite," in the second light infantry. The cadet and I both took a great dislike to this man, which he seemed heartily to return; there was a treacherous villanous expression in his averted eye that at once attracted observation, and something inexpressibly repulsive in his manner, servile and overbearing by turns. He appeared to possess some unaccountable influence over Pepita's father, for, though it was evident that his attentions and repeated visits were disagreeable to the young lady, every opportunity was given him of improving her acquaintance. This system was, however, as unsuccessful as it usually is; and the sallow captain's conversation was not the less distasteful from being obediently endured. The fact was, that large pecuniary assistance given to the family, unknown to its younger members, was the secret of the influence now exercised, through their parents, over their inclinations and tastes. The captain had become acquainted with Pepita, been attracted by her, and had made this obligation the means of forcing himself upon her society. He next tried to cause the prohibition of my little friend's visits; not indeed that he looked upon the boy in the light of a rival, but as a constraint upon his actions, and an interruption to his plans. Upon this point, however, Pepita proved unmanageable; and as there could be no fair ostensible objection to her little playfellow's intimacy, it still continued in spite of his sullen enemy.

In the mean time my patient was rapidly recovering; with his returning strength, I grieve to say, the natural evil of his disposition again displayed itself. He borrowed yet another small sum from my scanty store, under the pretence of obtaining some warm clothes to enable him to face the wintry air; but instead of so applying it, he lost most of it at play the first day he was allowed to venture out. The captain of carbineers was the winner, and

thus an acquaintance commenced between these men. They were in many respects kindred spirits—rapacious, profligate, and unprincipled,—and soon contracted a close alliance, offensive and defensive: the wealth and cunning of the one, and the recklessness and ferocious courage of the other, made their partnership most dangerous to any who might cross their path. The convalescent, unrestrained for a moment by any feeling of gratitude towards me or my little favourite, at once joined in a scheme against us. They could not venture upon using open violence, as that probably would have defeated its own object, by exciting the sympathies of our kind hosts in our favour, but they agreed to entrap us into play, and thus drive us into such necessities as might place us completely in their power. The Spaniard knew that his chance of gaining Pepita's favour was but small until her little favourite and guardian was out of the way; and his unworthy associate, as long as money was supplied, was indifferent as to what service might be required of him in return.

In due course of time the day came when the convalescent was pronounced cured, and fit for duty; to celebrate this event the captain of carbineers asked him to an entertainment, and the cadet and myself were also invited. We of course determined not to accept the hospitality of the man we disliked and suspected; but he pressed us very much; the ungrateful Englishman seconded him strongly, urging upon us that he could not enjoy his restored health, if those to whom he owed his recovery refused to join in his gladness. At length we reluctantly consented, and at seven o'clock in the evening all four assembled at the hotel. This was the opportunity fixed upon to carry out the designs against us. I shall not enter into the details of that unlucky evening; they succeeded but too well in their plans. Finding that it was in vain to tempt me to play, they made me drink the health of my late patient, in some drugged liquor I suppose, for soon after I fell into a deep sleep, and when I awoke, found myself alone in the room where we had dined, and the light of the sun streaming in through the windows. It was well on to mid-day.

Several minutes passed before I could recollect where I was, and how I had come there. When I had in some measure collected my scattered thoughts, and shaken off the heavy lethargic feeling that still weighed upon me, I hastened to seek my beloved little companion, anxiously wondering what could have become of him. I learned at the house where he lived that he had

returned very late the night before, apparently tired and excited; and that early this morning he had received orders to join a portion of his regiment that was posted on the lines two miles from the town. When my daily duties were ended I walked off to where the cadet had been sent. He seemed oppressed and worn out with fatigue and want of rest; I found him lying on a bank beside his tent thinking sadly on Pepita, his gay dress disordered, his long dark hair damp and neglected, and his eyes red with weeping. I took the poor child by the hand, and tried to comfort him in my best Spanish, but for a long time he would only answer, me with sobs, and at length he sobbed himself to sleep. I wrapped his little cloak round him, and watched patiently till he awoke, after about an hour's refreshing rest: then he found words, and told me all that had occurred to him since I had gone to sleep at the unlucky entertainment.

The host soon pleaded some excuse and left us, when the Englishman immediately proposed play; dice were laid on the table, but the cadet refused for a long time: he had never played in his life, nor felt its horrible temptations. But in his education this maddening vice had not been guarded against; no one had taught him that its beginning, was furious avarice,—its end destruction and despair. He was simply innocent of all knowledge of its pleasures and its woes. The tempter told him that to play was manly, and that if he feared to lose money, he had no spirit. So he played, and lost all he had, and much more. When too tired to go on, he wrote an acknowledgment of what he owed, under the direction of his dangerous associate; and then, very wretched and frightened at what he had done, went home and slept. He would not go, however, till the Englishman promised to see me safely to my billet. I need not add that the promise was not kept. It was about midnight when the cadet went away. My late patient then examined me closely to see that I slept soundly; finding there was but little chance of my interfering with their plans, he quietly shut the door, and left me, hastening to seek his employer and relate his success. A relation of my little friend, residing in the town, had been requested to watch over him, and supply his wants, while remaining at San Sebastian. To this person the captain of carbineers went early the next morning, and by affecting an interest in the boy, as a brother officer, managed to persuade the guardian to request that his ward might be removed at once from the garrison, to save him from the bad company and dissipated habits he had fallen into. The written acknowledgment of the heavy gambling debt, contracted only the

night before, was handed in while the accuser was yet speaking, with a demand for payment from an officer of the Legion waiting outside. This appeared proof conclusive. In half an hour the cadet was on his way to the lines, under strict orders not on any account to re-enter the city. Before he left, he had sent in all directions vainly searching for me to advise him in his emergency, and to make some effort to have this cruel and unaccountable sentence reversed.

The first week of March approached its end. From day to day the order to advance into the Carlist country was expected; the city and the surrounding neighbourhood were full of troops, the streets and roads literally blocked up with guns, ammunition waggons, and bullock-carts, passing and repassing for the armament or supply of the different divisions of the army. General officers were observed in frequent consultation with their leader. Aides-de-camp galloped about in all directions. Large buildings were cleared out, and churches prepared as hospitals with grim rows of iron bedsteads ranged along the vaulted aisles. Steamboats buzzed backwards and forward, between the harbour and the neighbouring port of Passages. Deserters came and went. Vague rumours seemed to float in the air. Some great and terrible day was plainly close at hand.

Information worthy of being relied on was obtained, that the greater part of the troops had been removed from our front for some remote operations, and that there now remained a force inferior to our own. But this was the flower of the Carlist army. Stout Chapelchuris—the "white caps" of Guipuzcoa, hardy shepherds from the hills of Alava, with the Requetè—the fiercest soldiers of Navarre. Their watch-fires blazed each night on the rugged slopes of the Pyrenees; and as the morning sun lighted the deep gorges of the mountains, from every hamlet and shady valley along the line arose their stirring shout, "For God, and for the King." All day long, in sunshine or in storm, they laboured at their intrenchments. The musket was laid carefully aside, and the pick-axe supplied its place. They dug, and delved, and toiled, fencing round each Biscayan cottage as if it were a holy place. Every gentle slope on the projecting spurs of the great mountains was cut and carved into breastworks and parapets; every ivied wall of their rich orchards was pierced with loopholes, every village church turned into a citadel. Men worked, women aided, children tried to aid. The hated Christinos, and the still more hated English were before them; behind them

lay their own loved and lovely land. And still, as they toiled, when betimes the wearied arm ached and the faithful spirit drooped, a shout would roll along the valleys and echo among the hills that nerved them with fresh strength, and cheered them with a firmer hope—"For God, and for the King."

Late on the afternoon of the 9th of March, aides-de-camp were sent to all parts of the lines with strict orders that no one should, on any account, be allowed to pass out. An hour after nightfall, the whole army was put in motion, the main part filed on to the glacis of the fortress of San Sebastian, battalion after battalion formed in close column, piled their arms, and lay down in their ranks, preserving a profound silence: the artillery horses were harnessed, and remained in readiness within the city walls. By about two o'clock in the morning, each corps had taken up its place. About eight thousand men were assembled on the space of a few acres; scarcely a sound was heard, not a creature moved through the streets of the town, not a solitary lamp made "visible" the darkness of the night. The sentries paced their round upon the walls as at other times, and their measured tread was distinct and clear in the noiseless air. And yet, though I saw nothing and heard nothing of them, I *felt* the crowded thousands round me; there was a heaviness and oppression in the atmosphere like the threat of a coming storm, and the ground seemed slightly to tremble, or rather throb, as if in sympathy with the hearts that beat above in hope or fear.

But among the dwellings within the city, there was anxious hurrying from room to room, and from hundreds of windows straining eyes strove against the thick darkness of the night:—wives, mothers, sisters, and those who, though they bore none of those hallowed names, yet loved most tenderly some one in the assembled host about to brave the chance of life or death. Dolòres and Pepita were alone in their large gloomy house; their father was on the walls with his company of the national guard. The convalescent was with his regiment on the glacis; I was there too, attached for the time to the same corps, and the odious captain of carbineers was also at the muster. And where was Pepita's play-fellow? They had not seen him since the night of the ill-fated entertainment. The second light infantry were drawn up close to the ramparts; of course, the brave boy is there too. "Ay de mi!" said the younger girl to Dolòres, "that I should not see the dear child before the battle." "It can't be helped," answered her sister, "and it is now full time to

go to rest; we are alone in the house too, and midnight has struck long since." But Pepita would not be persuaded; she seated herself in her father's great chair, and bade Dolores goodnight. The elder sister, seeing her determination, kissed her and went her way. After a little time, the young girl began to yield to fatigue; she cried heartily with anxiety for her dear child, but at length overcome by drowsiness, laid her soft round arm upon the table close by, her head then drooped gently till resting upon it, and she fell sound asleep; while her long black hair, broken loose from its bands, flowed in rich profusion over her graceful neck. She dreamed of her boy lover, for a fond sweet smile played upon her parted lips.

Now a little scene passes that it saddens me to recall to memory. The boy lover has contrived to get away from his regiment unobserved, and has reached the well-known door; it is only closed, not locked. He opens it very gently, and walks with noiseless footsteps into the room, so noiseless that the sleeper is not awakened, kneels down beside her, and for many minutes gazes on her lovely face in silent happiness. But time flies fast. He rises, takes gently in his hand one of her long locks, cuts it off, and puts it in his bosom; then bends over her, presses his lips softly to hers for a moment, and hastens away. And yet that night she only dreamed that he had bidden her farewell.

The cadet had not long rejoined his regiment, where I had sought him, when our conversation was interrupted by a loud trumpet-blast—the sound for the advance.—Ere it had ceased to echo, a broad blue flame shot up into the dark sky from the roof of a house in the centre of the city, illumining the sea and land around with a dismal and sinister light. For an instant, thousands of startled upturned faces shone livid in the sudden gleam, then vanished into darkness deeper than before. But soon, on a neighbouring hill beyond the lines, another flame bursts forth; again from a high peak of the Pyrenees; and again and again, further and further away to the mountains of Navarre, the traitor signal fire flashed forth the notice of our march,—and from that hour every city and town, village and hamlet of the north sent forth its armed men to crush us in defeat.

A few battalions went on in front, the artillery followed, next came the main body of the army. We crossed the little river Urumea over the wooden bridge close to the town, followed the road towards Passages for some distance, and then turned into the hilly lands to the south-east of San

Sebastian. The heads of columns took positions on or near Alza heights, forming by regiments as they came up, still under cover of the darkness. But though the march was conducted with great order and silence, the heavy rumbling of the guns over the stony roads, and the measured tramp of thousands of armed men were plainly heard for many miles around. By dawn of day the army was in order of battle, with the artillery in position commanding the Ametza hill, where a small Carlist force was intrenched.

Between these opposing forces was a hatred far deadlier than the usual animosity of war. The Christinos and Carlists thirsted for each other's blood, with all the fierce ardour of civil strife, animated by the memory of years of mutual insult, cruelty, and wrong. Brother against brother—father against son—best friend turned to bitterest foe—priests against their flocks—kindred against kindred. "For God and for the King,"—"For Liberty and Spain." But to our foes, we of the British Legion were the most odious of all; strangers, mercenaries, heretics, scoffers, polluters of their sacred soil; so did they term us. For us there was no quarter; in the heat of battle, or by cold judicial form, it was all the same: to fall into their hands was certainly a tortured death. Their king had issued the bloody mandate; they were its ready executioners. At different times, and under different circumstances, many of our men had fallen alive into their hands, but the doom of these unfortunates was always the same. About a week since, five Scottish soldiers, while cutting wood, unarmed, in a grove close by our lines, were suddenly seized, bound, and carried away to Hernani, the nearest town; they were tied to stakes in the great square, and shot to death, slowly, with many wounds, commencing at the feet, and gradually rising higher, till a kind bullet struck some vital spot. One of these victims was a brawny giant with a huge black bushy beard; I recollect him well, it was said he had been the Glasgow hangman. Our men swore frightful vengeance; a black flag—unsanctioned by the authorities—waved over Alza fort; and as orders were given by the generals for the safety of the enemies who might be taken, it was agreed among the soldiers that there should be *no prisoners*.

Some shots from the English artillery on Alza heights began the battle; as the smoke curled up in white wreaths through the pure morning air, the deadly missiles fell lazily into the Carlist breastworks, and burst with destructive accuracy. At the same time, the Irish brigade of the Legion crossed the valley between us and the enemy at a rapid pace—for a time

hidden in the mists of the low grounds—but as they neared the hostile parapets they re-appeared, ascending the sloping hill, then their pace increased to a run, and at last they broke, and rushed like a flock of wolves upon the foe. The Carlists waited till the assailants were close at hand, fired one sharp rattling volley into their leading files, and, abandoning the position, fled rapidly down the opposite side of the hill. An English brigade, consisting of the rifles and two London regiments, had at the same time attacked the intrenchments on our right, threatening to cut off a retreat should an effort be made to hold them against the front attack. My duties lay with this portion of the army.

Some time was now passed in pushing our line forward to the new position we had so cheaply gained. The English brigade skirmished against feeble detachments of the Carlists in the hollow to our right, by the banks of the Urumea. In front of the Ametza heights, lay a lovely valley ornamented with picturesque cottages and orchards; to the left there projected into the low grounds a wide elevated platform from the stony hill of San Gerónimo; beyond this stony hill was the main road to France, the object of our expedition. Some Spanish battalions were pushed across the low grounds to our left front, and briskly attacked the platform; they made, but slow progress, for the Carlists fought stoutly for every foot of ground. Soon, however, the lumbering guns followed, and opened their murderous fire; fresh troops pushed on till the platform was gained, and the defenders retired slowly up the stony hill. But here there was a check. Protected by their parapets, and aided by the difficulties of the rocky slope, the Carlists held their ground, determined, come what might, to cover the great French road. Battalion after battalion of the Christinos, charged this height in vain. The regiment of the Princesa, more than two thousand strong, the pride of the sunny south, was beaten back three times, and left its best and bravest dead among the rugged rocks.

Among the inhabitants of these Biscayan provinces, some few had joined the constitutional cause. Perhaps their motives for so doing may not have been purely political, or altogether abstract ideas about liberal governments. However, they formed themselves into a free corps about one thousand strong, and from their fierce courage, hardihood, and knowledge of the country, they were more useful to their friends, and dangerous to their enemies, than any troops in the Queen's army. The fact was, that a great

proportion of them were deserters, malefactors escaped from justice, or desperate, villains from other European nations. They wore red jackets like the Legion, with waist-belts containing their bayonet and ammunition, a blanket twisted like a rope, passing round over the left shoulder and under the right arm, was their only additional burthen, and a red flat cap or Boyna completed their equipment; this last was called in the Basque tongue Chapelgorri, and from it the corps derived its name. They chose their own officers, owned but little obedience even to the generals, claimed the right of leading the advance, gave or took no quarter, and plundered unmercifully upon all occasions. These peculiar regulations, though rendering them terrible in war, were attended with certain inconveniences to the members of the corps. They were hunted like wild beasts by their enemies, often condemned and shot for mutiny by their own leaders, and stabbed in midnight by brawls by one another. The result of all this was that on the morning of the 10th of March, only three hundred and eighty Chapelgorris remained alive, to march under their chief "El Pastor."

At break of day, these fierce freebooters had started off on their own account from our far left, and made a dash at a place called Renteria, some distance within the Carlist country. Their attack was unexpected, and after a few random shots, the village was abandoned to them. In this poor place, there was very little plunder to be found, but they took what they could, and destroyed the rest; they chanced, however, upon some gold and silver communion plate in the churches; this they put upon a mule's back, and with laudable precaution sent to the rear; then having done as much with fire and steel as their limited time would permit, they plunged into the deep woody ravines lying between them and the hill of San Gerònimo, and with desperate daring made straight for the scene of strife, through this difficult and hostile country.

Just as the regiment, of the Princessa was driven back from their last fierce struggle among the rocks on the hill side, the Chapelgorris, to the great surprise of both friends and foes, emerged from a shady hollow, and shouting like fiends, charged suddenly upon the rear of the Carlists. For a little, they carried all before them, and at one time had actually cleared the parapets that had been so long and bravely defended; but, seeing the weakness of their assailants, and that the attack was unsupported, the Carlists soon rallied, and with a force of ten to one charged down the

bloodstained hill. The Chapelgorris held their vantage ground for many minutes, fighting desperately hand to hand with bayonet thrust, and even with the deadly stab of their long knives; but at length some squadrons of Lancers made their way through the rough stones, and piked them without mercy. About half their number, mostly wounded, made their way back into the Christino lines, and having lighted fires, proceeded with perfect unconcern to cook their dinners.

As I said before, the Christino troops held the broad elevated platform at the foot of the Stony Hill. To the right, between this high ground and the river Urumea, the English brigade of the Legion held the valley. At the extreme advance, by the bank of the stream, on a rising ground, there stood a small cottage, surrounded by a low stone wall, enclosing the little orchard; a handful of men of a London regiment, commanded by my late patient, were thrown into it, with orders to defend it as long as possible, and then to make good their retreat, should they see that the army found it necessary to retire. I was sent with this small detachment to assist the wounded. Our position was completely isolated from all communication with the main body, but to the left rear our flank was protected by a thickly wooded conical hill, held by half a battalion of the second Spanish light infantry; to the left rear of that again, was the broad platform, where our main force lay; from this elevation a threatening row of guns looked out upon the conical hill, extending their protection over its defenders. As long as this connecting position between us and the platform was held, we were safe, for the Urumea covered our right flank but the force appointed for this duty was under the command of the sullen and treacherous captain of carbineers. During the early part of the day, while the strife was raging upon the hill of San Gerònimo, we were in comparative quiet, only intent upon holding our ground, while, with the exception of a few daring skirmishers, every now and then rebuked by the artillery on the platform, the enemy offered us no annoyance.

About four o'clock in the afternoon, when all our repeated attacks upon the Stony Hill on the left had plainly failed, and it became evident that some other means must be found of forcing our way to the great French road, our chiefs began to withdraw their troops from the extreme left, narrowing their front preparatory to returning within the lines for the night. These movements released the stout defenders of San Gerònimo, and flushed with

their success, but unwearied by their labours, they passed rapidly along the slope of the valleys in front of the platform from left to right; sheltered from the fire of our artillery by the shade of the thick woods, they formed their columns for a desperate attack upon our extreme right—the cottage where I was, and the conical hill, upon the possession of which our safety depended. While these new dispositions were being made, the firing almost ceased along the whole line. We guessed pretty well what was coming, and prepared as best we might for the approaching storm.

Presently thousands of bayonets glittered in the bright sun-light among the trees in our front; the heads of three heavy columns issued from the wood and pushed across the valley against our positions. The main force assailed the platform, but could make no head against the fire of the artillery, and the masses of troops defending it; another body of some strength rushed up to our cottage stronghold, swarmed round it, and poured a deafening roar of musketry upon the doors and windows; we were instantly driven from the orchard to the shelter of the dwelling, but there we held our own, and the stout Londoners dealt death among the foe. Several men had been killed, and some badly wounded, while retreating from the orchard into the cottage, so my hands were full. I did my utmost, but could not keep pace with the work of destruction. The fire waxed heavier; the Carlists, though suffering severely, pressed closer and closer round us, animated with the hope that we might fall into their hands; but the conical hill is not yet assailed, and till it is lost our retreat is safe. The third attacking column has disappeared in a ravine to our left. Where will that storm burst? See, there they are! now they rise up from the deep hollow—the glittering bayonets and the terrible "white caps;" and now with a fierce shout, louder than the roar of the battle, they dash against the conical hill. We see no more; the thick woods conceal alike our friends and foes.

My late patient, the commander of our little garrison, had been already wounded in the head, but refused my aid with horrid oaths. A torn handkerchief was wrapped round his temples, his face and long grizzled beard were stained with blood, begrimed with smoke and dust; he had seized the musquet and ammunition of a fallen soldier, and fearless of the deadly hail of bullets, stood upright before a window firing with quick precision, then rapidly reloading. Nevertheless, every now and then, he cast

an anxious look beyond, to see how fared the strife upon the all-important hill.

And now the roar of musketry is heard among the trees, and a thick cloud of smoke hangs over the scene of the struggle, concealing the fortunes of the fight. But see! From the back of the hill furthest from the enemy, a tall man, in the uniform of an officer, hastens stealthily away; he crosses towards the river close to the cottage; though hidden by a bank from the Carlists, we see him plainly from the upper windows; his object is probably to escape unobserved down by the stream into the lines. He has thrown away his sword, his eyes are bloodshot, his face pale with deadly fear, and wild with terror. We look again: eternal infamy! it is the captain of carbineers. Immediately after this, the defenders of the hill, deserted by their leader and pressed by the superior force of the Carlists, gave ground, broke, and fled the valley. "That accursed coward has betrayed us," shouted our commander, fiercely. "But he shall not escape us, by ——." As he spoke he aimed at the fugitive and pulled the trigger, but before he finished the sentence, I heard a dull, heavy splash, as of a weight falling upon water; the musket dropped from his grasp, he threw his long sinewy arms up over his head, and fell back without a groan. A bullet had gone through his brain; meanwhile the object of his wrath ran rapidly past and gained the sheltering underwood by the stream in safety.

Our soldiers, instead of being daunted by the loss of their commander, were inspired with the energy of despair. They knew they might not hope for mercy from their fierce assailants, and determined to struggle to the last. All retreat was cut off, but as long as their ammunition lasted they could keep at bay. This, however, began soon to fail. They rifled the pouches of their dead comrades, and still, though almost against hope, bravely held on the fight.

The Carlists upon the conical hill were now exposed to the fire from the guns of the platform, and though in a great degree sheltered by the trees, they suffered severely. The Christino forces were, however, being gradually withdrawn from the field of battle, and the chances of our perilous situation being observed by our friends, became momentarily less; a vigorous rush upon the conical hill to gain possession of it, even for a few minutes, might enable us to extricate ourselves, but in the roar and confusion of the battle our little band was forgotten by the Spanish force, left to cover the withdrawal of the army—forgotten by all but one,—the gallant young cadet,

my generous friend. He knew that I was in the beleaguered cottage, disgracefully left to its fate by a portion of his own regiment; he saw that we still held out,—that there was hope that we might yet be saved. He hastened to the commanding officer of his corps, told of our perilous situation, and pointed out the means of extricating us. The orders were, that this regiment,—the second light infantry, should check the Carlist advance, till the main body of the Christinos had fallen back upon the positions taken in the morning. The generous boy who had gained a hearing by his gallant conduct through the day, urged his cause so earnestly, that at last it won attention; he pointed out how the recovery of the conical hill would effectually secure the retirement of the troops from annoyance, and that they would have the glory of saving the detachment of the Legion from destruction. The colonel, a gallant old soldier, himself an Englishman by birth, leant no unwilling ear, and the regiment received the order to advance.

Meanwhile, we saw with bitter sorrow battalion after battalion withdrawing from the platform, and the Carlist reserves advancing down the valley in our front to press on the retiring army. But when we had almost ceased to hope, a dark green column emerged from the woods in our rear by the water side, and in serried ranks, with steady step, marched straight upon the fatal hill. It dashes aside the opposing crowds of white-capped skirmishers like foam from a ship's prow; it gains the slope and nears the wooded brow, still, with unfaltering courage, pressing on, though men are struck down at every step. They are now close at hand; we feel their aid; our assailants slacken their fire, and give way; the path is nearly clear: when the hill is won we are saved. We can now plainly distinguish our deliverers—the Second Light Infantry, and in front of the leading rank the gallant cadet toils up the bloody hill. A crashing volley staggers the advancing files; but the youth cheers them on—one effort more. Hurrah, brave boy! hurrah for the honour of Castile! They follow him again; the brow is gained, they plunge into the wood; another rattle of musketry, and the Carlists are driven from the hill.

We seized the golden opportunity, and bearing with us those of the wounded who survived, made good our retreat. The few still capable of any exertion joined our brave deliverers, and retired slowly with them, but the Carlists pressed upon us no more that night.

The evening was falling fast, and the long shadows of the mountains covered the field of blood, when I sat down at the advanced post of our lines to await the returning column and meet the gallant boy, our deliverer from the merciless enemy. They marched slowly up along the road; for many wounded men, borne on stretchers, or supported by their companions, encumbered their movements. Then, as company after company filed past, I looked with anxious straining eyes for my dear young friend. But he came not. Even in the pride of their brave deed the soldiers seemed dull and sorrowful without his airy step and gallant bearing to cheer them on. Last in the ranks came a tall bearded grenadier, carrying something in his arms—something very light, but borne with tender care. It was the young cadet. His eyes were closed; his face wore a smile of ineffable sweetness, but was white as marble, and, like the smile on the features of a marble statue, there may be never again a change; for the fair child was dead.

The Captain of the ship had joined our group some time before, and listened attentively to the latter part of the story. When it came to this point, he cried out somewhat impatiently, "Hillo, Doctor! if you have nothing pleasanter to tell us, the sooner we turn in the better."

FLECHIER'S CHRONICLE OF CLERMONT ASSIZES. [\[23\]](#)

MANY of our readers, unacquainted with his writings, will remember the name of the gentle prelate and renowned rhetorician who delivered the funeral oration of the great TURENNE, accomplishing the mournful but glorious task with such eloquence and grace that the composition constitutes his chief claim to the admiration of posterity. We should say, perhaps, that it *did* constitute his principal hold upon the world's memory, previously to the year 1844, date of exhumation of a work likely to command readers longer than his *Oraisons Funébres*, or, than any other portion of the ten serious volumes published under the incorrect title of *œuvres Completes*. We can imagine the astonishment of an erudite book-worm, suddenly encountering, when winding his way through dusty folios and antique black letter, a sprightly and gallant narrative, sparkling with graceful sallies and with anecdotes and allusions *à la* Grammont; and finding himself compelled, by evidence internal and collateral, to accept the mundane manuscript as the work of a grave and pious father of the church. A courtly chronicle, in tone fringing on the frivolous, and often more remarkable for piquancy of subject than for strict propriety of tone, suddenly dragged from the cobwebbed obscurity of an ancient escritoire and put abroad as the production of a South, a Tillotson, or a Blair, would astound the public, and find many to doubt its authenticity. In bringing forward the earliest work of the amiable bishop of Nismes, the librarian of the town of Clermont had no such scepticism to contend against. Moreover, he had arguments and proofs at hand sufficient to confound and convince the most incredulous. True, there was vast difference in tone and subject between the literary pastime of the Abbé, and the results of the grave studies and oratorical talents of the reverend churchman and renowned preacher; but affinities of style were detectible by the skilful, and, in addition to this, there had crept out, at sundry periods of the present century, certain letters of Fléchier^{[\[24\]](#)}—letters not to be found in the so-called "complete editions" of his works—whose strain of graceful levity and

exaggerated gallantry indicated a talent distinct from that to which he owes a fame now daily diminishing; and prepared the few whose notice they attracted for a transition from grave didactics and inflated declamation to lively *badinage* and debonair narrative. The masses knew little about the matter, and cared less. Latin verses, complimentary discourses, and funeral orations, dating from a century and a half back, and relating to persons and events great and brilliant, it is true, but now seen dim and distant through the long vista of years, are not the class of literature to compel much attention in this practical and progressive age. As a constructor of French prose, Fléchier is unquestionably entitled to honourable mention. If his claims to originality of genius were small, he at least was an elegant rhetorician and a delicate and polished writer, to whom the French language is under obligations. As a man of letters, he formed an important link between the school of Louis XIII. and that of the *Grand Monarque*; he was one of the first to appreciate grace of diction, and to attempt the elevation and correction of a spurious style. His florid eloquence, however, not unfrequently wearies by its stilted pomposity, and, save by a few scholars and literati, his works are rather respected than liked, more often praised than read. He wrote for the century, not for all time. And his books, if still occasionally referred to, each day drew nearer to oblivion, when the publication of the *Mémoires sur les Grands-Jours tenus à Clermont* came opportunely to refresh his fading bays. The lease of celebrity secured by ten studied and ponderous tomes, exhaling strong odour of midnight oil, had nearly expired, when it was renewed by a single volume, written with flowing pen and careless grace, but overlooked and underrated for nearly two centuries.

Although scarcely essential to a just appreciation of the book before us, we shall cursorily sketch the career of Esprit Fléchier, esteemed one of the ablest of French pulpit orators,—one of the most kind-hearted and virtuous of French prelates. Born in 1632, in the county of Avignon, he early assumed the sacerdotal garb, and obtained occupation as teacher of rhetoric. At the age of eight-and-twenty, business resulting from the death of a relation having taken him to Paris, he conceived an affection for that capital and remained there. Having no fortune of his own, he was fain to earn a modest subsistence by teaching the catechism to parish children. Already, when professing rhetoric at Narbonne, he had given indication of the oratorical talents that were subsequently to procure him the highest

dignities of the church, the favour of a great king, and the enthusiastic admiration of a Sévigné. At Paris he busied himself with the composition of Latin verses, for which he had a remarkable talent, and celebrated in graceful hexameters the successes and virtues of ministers, princes, and kings. The peace concluded with Spain by Mazarine, the future prospects of the dauphin of France, the splendid tournament held by the youthful Louis, in turn afforded subjects for the display of his elegant Latinity. Fléchier had the true instinct of the courtier, exempt from fawning sycophancy, and tempered by the dignity of his sacred profession. And when he condescended to flatter, it was with delicacy and adroitness. Ambitious of the patronage of the Duke of Montausier, he knew how to obtain it by a judicious independence of tone and deportment, more pleasing to that nobleman than the most insinuating flattery. A constant guest in the Salon Rambouillet, he made good his place amongst the wits frequenting it, and when its presiding genius expired, it fell to him to speak its funeral oration. This was the commencement of his fame. From the hour of that brilliant harangue, his progress was rapid to the pinnacle of royal favour and priestly dignity. Unanimously elected member of the academy, he became almoner to the dauphiness, and was long the favourite court preacher, petted by the king and by Madame de Maintenon. His nomination as bishop was delayed longer than the high favour he enjoyed seemed to justify. At last, in 1685, he received his appointment to the see of Lavaur. The words with which Louis XIV. accompanied it, were characteristic of the selfish and smooth-spoken sovereign. "Be not surprised at my tardiness in rewarding your great merits: I could not sooner resolve to resign the pleasure of hearing you." His promotion to the bishopric of Nismes followed two years later, and there he founded the academy, and abode in the constant practice of all Christian virtues, until his death, which occurred in 1710, five years sooner than that of his royal patron and admirer. This provincial residence could hardly have been a matter of inclination to one who had so long basked in the warm sunshine of court favour. But the self-imposed duty was well and cheerfully performed. And we find the mild and unambitious churchman deprecating the benefits showered on him by the king. "It is a great proof your goodness," he wrote to Louis, when appointed to the rich and important see of Nismes, "that you leave me nothing to ask but a diminution of your favours." Strict in his own religious tenets, he was tolerant of those of others, and more than once, during the cruel persecutions of the

Huguenots, his sacerdotal mantle was extended to shield the unhappy fanatics from the raging sabres of their pitiless foes. "He died," says St Simon, "distinguished for his learning, his works, his morals, and for a truly episcopal life. Although very old, he was much regretted and mourned throughout all Languedoc."

It is pleasing to trace so virtuous a career, its just reward and peaceful termination; otherwise we might have been contented to refer to the period when Fléchier was tutor to the son of M. Lefevre de Caumartin, one of the king's council, master of requests, and bearer of the royal seals at the tribunal of the Grands-Jours. The future bishop had been at Paris about two years, when he accepted this tutorship. Four years more elapsed; he was in priest's orders, and already had some reputation as a preacher, when he accompanied M. de Caumartin to Clermont. It was in 1665, and Louis XIV. had convoked the exceptional court occasionally held in the distant provinces of France, and known as the Grands-Jours. "This word," says M. Gonod, in his introduction to Fléchier's volume, "which excited, scarcely two centuries ago, such great expectations, so many hopes and fears, is almost unknown at the present day; and one meets with many persons, otherwise well informed, who inquire 'what the Grands-Jours were?' They were extraordinary assizes, held by judges chosen and deputed by the king. These judges, selected from the parliament, were sent with very extensive powers, to decide all criminal and civil cases that might be brought before them, and their decisions were without appeal. They inherited the duties of those commissioners, called *missi dominici*, whom our kings of the first and second dynasties sent into the provinces to take information of the conduct of dukes and counts, and to reform the abuses that crept into the administration of justice and of the finances. The rare occurrence of these assizes, and the pomp of the judges, contributed to render them imposing and solemn, and obtained for them from the people the name of Grands-Jours. They were held but seven times in Auvergne," (the dates follow, commencing 1454;) "and of those seven sittings, the most remarkable for duration, for the number and importance of the trials, for the quality of the persons figuring in them, and for their result, are, without the slightest question, those of 1665-6. They lasted more than four months, from the 26th September to the 30th January. More than twelve thousand complaints were brought before them, and a multitude of cases, both civil and criminal, were decided. And, amongst the latter, whom do we see upon the bench of

the accused? The most considerable persons, by birth, rank, and fortune, of Auvergne and the circumjacent provinces, judges, and even priests!" Here we find the true reason why Fléchier's interesting memoirs of this important session have so long remained unprinted, almost unknown. It were idle to assert that want of merit caused them to be omitted, or at best passed over with a cursory notice, by collectors and commentators of Fléchier's writings. We have already intimated, and shall presently prove, that, both as a literary composition, and as a chronicle of the manners of the times, this long-neglected volume is of great merit and interest. And had these been less, this was still hardly a reason for grudging the honours and advantages of type to a single volume of no very great length, at the cost of the integrity of its author's works. If not included in any of the partial editions of the bishop's writings, or printed with his posthumous works at Paris in 1712, a nook might surely have been reserved for it in the Abbé Ducreux's complete edition, or in the less estimable one of Fabre de Narbonne. But no—such favour was not afforded. M. Fabre dismisses it with a curt and flippant notice, and Ducreux confines himself to a careless abstract, inserted in the tenth volume of his edition, as a sort of sop to certain persons who, having obtained access to the manuscript, were sufficiently judicious to hold it in high estimation. The Abbé alleged as his reason, that he thought little of the style, which he considered strange and negligent. We will not do him the unkindness to accept this as his real opinion. His true motive, we cannot doubt, was more akin to that loosely hinted at by M. Fabre, who, as recently as the year 1828, intimates that there might be some "imprudence" in raking up these old stories. In 1782 M. Ducreux may have been justified in apprehending detriment to his interests, and perhaps even danger to his personal liberty, as the possible consequence of his giving too great publicity to the chronicles of the Grands-Jours. The Bastille and *Lettres-de-Cachet* were not then the mere empty sounds they were rendered, seven years later, by the acts of a furious mob and a National Convention. There was still "snug lying" in the fortress of the Porte St Antoine, for impertinent scribes as for suspected conspirators. We cannot doubt that, by the affected disparagement of Fléchier's book, the Abbé Ducreux sought to veil his own timid or reasonable apprehensions, feigning, like the fox in the fable, to despise what he was unable (or dared not) to make use of. "This narrative," says M. Gonod, speaking of the *Mémoires*, "in which the manners and morals of the nobility and clergy of the period are sometimes painted in

such black colours, could not, as will be seen on perusal, be brought to light in the time of its author. More than a century later, the Abbé Ducreux did not deem it advisable to print it in a complete form. 'What interest,' he says, 'could the reader find in the recital of those old stories, some of revolting atrocity, others studiously malicious, and of depravity calculated only to shock susceptible imaginations and generous hearts? The history of crime is already too vast and too well known; it is that of virtue, and of actions honourable to humanity, that we should endeavour to preserve and disseminate.' Admitting this principle, M. Gonod very justly remarks, "the first thing to do would be to pass a sponge over history; and the virtuous Abbé forgot that nothing is more adapted to inspire horror of crime than the contemplation of its hideous face, and of the penalties that follow in its train. On the other hand"—and here we have the true reason—"the Abbé Ducreux feared to retrace these facts at a time when the descendants of the men most compromised in those terrible trials held the first places in the church, the magistracy, and the army: it would have been wounding them, he says, without utility to the public." Nearly sixty years later, M. Fabre de Narbonne allows himself to be fettered by similar unwillingness to offend the posterity of the noble and reverend criminals of 1666; for thus only can be explained his intimation of the possible imprudence of reviving those judicial records. In 1844, the librarian of Clermont writes thus: "This reason"—he refers to that alleged by Ducreux—"which I respect and approve, is extinct for us. Of all those families, two only, I think, are still in existence; and I believe that the present representatives of those once odious names are personally known in too honourable a manner to have to dread from Fléchier's narrative any lesion to their honour. I must add, moreover, that with respect to one, every thing has been long since published by Legrand d'Aussy, Taillandier;^[25] and that the other has received communication from me of all relating to his family, and sees no objection to its publication." From this paragraph it is manifest, that M. Gonod was not quite at his ease as to the effect of his publication. He *thinks* one thing, *believes* another, assumes altogether a doubting and deprecatory tone, defending himself before attack. The worthy bibliophile and editor was evidently in some slight trepidation as to the reception of his literary foster-child by the descendants of the dissolute and tyrannical nobility arraigned before the tribunal of the Grands-Jours. His apprehensions were not unfounded. It is certainly difficult to understand what could be risked and

who offended by the resuscitation—after one hundred and eighty years, and when French institutions and society had been so completely turned upside down by successive revolutions—of these antiquated details of feudal oppression, priestly immorality, and magisterial corruption. It argues singular tenuity of epidermis on the part of French *gentilâtres* of the nineteenth century, that they cannot bear to hear how their great grandfather, seven or eight times removed, oppressed his vassals by enforcing odious privileges, hung up his lady's page by the heels till death ensued, poisoned his wife, or confined a serf^[26] in a damp closet where he could neither sit nor stand, and where his face lost its form and his garments acquired a coat of mildew. Why the disclosure of these crimes—atrocious though they are, and characteristic of a barbarous state of society—should disturb the repose or cloud the countenances of the far-removed posterity of the feudal tyrants who committed them, is no easy question to answer. Are these susceptible descendants apprehensive lest the crimes of the French aristocracy, two hundred years ago, should acquire a peculiarly swart hue, in the eyes of existing generations, by contrast with the immaculate purity of corresponding classes in the nineteenth century? The misdeeds of a Senegas and a Montvallat, extenuated by the circumstances of the times, by a ruder state of society and greater laxity of morals, might well be forgotten in the infamy of a Praslin and a Teste. Whatever the reason, however, the fact is that the publication of the Grands-Jours was viewed with displeasure by various Auvergnat families. The edition consisted, we believe, of seven or eight hundred copies, of which the public bought a portion, and the remainder were purchased and destroyed by those whom the contents of the volume offended. The book is now unobtainable; and there appears little probability of a reprint in France. Under these circumstances, it is surprising that the Brussels publishers—whom no trashy French novel can escape—have not laid their piratical claws upon a book of such attractive interest.

Written during the four months that Fléchier passed at Clermont as one of the household of M. de Caumartin, the *Mémoires* are intended less as an historical record of the assizes than as a general diary of all the amiable Abbé saw, heard, and collected during his stay in Auvergne. Their nature scarcely admitting publication during the author's lifetime, we must consider their composition to have been a pastime, a manner of dispelling the tedium of long mornings in a provincial town. "Assuredly," a clever French critic has said, "no author ever wrote for himself alone; in literature,

as on the stage, monologues are purely conventional; in reality, one speaks to the public, without seeming so to do." If ever there was an exception to this rule, it was in the case of Fléchier. During the Grands-Jours, Clermont, crowded with functionaries and their families, with plaintiffs, defendants, and witnesses, from every part of the extensive district^[27] over which the court had jurisdiction, was a grand focus of gossip and scandal; and by this, Fléchier, as one of the household of so important a person as M. de Caumartin, was in the best possible position to benefit. It is by no means improbable, that a desire to retain the many pungent anecdotes that reached his ear, and also the more important and striking of the proceedings before the court, stimulated him to indite the four hundred and fourteen folio pages of manuscript now printed, with introduction, notes, and appendix, in an octavo volume of four hundred and sixty. He may have anticipated lively gratification in refreshing his memory, at some later and more tranquil period of his life, by a reference to the annals of those gay and bustling days. He may have had in view the delectation of the witty Parisian *coteries* by whom he was already held in high and well-merited esteem. And the modest preceptor, foreseeing not, at that early period of his career, the eminence he was destined to attain, may have indulged in pleasing visions of posthumous fame, founded on this graceful volume of memoirs. What we cannot suppose him to have contemplated, was its immediate publication; and to this we must attribute the capricious disorder, the frequent transitions, the sprightly *naiveté* and piquant negligence of a book written (as so few are written) for the author's private gratification, or at most for that of a limited circle of friends. With regard to the intrinsic merit of the work, we can hardly do better than quote M. Gonod. "Independently," says that gentleman, "of the curious facts it reveals, of the manners (still too little known) which it retraces, it will be for the intelligent reader one of the most precious literary monuments of the age of Louis XIV. It was composed ten years after Pascal's 'Provinciales,' when Corneille had already produced his masterpieces, at the moment that Molière brought out his 'Misanthrope,' when Racine prepared his 'Plaideurs,' and his 'Britannicus,' and Boileau published his first satires. These memoirs add a new gem to Fléchier's literary crown, by displaying qualities not to be traced in his previously-published works. Here one does not find that scientific formality of style which procured him the name of a skilful artisan of words; but the author, still young, and writing, as we may say, in play, or to exercise his

easy pen, lets the latter run on at random, whence often arises a certain *laissez-aller*, an apparent negligence, of which Legrand d'Aussy, who criticises it, felt neither the charm nor the value. Had he found declamation against reigning abuses, against the nobility, or against what he called superstition, he would have admired it. But the scholarly harmony of the style, the vein of subtle and delicate wit pervading the work, have completely escaped him. Let others having more right to be severe than the author of the 'Voyage en Auvergne,' point out occasional prolixity, romantic adventures, digressions, a superabundance of antitheses; let them even blame the coolness with which Fléchier—in times when such circumspection was necessary—relates horrible facts. I leave them to play this easy part, and prefer receding with the author to a period whose private and intimate customs are little known to me, observing with him the follies, and listening to the gossip of the day, laughing with him, enjoying his gaiety, and, at the same time, acquiring knowledge." Then come a few words of compliment and gratitude to the enlightened minister (M. Villemain) who encouraged the publication of the *Mémoires*. In the main we agree with M. Gonod, and are much more disposed to give ourselves up to the charm—scarcely admitting exact definition—which we find in Fléchier's work, and to cull the flowers of instruction and amusement so liberally scattered through his pages, than to sit down with the dogged brow of a hypercritic to pick out errors and carp at deficiencies. The kind-hearted Abbé, by his decorous gaiety, inoffensive satire, and occasional tinge of tender melancholy, surely deserves this much forbearance. Nor can we, considering the unassuming nature of his work and the circumstances under which it was written, allow ourselves to be angry with him for the abrupt flights and transitions by which he so frequently passes from the annals of crime to the recital of follies, from the lady's bower to the ensanguined scaffold, from the dark details of feudal oppression to the trivial tattle of the town; careless in some instances to terminate history or anecdote, to dispel the doubts and gratify the curiosity of the reader. Whilst recognising the historical importance and interest of a grave and minute account of the sessions of the Grands-Jours, we do not quarrel with our Abbé for not having transmitted it to us, but accept his heterogeneous tragi-comic volume as a graphic and amusing sketch of the vices, follies, and tone of French society in the twenty-third year of the reign of Louis, surnamed the Great.

At the last stage before Clermont, the town of Riom, Fléchier abruptly commences his narrative. It was the place of rendezvous for the members of the tribunal, who halted there to shake their feathers and prepare their pompous entry into Clermont. "At Riom," says the Abbé, "we began to take repose and congratulate ourselves on our journey. We were so well received by the lieutenant-general, and were lodged in his house with so great cleanliness and even magnificence, that we forgot we were out of Paris." The hospitable seneschal, moreover, took pleasure in showing his honourable guests all that was remarkable in the town and its environs, especially a young lady of great attractions, whose numerous charms of person and mind made her to be considered in that country as one of the wonders of the world. She was about twenty-two years of age, daughter of a certain President Gabriel de Combes, and without being a perfect beauty, she was deemed irresistible when desirous to please. The great praises Fléchier heard of her, raised his expectations to a high pitch, and when he saw her, he was disappointed. He admitted many merits, but also discovered defects. A person of quality belonging to that country, and whose name is not given, combated this depreciatory opinion, which the gentle Abbé willingly waived, merely expressing surprise that a lady of such merit should have passed her twentieth year without making some great marriage. The worthy country gentleman, his interlocutor, was astonished at his astonishment, being unable to conceive that the adventures of this pearl of Auvergne had not been trumpeted in the remotest corners of the kingdom. When at last convinced of Fléchier's ignorance, he volunteered to dispel it; and the Abbé, evidently delighted to be initiated into the *chronique scandaleuse* of Riom, gave him all encouragement. But because they were not at their ease for such discourse, but importuned by many compliments, in the drawing-room where this occurred, they got into the honest gentleman's carriage, and were driven to a certain garden, which passed for the Luxembourg of the district, and was much frequented in the fine season by the Riom fashionables. "There are fountains," says Fléchier, "and grottos, and alleys separated by palisades of a very agreeable verdure, which divert the eyes, and thick enough to keep the secrets exchanged by lovers, when they walk and talk confidentially. Although it was one of the finest of autumnal days, the arrival of Messieurs des Grands-Jours kept every body in the town, and we found more tranquillity and solitude than we had hoped for." Amidst the discreet shades of this suburban Eden,

Fléchier learned the gallant adventures of Mademoiselle de Combes, which he professes to set down verbatim, although it is easy to judge, how greatly the narrative is indebted to his consummate art as a narrator, far superior to what could reasonably be attributed to the Auvergnat squire or noble from whom he derived the facts; to say nothing of the impossibility of retaining word for word, and upon once hearing it, a narrative extending over thirty pages. But, throughout the volume, the same thing occurs. Give Fléchier a story to tell, and he imparts to it a character entirely his own, arranging it with infinite grace, attributing motives to the personages, and placing imaginary conversations in their mouths. This story of Mademoiselle de Combes, for instance, in itself a very simple case of jilting, acquires, in his hands, an interest peculiarly its own, and we follow it to the end with unabated amusement. A young gentleman of Clermont, of the name of Fayet, rich and amiable, of agreeable person and noble and generous disposition, and well allied, returned to his native town, after completing his studies at Paris, to marry Mademoiselle Ribeyre, daughter of the first president of the Court of Aids at Clermont. The marriage had been arranged between the respective parents, but some difference supervening, the lady's father broke off the match, and to prevent any possible renewal of negotiations, gave his daughter to M. Charles de Combes, so that Fayet arrived to find his mistress snatched from him, and to witness a rival's wedding instead of celebrating his own. Many persons would have been sensibly affected by such a misadventure, but he consoled himself with a good grace for the loss of a bride whom he had known little and loved less, paid the usual civilities to the new-married couple, and soon found himself on a friendly footing in their house. There he met the sister-in-law of his former intended, Mademoiselle de Combes, then a young girl of fifteen, endowed with every grace of mind and person that can be expected at that age, and her favour he seriously applied himself to gain. "He found a virgin heart," says Fléchier, "upon which he made a tolerably favourable impression; he made more expense than ever, gave magnificent entertainments, acquired the good will of most of the persons who habitually saw his mistress, and did all in his power to place himself favourably in her opinion, knowing well that esteem leads to tenderness by a very rapid road. On occasion he would address a few words to her in a low voice; and in his conversation would opportunely introduce generous and tender sentiments. These, the young lady, who had infinite wit and

sense, well knew how to apply; but although she was already a little touched, she had the art to dissimulate so naturally that it was impossible to penetrate her thoughts, and even those she most trusted knew nothing of her new-born inclinations." Such power of dissimulation, at so early an age, might have alarmed the lover, and given the aspirant to her hand matter for reflexion. Instead of that, it served to stimulate his passion, and he pressed the siege of her heart with renewed vigour. In a long conversation, detailed by Fléchier in the graceful but insipid language of the period, where the voice of passion seems cramped and chilled by the necessity of polished periods and elegant diction, Fayet paved the way to a declaration, which he had already commenced, when interrupted by the entrance of the sister-in-law. But his discourse, and the constancy of his attentions, had touched the heart, or at least wrought upon the imagination of the obdurate fair one; and the gallant, perceiving his advantage, impatiently awaited an opportunity to renew the attack. It soon occurred, whilst walking with some ladies and cavaliers in the same garden where Fléchier heard the tale. Accident divided the party, and the lovers found themselves alone. With trembling and hesitation, for his sincere and ardent passion made him dread the possibility of a refusal which his reason forbade him to think probable, Fayet avowed his love. The lady affected dismay, and uttered a cry, says the Abbé, that nearly pierced the paling; but she ended by permitting him to love her, and after two or three more interviews, confessed a reciprocal flame. Their amorous joy, however, was converted into bitterness and despair by the positive refusal of the President de Combes to sanction their union. The magistrate's motives for this refusal were in the highest degree absurd. One was, that M. Ribeyre having declined the alliance of Fayet, it was to be inferred the latter had less fortune than he received credit for; the second, still more ridiculous, was an idea that it would be disgraceful to his daughter to marry a man whom his daughter-in-law had refused. Fayet, we are told, was near dying of grief on receiving this rude and unforeseen blow. Retiring to his apartment, he wrote a despairing billet to his mistress, who, although also very desponding, returned an encouraging and consolatory reply, and there ensued an animated correspondence and long series of secret interviews, known of course to everybody but to the parents who forbade them. At last, the vigilance of the latter became excessive: Mademoiselle Combes, never suffered out of sight of her mother, who even slept in her room, was compelled to scribble her love-letters in haste, by

favour of a half-drawn curtain and a ray of lamplight, whilst the good lady was absorbed in her evening devotions; until at last, by reason of this painful constraint, or from some other cause, she fell into a state of languor, and was taken to the baths of Vichy. "She there recovered her health," says Fléchier, who manifestly sympathises with the sufferings of these constant lovers; "but the miracle was less owing to the waters than to secret interviews with her lover. He followed her in disguise, and remained hidden in a house adjacent to the baths, whither, under some pretext, a good lady conducted her, and thence, after a space of conversation, led her back to her mother. Never were the waters of Vichy more eagerly desired, or taken with more pleasure." After this, Mademoiselle de Combes, hoping to alarm her parents into acquiescence, took refuge in a convent, where she was received on condition that she should break off all intercourse with the world. But the superior, a lady of quality and friend of both parties, favoured the reception of letters, and even visits from Fayet to his mistress. The lover was smuggled by female friends as far as the convent grating. At last, Madame de Combes persuaded her daughter to return home, and treated her more kindly than before, but continued stanch in her opposition to the marriage. To be brief, this state of affairs lasted eight or nine years. "The thing went so far," says the Abbé, "that they swore fidelity before the altar, making profane vows in holy places, and even writing promises signed with their blood, and committing other follies peculiar to persons whom a violent passion blinds. By this time the lady was in her twenty-fourth year, and seeing herself near the age when the law exempts children from the control of their parents, she exhorted Fayet to perseverance, writing him to that effect."

Just at this time, M. Bernard de Fortia, a friend and college-comrade of Fayet, was appointed to the high office of Intendant of Auvergne. He was a widower, and, on arriving at Clermont, *il se pourvut d'abord d'une galanterie*. The object of his attentions was a young girl of eighteen, whose *embonpoint* added several years to her apparent age, and who was generally known as *la Beauverger*. "For we are accustomed thus to abridge the manner of naming, and find the word *Mademoiselle* useless, the name of the family sufficiently indicating the quality." With the unaffected ease and lively conversation of this lady, the Intendant was much pleased and amused, and saw a good deal of her, being also greatly diverted by her letters. "Sometimes she began them by some extravagance, as when she

wrote to him: '*The devil take you, sir!*' at others by tender pleasantries and by naivetés of her invention. Writing easily, she wrote much; and as she was one day told that if she continued she would produce more volumes than Saint Augustin, 'Ay, truly,' she replied, 'though, like him, I were to write only my confessions.'"

To the admirer of this brisk and buxom damsel, Fayet addressed himself as to an old friend, and in all confidence, to intercede for him with the parents of Mademoiselle de Combes. Fortia promised his best services, went several times to the house, and assured his friend that he took all care of his interests, but that it would be unwise to precipitate matters. These assurances he renewed in his letters to Fayet, who, being compelled about this time to make a journey to Paris, was received on his return with every mark of joy by the mistress of his affections. Still, although she had reached her twenty-fifth year, she seemed in no hurry to take the steps necessary to their marriage; she was less eager to hear from her lover, and less assiduous in writing to him. Some time afterwards, Fayet discovered that she was in correspondence with M. Fortia, and chancing to see one of her letters, he nearly fainted with surprise and grief at its contents. "Do not press me, Sir, I entreat you," wrote the perfidious beauty, "to reply very exactly to the last passage in your letter. You well know that word is difficult to utter, and still more so to write; be satisfied with the assurance that as a good Christian I strictly obey the commandment that bids me love my neighbour. Another time you shall know more." Poor Fayet sought his mistress, who denied having written to Fortia, and protested that her sentiments were unchanged. Persuaded of her dissimulation, and overwhelmed with sorrow, he addressed her in a strain of feeling wholly thrown away upon the calculating and deceitful damsel. "If my suspicions are just, Madam," he said amongst other things, "and you are more moved by the fortune of an Intendant than by the sincere passion of a lover lacking such brilliant recommendations, I feel that you will render me the most miserable of men; but I consent to be miserable so that you be the happier." The lady consoled him, taxed him with injustice in thus suspecting her after ten years' fidelity, dismissed him only half persuaded, and wrote to him that same evening to beg him to return her letters. Fayet saw that he was sacrificed. He sent back the letters, retaining only a few of the best, especially the one written in blood. To add to his annoyance, his false friend the Intendant had the hypocritical assurance to protest that he had done all in his power for him,

but that, finding all in vain, he at last, subjugated by the lady's charms, had pleaded his own cause. He then told him in confidence that he was to be married in a few days, and, with more anxiety than delicacy, entreated him to say how far his familiarity with Mademoiselle de Combes had been carried during the ten years' courtship. Gentle creature as the jilted suitor evidently was, he could not resist the temptation thus indiscreetly held out, and, without compromising to the last point the lady's reputation, he contrived, by his ambiguous replies, greatly to perplex and torment his rival. The latter, in his uneasiness, consulted other persons; the report of his indiscretion got wind, and was made the subject of songs and pasquinades, rather witty than decent. The marriage, which was to have taken place in a few days, had been several months pending when Fléchier heard the story, and the general opinion was, that the Intendant was only amusing himself, and that it would never occur. Meanwhile poor feeble Fayet could not get cured of his love; he thought continually of his lost mistress, took pleasure in praising and talking of her, sought excuses for her conduct, and only spoke of her as his "adorable deceiver." "The incidents of your narrative," says Fléchier, when thanking the obliging gentleman for the pleasure he had procured him, "are very pleasant, and you have told them so agreeably, that I find them marvellously so. If you ask my opinion, I take part with Fayet against his false mistress, and I wish that, for her punishment, the Intendant may amuse her for a while and then leave her; that she may then seek to return to Fayet, and that Fayet may have nothing to say to her. Heaven often punishes one infidelity by another." The *adorable trompeuse*, as we are informed by a note, ultimately married neither Fortia nor Fayet, but became the wife of a M. de la Barge.

If we have thus lingered over the love story with which Fléchier commences his *Mémoires*, it is because these milder episodes are, to our thinking, more agreeable to dwell upon, and, in their style of telling, more characteristic of the writer, than the details of barbarous crimes and sanguinary scenes with which, at a later period of the volume, we are abundantly indulged. We will get on to the staple of the book, the proceedings of the Grands-Jours. This tribunal, although, as already mentioned, it took cognisance of all manner of causes, civil as well as criminal, and judged offenders of every degree, from the meanest peasant to the highest noble, was intended chiefly for the benefit of the turbulent and tyrannical nobility, who in those latter days of expiring feudality, still

oppressed their weaker neighbours, murdered their dependents, and kept up bloody feuds amongst themselves. Such excesses and injustice were common in Bretagne, Dauphiné, and other provinces of France; but we cannot trace them as having taken place any where quite so late as in Auvergne, whose remote position and mountainous configuration, as well as the rude and obstinate character of its inhabitants, gave greater liberty and pretext for a state of things recalling in some degree the lawless periods of the middle ages. "The license that a long war has introduced into our provinces," says the King's letter to the *Echevins*, or chief magistrates of Clermont, "and the oppression that the poor suffer from it, having made us resolve to establish in our town of Clermont in Auvergne, a court vulgarly called the Grands-Jours, composed of persons of high probity and consummate experience, who, to the extent of the authority we have intrusted to them, shall take cognisance of all crimes, and pass judgment on the same, punishing the guilty, and powerfully enforcing justice; we will, and command you, &c." "This letter," (of which the remainder refers to the quarters to be provided for the judges, and to the consideration to be shown to their persons and quality,) "read, with sound of trumpet, upon the principal squares and cross-streets of the town, produced an effect difficult to describe. One can form an idea of it, only when the picture of the Grands-Jours, unrolled before our eyes by Fléchier, shall have permitted us to imagine the system of oppression under which the people groaned. The letter was like a signal of general deliverance." (Introduction, p. xix.) Of deliverance, that is to say, for the lower orders, the vast majority, who foresaw, in the severity and omnipotence of the dreaded tribunal, revenge for their long sufferings at the hands of arrogant and lawless masters. The aristocracy of the province, on the other hand, few of whom could boast clear consciences, beheld the arrival of the royal commissioners with feelings far less pleasing; and although a body of them, including many notorious delinquents, went out to meet and welcome the Messieurs des Grands-Jours, the ceremony was scarcely at an end when most of them took to flight, to await in distant hiding-places the subsidence of the storm of retribution. These were the gentlemen referred to in the popular song of the day, composed for the occasion, and which resounded in the streets of Clermont on the morrow of the receipt of the King's letter. It is given, at its full length of twenty-two couplets, in the appendix to the *Mémoires*, and breathes a bitter hatred of the unfeeling nobles and insolent retainers who

ill-treated the people—a savage joy at their impending castigation. One of the verses may be quoted, as comprising the principal hardships and extortions suffered by the peasantry.

A parler Français,
Chaque gentilhomme
Du matin au soir
Fait croître ses cens,
Et d'un liard en a six.
Il vit sans foi,
Prend le pré, le foin,
Le champ et les choux du bonhomme;
Puis fait l'économe
De ses pois, de son salé,
Bat celui qui lui déplaît;
Et, comme un roi dans son royaume,
Dit que cela lui plaît. [\[28\]](#)

"*Tel est notre plaisir*," such is our pleasure, the customary termination of all royal edicts and ordinances, was the closing phrase of the letter already cited, conveying the King's will to the authorities of Clermont. And the insolent assumption of the Auvergnat nobles had to yield to the strong will and energetic measures of the fourteenth Louis. Without dreaming of disputing the royal mandate, the guilty fled in confusion and dismay.

"On my arrival at Clermont," says Fléchier, "I remarked universal terror, there, and throughout the country. All the nobility had taken to flight, and not a gentleman remained who did not examine his conscience, recall the evil passages of his life, and endeavour to repair the wrongs done his vassals, in hopes of stifling complaint. Numerous were the conversions wrought, less by the grace of God than by the justice of man, but which were not the less advantageous for being compulsory. Those who had been the tyrants of the poor became their suppliants, and more restitutions were made than had been operated at the great jubilee of the holy year. The arrest of M. de la Mothe Canillac was the chief subject of consternation." Evil was the fate of the unlucky delinquents who fell into the clutches of the dread tribunal, before the severity of its zeal had been appeased by the

infliction of punishment, and daunted by the popular effervescence its first sanguinary measures occasioned. The Viscount de la Mothe was the most estimable of the numerous and powerful family of Canillac; he was much esteemed in the province, and by no means the man who should have been selected for condign chastisement, as an example to titled evil-doers. Nevertheless, the judges had scarcely arrived at Clermont, when their president, Monsieur de Novion, (himself distantly connected by marriage with the Canillac family,) and Talon, the advocate-general, agreed to arrest M. de la Mothe. The provost of Auvergne and his archers found him in bed, and so surprised was he at the intimation of arrest, that he lost his presence of mind, and gave up some letters he had just received from a mistress. At dinner, that day, his friends had bantered him about the Grands-Jours, but he thought himself so innocent, that he could not believe his danger. Nor would he, perhaps, have been interfered with, but for reasons which ought never to have swayed ministers of justice. The name of Canillac was in ill repute, as that of a turbulent and tyrannical family: M. de Novion desired to strike terror and prove his impartiality by arresting a man of first-rate importance, who was also a connexion of his own; and, moreover, the Viscount had borne arms against the king in the civil wars. The crime alleged against him could hardly be deemed very flagrant, and did not justify, at least in those days, the rigour of his judges. During the wars, M. de la Mothe had received a sum of money from the Prince de Condé, to be employed in levying cavalry. The Viscount sought assistance from his friends, and especially from a certain M. d'Orsonette, to whom he remitted five thousand francs to equip a troop of horse. The levies not coming in fast enough to please the prince, he flew into a passion with the Viscount, who, proud as Lucifer, would not put up with blame, abandoned Condé, and demanded an account from d'Orsonette of the cash intrusted to him. This person, however, neither produced his recruits nor restored the enlistment money, and, whilst acknowledging the debt, showed little haste to discharge it. Ill blood was the consequence; the two gentlemen met, each with retainers at his back, a fight ensued, D'Orsonette was wounded and his falconer killed. All this was an old story in 1665, and a malicious animus appeared in the eagerness of the court to revive it. La Mothe even obtained letters of pardon for the offence, but by a legal quibble these were nullified and made to serve against him. The evidence was very contradictory as to who had been the assailant, although it seemed well established that the

Viscount had greatly the advantage of numbers. At the worst, and to judge from Fléchier's account, the offence did not exceed manslaughter and would have been sufficiently punished by a less penalty than death, to which M. de la Mothe was condemned, and which he suffered four hours afterwards. Fléchier displays some indignation, cloaked by his habitually-guarded phrase, in his comments on the hard measure of justice shown to the poor Viscount. "I know," he says, "that many persons, who judge things very wisely, thought the president and M. Talon might well have consulted the principal of those Messieurs" (the members of the tribunal) "on this affair, and especially M. de Caumartin, who held so high a rank among them; and that they would have done better not to have thus spread the alarm amongst a great number of gentlemen, who took their departure immediately after this arrest. To prevent the escape of a man who was only half guilty, they lost the opportunity of capturing a hundred criminals; and every one agrees that this first arrest is a good hit for the judge, but not for justice." There was one very singular circumstance in the case, and which could have been met with, as the Abbé observes, only in a country so full of crime as Auvergne then was. The accuser, the person who laid the information, and the witnesses, were all more criminal than the accused himself. The first was charged by his own father with having killed his brother, with having attempted parricide, and with a hundred other crimes; the second was a convicted forger; and the others, for sundry crimes, were either at the galleys or in perpetual banishment, or actually fugitives. So that, to all appearance, the Viscount must have been acquitted for want of testimony, had not the president, by a pettifogging manœuvre, not very clearly explained but manifestly unfair, managed to turn against him his own admissions in the letters of pardon granted by M. de Caumartin, and in which it was customary to set down the criminal's full confession of his offences. Fléchier's account is, however, too disconnected and imperfect to afford us a clear view of the singular system of jurisprudence argued by this remarkable trial and sentence. The versatile Abbé does not plume himself on his legal knowledge, and indeed is rather too apt, as many will think, to turn from the rigorous and somewhat partial proceedings of the tribunal, to flowery topics of gallant gossip. The town of Clermont finds little favour in his eyes, and he doubts that there is one more disagreeable in all France, the streets being so narrow that one carriage only can pass along them; so that the meeting of two vehicles caused a terrible blaspheming of coachmen,

who swear there, Fléchier thinks, better than anywhere else, and who assuredly would have set fire to the town had they been more numerous, and but for the many beautiful fountains at hand to extinguish the flames. "On the other hand, the town is well peopled, the women are ugly but prolific, and if they do not inspire love, they at least bear many children. It is an established fact, that a lady who died a short time ago, aged eighty years, made the addition of her descendants, and counted up four hundred and sixty-nine living, and more than a thousand dead, whom she had seen during her life. After that, can one doubt the prodigious propagation of Israel during the time of the captivity, and may not one ask here what the Dutch asked when they entered China and saw the immense population, whether the women of that country bore ten children at a time?" If Fléchier, when inditing the lively record of his residence in Auvergne, contemplated the probability of his manuscript some day finding its way into print, it is evident that he cared little for the suffrages of the ladies of Clermont. Had he valued their good opinion, or expected the *Mémoires* to be submitted to them, he would hardly have ventured to note thus plainly—not to say brutally—his depreciation of their personal attractions. Ugly, child-bearing housewives! Such crude uncivil phrase would have been more appropriate in the day of the eccentric monarch who used firetongs to remove a love-letter from a lady's bosom,^[29] than in that of the graceful lover of La Vallière, who cloaked the extremity of egotism under the most exquisite external courtesy. Not often do we catch Fléchier thus transgressing the limits of polite comment. His keen perception of the ridiculous more frequently finds vent in sly and guarded satire. But the rusticity and want of court-usage of the Auvergne dames meet in him a cruel censor. "All the ladies of the town come to pay their respects to our ladies, not successively, but in troops. Each visit fills the room; there is no finding chairs enough; it takes a long time to place all these little people; (*ce petit monde*;) you would think it a conference or an assembly, the circle is so large. I have heard say that it is a great fatigue to salute so many persons at one time, and that one is much embarrassed before and after so many kisses. As the greater number (of the visitors) are not accustomed to court ceremony, and know nothing but their provincial customs, they come in a crowd, to avoid special notice, and to gain courage from each other. It is a pleasant sight to see them enter, one with her arms crossed, another with her hands hanging down like those of a doll; all their conversation is trivial (*bagatelle*;) and it

is a happiness for them when they can turn the discourse to their dress, and talk of the *points d'Aurillac*."^[30] Even the homage paid to his own talents and growing reputation is insufficient to mollify the Abbé and blunt the point of his sarcastic pen. A capuchin monk of worldly tastes, who passed his time at watering places, coquetting with sick belles and belles lettres, had read some of Fléchier's poetry, and spread his fame amongst the Clermont blue-stockings. Forthwith the Abbé received the visits of two or three of these *précieuses languissantes*, who thought, he informs us with less than his usual modesty,—"that to be seen with me would make them pass for learned persons, and that wit is to be acquired by contagion. One was of a height approaching that of the giants of antiquity, with a face of Amazonian ugliness; the other, on the contrary, was very short, and her countenance was so covered with patches, that I could form no opinion of it, except that she had a nose and eyes. It did not escape me that she was a little lame, and I remarked that both thought themselves beautiful. The pair alarmed me, and I took them for evil spirits trying to disguise themselves as angels of light." Then comes a dialogue, *à la Molière*—clumsy compliments on the one hand, modestly declined on the other, and at last the ladies take their departure, after turning over the Abbé's books, and borrowing a translation of the "Art of Love." "I wish," concludes the Abbé, "I could also have given them the art of becoming loveable." These incidents and digressions, petty in the abstract, will have a collective worth in the eyes of those who seek in the *Mémoires* what we maintain ought to be there sought:—a valuable addition to our knowledge of the manners, follies, and foibles of a very interesting period.

The comprehensive nature of the court of the Grands-Jours, competent to judge every description of case, is one cause of the motley appearance of Fléchier's pages. There was little sorting of causes, civil or criminal, but all were taken as they came uppermost, and strong contrasts are the result. We pass from farce to tragedy, and thence again to comedy, with curious rapidity of transition. Now we are horrified by the account of an atrocious assassination or wholesale massacre; turn the leaf, and we trace the derelictions of a rakish husband, or the scandalous details of conventual irregularities. Here we have a puissant count or baron brought up for judgment, or, more often, condemned by default; thereafter followeth the trial and sentence of a scoundrel-peasant, or unlucky *fille-de-joie*. The Grands-Jours would certainly have been improved by the establishment of a

court of appeal; many of the sentences needed revision, and the errors committed were seldom on the side of mercy. The reproach usually made to partial judges, of favouring the rich, and dealing hardly with the poor, would here have been unjustly applied, for it was the wealthy and powerful whom this tribunal chiefly delighted to condemn. These, it is true, in some degree neutralised the effects of such disfavour by getting out of the way; but their houses were razed, their lands confiscated, or struck with a heavy fine, and they themselves were frequently decapitated in effigy, a ceremony to which they attached but slight importance. After the execution of poor Canillac, the court flagged a little in their proceedings, and resumed their energy only towards the close of the session, and under terror of its further prolongation—one having already taken place. "Then," says Fléchier, "they applied themselves without pause or relaxation to the consideration of important offences, and despatched them so rapidly that they did not give us time to make ourselves thoroughly acquainted with the circumstances." Assassinations, abductions, and oppression, were the usual subjects of their deliberations; and so numerous were the condemnations, that in one day thirty persons were executed in effigy. These pasteboard punishments must seriously have diminished the *prestige* of the Grands-Jours, by imparting an air of ridiculous impotency to their proceedings. And amongst others, the Marquis of Canillac, a cousin of La Mothe, and the biggest and oldest sinner in the province, was greatly diverted by the bloodless beheading of his counterfeit. Fléchier believes it was matter of deep regret to this hardened offender that he could not look on at his own execution, as he had done once before when similarly condemned by the parliament of Toulouse. "He had seen his execution himself from an adjacent window, and had found it very pleasant to be at his ease in a house whilst he was beheaded in the street; and to see himself die out of doors, when perfectly comfortable at his fire-side." Judging from the smallness of the sum (thirty livres) set down in the account of expenses of the Grands-Jours as paid the painter, the decapitated portraits were by no means masterpieces of art, nor probably was it deemed necessary to obtain a very exact resemblance of the contumacious originals.

Although none ever ventured to cast a doubt on Fléchier's strict orthodoxy, he made himself remarkable by a spirit of tolerance unusual in that age, by discountenancing superstition, and by his enlightened disapproval of the abuses of the conventual system. A great doubter of modern miracles, he

scrupled not, when a bishop, to protest in a letter to his flock, relating to some miraculous cross, against "those who put their confidence in wood and in lying prodigies." His natural good sense and kindness of heart made him oppose the compulsory profession of young women. In the *Mémoires*, he relates an anecdote of a young girl, at whose reception as a nun M. Chéron, the grand vicar of Bourges, was requested to assist. The vicar, having donned his sacerdotal robes, asked the novice, in the usual formula, what she demanded. "I demand the keys of the monastery, Sir, in order to leave it," was her firm reply, which astonished all present. The vicar could not believe his ears, till she repeated her words, adding, that she had chosen that opportunity to protest against her destiny, because there were abundant witnesses. "If the girls who are daily sacrificed had as much resolution," says Fléchier, "the convents would be less populous, but the sacrifices offered up in them would be more holy and voluntary." When invested with the episcopal purple, the worthy man acted up to these sound opinions. "I may be allowed," says M. Gonod in his appendix, "to cite, to his glory and to that of religion, his conduct with regard to a nun at Nismes, who had not, like her sister at Bourges, had the courage to demand the keys of the convent, and who subsequently yielded to another description of weakness. Fléchier, then bishop of Nismes, extended to her his paternal hand, and in this instance, as in many others, approved himself of the same merciful family as a Vincent de Paul and a Fénelon." This story is told by D'Alembert in his "Eulogiums read at the public sittings of the French Academy," p. 421. An unfortunate girl, whom unfeeling parents had forced into a convent, was unable to conceal the consequences of a deplorable error, and her superior confined her in a dungeon, where she lay upon straw, scarcely nourished by an insufficient ration of bread, and praying for death as a rescue from suffering. Fléchier heard of it, hastened to the convent, and after encountering much resistance, obtained admission into the wretched cell where the unfortunate creature languished and despaired. On beholding her pastor, she extended her arms as to a liberator sent by divine mercy. The prelate cast a look of horror and indignation at the abbess. "I ought," he said, "if I obeyed the voice of human justice, to put you in the place of this unhappy victim of your barbarity; but the God of clemency, whose minister I am, bids me show, even to you, an indulgence you have not had for her. Go, and for sole penance, read daily in the Evangelists the chapter of the woman taken in adultery." He released the nun, and caused every care to be

taken of her, but she was past recovery, and died soon afterwards, blessing his name.

How can we, after reading such traits as this, criticise with any severity the occasional levity displayed in the *Mémoires*? How dwell invidiously on the small frivolities and flippancies of the Abbé, whose after life was a pattern of Christian virtue and charity? Short of a degree of perfection impossible to humanity, we can scarcely imagine a more charming character than that of Fléchier, whose very failings "leaned to virtue's side." His sincere benevolence and gentle temper display themselves in each page of his book, in every recorded action of his life. His professed principles—from which we can nowhere trace his practice to have differed—breathed a very different spirit to that usually attributed to the Roman Catholic priesthood. "Violence and oppression," he says, in a letter to M. Vignier, "are not the paths the gospel has marked out for us." His smallest actions were inspired by the same kindly maxims, by a spirit of tolerance and compassion for human frailty. The vein of satire we have exemplified by extracts is tempered by a tone of good-humoured *bonhomie*; and such sallies, moreover, could not have been intended to wound the feelings of persons in whose lifetime, it is pretty evident, Fléchier did not destine his book to publication. Neither can fault be fairly found with the occasional freedom of his language and peculiarity of his topics. What we esteem license in these strait-laced days, was regarded as decorous, and passed without censure or observation in those in which he wrote; and the most rigorous will admit the absence of all offensive intention. The Abbé is a chronicler; as such he puts down facts, unmutated and unabridged. If the words in which he clothes them have sometimes more of the courtier's easy pleasantry than of the churchman's grave reserve, we must make allowance for the spirit of the age, look to intention rather than form, and we shall admit that his *gaillardises* are set down all "in the ease of his heart," without the least design of conveying impure thoughts or immodest images to the imaginations of his contemporaries or of future generations. "If any wonder," says M. Gonod, "at Fléchier's language, as being sometimes rather free, I tell them he derived his freedom from his virtue; unreplicated by his conscience, he thought he might speak plainly: *omnia munda mundis*. As an historian, he understood the historian's duty differently from the Abbé Ducreux, differently from this or that obscure critic who may dare attack him; he took as a guide this maxim: 'Ne quid falsi dicere audeat, ne quid

veri non audeat.'—(*Cic. de Orat.* ii. 15.) We must also revert to the times in which he wrote; do we not see, if only by Molière's comedies, how much more prudish and reserved our language has become?"

Amongst the long list of crimes of which the Grands-Jours took cognisance, that of sorcery was not forgotten. "Conversation is an agreeable thing," says Fléchier, after three or four pages of gossip, including an anecdote of Mademoiselle de Scudéry and her brother, who had been arrested at Lyons on suspicion of high treason, for having discussed rather too loudly the manner of slaying the king in a projected tragedy—"but exercise is also necessary, and I know nothing pleasanter than to take the country air after having passed several hours discoursing in one's apartment. So we got into our coaches with some ladies, and went to visit the source of the Clermont fountains, one of the curiosities of the country." His elegant account of these springs and the surrounding scenery is alone sufficient to establish his reputation as a proficient in the descriptive art, and loses little by comparison with Charles Nodier's brilliant description of the same spot, the Tivoli of Auvergne. "On our return home we found M. l'Intendant there before us. He had come from Aurillac, and had had great difficulty in getting through the snow which had already fallen in the mountains. He had caused a president of the election of Brioude to be arrested, accused of several crimes, and especially of magic. One of his servants deposed that he had given him certain characters which made him sometimes rise from the ground, when at church, in sight of all the congregation. The Intendant having questioned the accused on this subject, he was so disconcerted that he nearly lost his senses; he fell into a furious passion, and then entreated they would not press him further, that he was not disposed to acknowledge any thing that day, but that on the morrow he would confess all the irregularities of his life. His prayer was granted, and M. de Fortia gave him in charge to four of his people. I do not know if the devil had promised to rescue him from the hands of a Master of Requests, or if, by his art, he bewitched his keepers; but it is certain he made his escape to the woods and mountains, where they have now for three days pursued him. Here is an instance how the devil is friendly and of good faith with those who love him, and how he deceives even Intendants. I was very sorry to miss this opportunity of hearing news of the witches' sabbath and of learning the secret of the characters; perhaps some good angel, hostile to his demon, will deliver him again into the hands of justice." This tone of mockery, when

referring to a belief pretty universal in those days,—the belief, namely, in witchcraft and sorcerers—contrasts oddly enough with the strain of grave credulity in which the same writer tells the touching tale of a shepherd and shepherdess who gathered flowers together in the meadows, held tender rendezvous in a green alley formed by nature at the foot of a rock, made reciprocal presents of fruits and flowers, and drank the water of the limpid fountain out of the hollow of each other's hands. This loving pair, the Corydon and Phillis of Auvergne, were ultimately united in the bonds of wedlock, when, behold, a malicious farmer, two of whose ducks had been devoured by Phillis's poodle, laid a spell upon them, greatly to the hindrance of the connubial felicity they had so fondly anticipated. The charm was dissolved by the prayers and interposition of Mother Church; and this little history, Fléchier admonishes us, "shows that we ought not to treat these enchantments as fables." Notwithstanding which injunction we should think the Abbé was indulging in a bit of grave fun, did he not quote Hincmar, archbishop of Rheims, and Virgil's Eclogues and other authorities, in support of the authenticity of these malevolent practices.

It could hardly have excited surprise, if, in a narrative of criminal assizes written by a churchman, the misdeeds of the priests had been softened down, lightly passed over, or even entirely suppressed. The least jesuitical of Abbés might have reconciled such a course to his conscience by the argument that, although the crimes of the individuals merited infamous publicity, the interests of religion and of the ecclesiastic body would suffer by their revelation. No such plausible plea is set up by Fléchier, either mentally or openly. He is unsparing in his censure of the laxity of the clergy, and records their derelictions as freely and unreservedly as those of the lay population. A sincere lover of religion, he entertained an honest detestation for those who, under its mask, violated its tenets; and he pillories a priest as readily and heartily as he does Mad Canillac, or Montvallat the extortioner, or any other of the profane and tyrannical gentry of Auvergne. And some very pretty tales he finds to tell about his brethren in black, conveying most unflattering ideas of their morality and Christian virtues. Amongst others, is that of a certain *curé* of St Babel, who was condemned to death for murder, upon very strong evidence—a companion of the slain man having sworn positively to the murderer's identity, and there being besides a mass of circumstantial evidence. When the *curé* had been hung his innocence was discovered. He denied to the very last moment

the crime for which he suffered, avowing, however, that he was guilty of many others. And some of his offences, written down by Fléchier, deserved severe castigation, although the gallows was rather too violent a penalty for them. He was particularly blamed for his amours, and so indiscreet in the choice of time and place, that he was known to make love to a servant maid whilst her mistress lay dying in an adjoining apartment, anxiously awaiting the last sacrament. "He forgot where he was," says Fléchier, "and love overcame duty. Instead of hearing the confession of the one, he made a declaration to the other, and far from exhorting the sick woman to a pious death, he solicited the healthy one to an evil life." And then this antithetical chronicler proceeds, rather unnecessarily, to a *verbatim* report of the libertine *curé's* love speeches, adding, we suspect, some slight embellishments of his own. The priest's profligacy was indirectly the cause of his death, for the murder for which he undeservedly suffered was committed on a peasant who had detected him in an intrigue, and fastened him into a barn with one of the objects of his illicit flame. When, a day or two afterwards, the author of this practical joke was set upon and slain, suspicion naturally fell on him who had been its object, and he was arrested by the lieutenant of the watch, who apparently anticipated an attempt at evasion, for "he insinuated himself into his house under pretence of having masses said, and conducted him very adroitly to Clermont." Upon the day of this man's condemnation or execution, (it does not appear very clearly which of the two is meant,) a ray of sunshine again seduced Fléchier and his company out of the town, and they made an expedition to the country-house called Oradoux, then and still the property of the family of Champflour. The grounds were rendered very agreeable to the party by a multitude of purling streams, whose waters were applied to various fantastical purposes, "making very pleasant figures," as Fléchier informs us. "One finds basins supplied by a thousand streams, floating islands forming small apartments, where all manner of parties of pleasure take place; an aviary enclosing cascades, a grotto whence the water flows on all sides by a hundred little leaden tubes, and a Diana in a niche who throws up streamlets of water, and is completely covered by a liquid veil falling unceasingly and always preserving its form." Whilst perambulating these aqueous parterres, the Abbé fell in with a canon, seemingly a worthy and sensible man, who had sought that retirement with a view to serious meditation. Unrestrained by this latter consideration, Fléchier, having formed at first sight so good an

opinion of the stranger's worth and wisdom, courteously addressed him. "I saluted him as civilly as I could, accosting him with a smiling air, in which was mingled, however, a little of my habitual gravity." The canon took the interruption kindly, and the pair walked and talked together. Their dialogue is given at length in the *Mémoires*, indebted, no doubt, to Fléchier's nimble pen for many flowers of style, and, perhaps, for much of the subject matter. The church of Clermont was the subject of discourse, and from the church a transition to the bishops was very easy. Various saints, and more than one sinner, had ruled the diocese of Clermont; and in the latter class was reckoned a certain Joachim d'Estaing, who had worn the mitre for the first six and thirty years of the seventeenth century. He was stone blind, but the infirmity affected him little. When overtaken by it (at an early age) he took for his motto: *Charitate et fide, non oculis, Christi diriguntur oves*. Charitable he was, faith he may have had, his cecity was perhaps no absolute impediment to the discharge of his pastoral duties; but neither charity, faith, nor blindness, sufficed to restrain him within the limits of ecclesiastical decorum. Such a rattling, love-making, rollicking boy of a bishop had seldom been heard of. His principal occupations were making war with his chapter and pleading against his canons. These maintained their privileges with much vigour and success. So that when he was on the point of death, some one having exhorted him to do good to a chapter whose tranquillity he had so long troubled:—"I have done them more good than all my predecessors," was his sharp and prompt reply, "since in pleading against them, I have established their privileges upon an immoveable basis." When overtaken by blindness, he had assigned to him, as an episcopal aide-de-camp, André de Sausia, Bishop of Bethlehem, who, proceeding to perform some particular duties in the church of Clermont, the canons shut the door against him, pretending that only the bishop of Clermont had that privilege. Thereupon M. L'Estaing, having obtained the sanction of the temporal authorities, burst open the doors with battering-rams, "not unlike those formerly used by the Romans." On another occasion, the Viscount de Polignac, governor of the province, having had a praying-desk (*prie-Dieu*) placed for him in the nave of the church, without regard to a previous warning that the King alone had that right, the blind bishop had sufficient courage and decision to expel him the sacred edifice. Fléchier does not give the details of this scandalous scene, but they are to be found in contemporary authors. The bishop, it appears, used force to expel

M. de Polignac, who ordered his guards to fire, when one of the bishop's gentlemen prevented bloodshed and sacrilege by swearing that if they made a movement, he would run his sword through the Viscount's body. The bishop's firmness, although it had a degree of violence less becoming in a church dignitary than in a temporal warrior, is approved by Fléchier as an episcopal virtue. The faults he finds with the diocesan of Clermont are of a different stamp. He deplores his weaknesses, as tending, by example, to the encouragement of immorality, and to the disrepute of the church. "All the balls were held at his house, which, instead of an abode of prayer and penitence, was one of festival and rejoicing; and he appeared there not as a bishop instructing his flock, but as a gentleman in a violet coat, saying soft things to the ladies. His manner of saluting these was other than paternal; and, passing his hands over their faces, he would form an exact estimate of their appearance, never deceiving himself as to their beauty, blind though he was; having his discernment in his hands as others have in their eyes, and, like a good shepherd, knowing all his sheep." These facial manipulations were of small impropriety compared to other particulars of the bishop's conduct and discourse. Under such a prelate, the conduct of the clergy was not likely to be very exemplary, and accordingly we read that canons were seen habitually dressed in coloured clothes, throwing aside their ecclesiastical garb when service was over, and appearing covered with gay ribbons. They left the altar to run to the playhouse, escorting ladies thither, and making a scandalous mixture of worldly vanity and external piety. The parish priests were no better; and we are told of one so fond of the chase that he passed all his time in it, to the neglect of his parochial duties. To such an extent did he carry his passion for field sports, that, when conveying the consecrated wafer to a distant farm, he was known to make his clerk carry his fowling-piece, so that he might have a shot at any game he met upon the road. Which piece of profanity elicits from the worthy Fléchier an angry and indignant ejaculation. It is not surprising that, under the lax rule of Monseigneur Joachim, the clerical profession was in favour with the idle and dissolute. During his time a vast number of religious fraternities sprang up in the diocese; no less than eight convents and monasteries being established in the town of Clermont. An ordinance, published in 1651, by Jacques Pereyret, canon of the cathedral church, is directed at ecclesiastics who "frequent public games, taverns, and gambling tables; buying and selling at fairs and markets; having commerce with

persons of profligate life, and abandoning themselves to all manner of vices and excesses," &c. &c. This state of things, however, was not limited to the diocese of Clermont, but was at that time only too general in France. The following is curious, on account both of the state of things it exhibits, and of the cavalier manner in which Fléchier refers to his holiness the Pope. "So great were the irregularities of the clergy of Clermont, that there exists a papal bull exempting the canons and the children they might have had, by any crime whatever, from the bishop's jurisdiction. This bull appeared to us of an extraordinary form, and we admired the effrontery of the court of Rome and of the canons of that day."

We find several ladies, amongst them some of high family and name, appearing as plaintiffs or defendants before the tribunal of the Grands Jours. The commencement of the third month's sitting, was signalised by "an audience that every body found very diverting, because there was pleaded the cause of the Countess of Saigne against her husband, on a pleasant difference they had together." The old count had committed the common blunder of marrying a young and pretty wife, who became desirous of a separation, and brought a variety of scandalous charges against him. She had the sympathy and support of many of her own sex, and especially of the *grisettes*, whom the reverend Fléchier gravely defines as "young, *bourgeoises*, having rather a bold style of gallantry, and priding themselves on much liberty." Finally, the count and countess made up their quarrel. The affair of Madame de Vieuxpont, a Norman lady, was of a more serious nature. She was arraigned for conspiracy against the *procureur du Roi* at Evreux, against whom she conceived so violent an animosity, that she resolved to ruin him at any price, and to that end associated herself with an intendant of woods and forests, a serjeant, and three or four other persons. Her plot being ripe, she accused the obnoxious magistrate of conspiracy against the state, of having called the king a tyrant, and of a design to establish in France a republic after the model of Venice. The unfortunate functionary was arrested and sent to Paris, where he died before his trial was at an end, and narrowly escaped posthumous condemnation. At last his memory was cleared by a decision of the Chamber of Justice, and his perjured accusers were brought before the Grands-Jours. M. Talon, the public prosecutor, pressed for the perpetual banishment of Madame de Vieuxpont and the confiscation of all her property. She was even in fear of capital punishment, and her countenance brightened greatly when the

decision of the court, condemning her to three years' exile and a fine of two thousand livres, was intimated to her. She was a lady of violent character, and had lived on very bad terms with her husband, in whose death some hinted her agency; but this, Fléchier charitably remarks, was perhaps a mere calumny, invented in retaliation of those wherewith she had assailed other persons. It is distinctly stated, however, that she went so far as to challenge her husband to fight a duel; and when he declined a combat in all respects so singular, her mother wounded him with a pistol-shot,—an advertisement, the Abbé quietly remarks, never to fall out with one's mother-in-law. Then we have the story of a handsome village maiden, who might have pleased the most fastidious courtiers as well as the bumpkins of Mirefleurs. She was besieged by admirers, from amongst whom she selected one whom she loved with great fidelity. And after her marriage, one of her former suitors risking a daring attempt upon her virtue, she mustered the courage of Lucretia, to protect herself from the evil designs of a modern Tarquin. Finding tears and entreaties unavailing, and as the sole means of preserving her honour, she seized a halbert that stood in a corner of the chamber, and inflicted a deadly wound on her insolent pursuer. "She pierced," says Fléchier, in his flowery style, and not in the very best taste, "the wretch's heart that burned for her; two or three ardent sighs escaped it, and he expired." The testimony of the neighbours, whom she called in, and her reputation for virtue, absolved her in the eyes of her judges. But when the Grands-Jours came, the relatives of the deceased revived the case; and that tribunal—upon what grounds it is difficult to say—condemned the woman and her family to a heavy fine. There seems to have been scanty justice. At the present day in France, the verdict of justifiable homicide does not preclude a civil action for damages; but these would now hardly be granted by any French court in such a case as the above. The justice of the Grands-Jours was evidently of a very loose description. They had not to dread the revision of a higher court, or the lash of newspaper satire; the king would not trouble himself much about them, so long as they duly scourged the tyrannical counts and barons who impoverished the country and caused discontent amongst the peasantry; and thus, unfettered by any of the usual checks, the bench of gentlemen in square caps, loose cloaks, flowing curls, and delicate moustaches, represented in the frontispiece to M. Gonod's publication, certainly did render some very inexplicable and, as it appears from Fléchier's chronicle, very iniquitous judgments. Whilst they blundered

and mismanaged in their department, an elderly lady of great enterprise and activity made herself exceedingly busy in hers. It was a jurisdiction she had created for herself, without the least shadow of a right, and it is inconceivable how she was allowed to exercise, even for a day, her self-conferred authority. Madame Talon, the respectable mother of the advocate-general, had no sooner arrived at Clermont, than she undertook the whole police regulation of the town, imposing taxes, correcting weights and measures, fixing a tariff of prices, and lecturing the Clermont ladies as to the mode of distributing their alms. At last the housewives of Auvergne would stand this no longer, and then she turned her attention to monastic abuses, and hospital regulations. She was evidently an officious nuisance; and although Fléchier supports her, it is after a feeble manner, his faint praise strongly resembling condemnation. "When people do good," he says, "it is impossible to keep the world from murmuring. Some say she would do better to alter her head-dress, which is a very extraordinary one; others have remarked, that she wears a spreading cap, bearing some resemblance to a mitre, which is the livery of her mission and the character of her authority. Others complain, that she spoils every thing instead of doing good, prevents charities by her rigorous examination of charitable ladies, destroys the hospital by endeavouring to regulate it, because she sends away those who, to her thinking, are not ill enough, leaving it empty, &c., &c. And it is said, she ought not to meddle so much, examining every thing, even to a prison allowance and an executioner's wages; but," concludes the sly Abbé—who doubtless concealed a little solemn irony under this long recapitulation of charges and brief acquittal of the accused—"Virtue is generous and puts itself above all such murmurs."

Amidst the bustle of judicial proceedings, whilst each day some sanguinary drama was recapitulated before the court, whilst sentences, often of savage severity, were recorded, and executions, for the most part in effigy, were of daily occurrence, time was still found for gaiety and amusement. Balls and assemblies went on, encouraged by the President de Novion, in order to do pleasure to his daughters; and all the ladies of quality in the province, as well as those gentlemen who had managed to compound their offences, having established themselves for the time at Clermont, there was no lack of dancers. And the grave members of the tribunal did not disdain to mingle in these terpsichorean gambols. But somehow or other there was always disorder at the assemblies. Decidedly the demon of discord was abroad in

Auvergne. "Sometimes the ladies quarrelled, menaced each other, after the manner of provincial dames, with what little credit they chanced to possess, and were on the point of seizing each other by the hair and fighting with their muffs. This disturbed the company, but they managed to appease the disputants; and a few more *bourrées* and *goignades* were danced." The *bourrée d'Auvergne*, now confined to peasants and water-carriers, was at that time a favourite and fashionable dance. "There are very pretty women here," says Madame de Sévigné, writing from Vichy, the 26th May, 1676. "Yesterday, they danced the *bourrées* of the country, which are truly the prettiest in the world. They give themselves a great deal of movement, and *dégogue* themselves exceedingly. But if at Versailles these dancers were introduced at masquerades, people would be delighted by the novelty, for they even surpass the *Bohemiennes*." Fléchier was scandalised by this peculiar movement or *dégognement*, esteemed so captivating by the Marchioness. He makes no doubt that these dancers are worthy successors of "the Bacchantes of whom so much is spoken in the books of the ancients. The bishop of Aleth excommunicates in his diocese those who dance in that fashion. Nevertheless, the practice is so common in Auvergne, that children learn at one time to walk and to dance."

Did space permit, we would gladly accompany the Abbé on other of the excursions in the environs of Clermont, for which he continually finds excuse in the necessity either of escorting ladies or of enjoying the winter sunbeams. As at Riom, he always manages to pick up some anonymous but intelligent acquaintance, to enlighten him concerning the gossip of the country, and to father those sallies and inuendoes of which he himself is unwilling to assume the responsibility. His account of a visit to the Dominican convent is full of quiet satire. He was accompanied by his friend Monsieur de B—— "a sensible man, well acquainted with the belles lettres, and of very agreeable conversation." M. de B—— is made the scapegoat for the sly hits at the abuses of the church, and at the pictures and records of miracles to which they are introduced by a simple and garrulous monk. There were few founders of religious orders, they were informed, of such good family as St Dominick, who was a grandee of Spain, and consequently far superior to St Ignatius, whose nobility the Jesuits vaunted, and who, after all, was but a mere gentleman. There were, of course, many pictures of the grandee upon the church and cloister walls, representing him engaged in various pious acts. "In one of them he was depicted presenting a request to

the Pope, surrounded by his cardinals, whilst on the same canvass was seen the horse of Troy, dragged by Priam and by the gentlemen and ladies of the town, with all the circumstances related by Virgil in the second book of the *Æneid*." Fléchier was considerably puzzled by this mixture of sacred and profane personages; but his guide explained its singularity by assigning the picture to a pious and learned monk, as well read in Virgil and Homer as in his breviary, who made a good use of his reading, and was particularly happy in employing it to the glorification of God and the saints. Another picture represented a Dominican holding a pair of scales, in one of which was a basket full of fruit, and in the other an empty basket, with the inscription *Retribuat tibi Deus*. The promissory note of the Jacobins was so heavy that it outweighed the laden basket. The guide would fain have expatiated on the beauty of this allegory, suggested, as he maintained, by a miracle actually wrought in favour of his order, but Fléchier cut him short in his homily, and passed on to the next painting, the representation of one of those "piously impious" legends, as M. Gonod justly styles them, so often met with in monkish chronicles. This one, in which the Saviour of mankind is represented as supping with and converting a beautiful Roman courtesan, shocked the religious feelings of the Abbé Fléchier in the year 1666, although in the year 1832, it was not deemed too irreverent for reproduction in a work entitled "*Pouvoir de Marie*," written by the notorious Liguori, and published at Clermont Ferrand, by the Catholic Society for pious books. "I could not help telling him," says Fléchier, "that I had seen pictures more devout and touching than this one; that these disguises of Jesus Christ as a gallant, were rather extraordinary; that there are so many other stories more edifying, and, perhaps, truer...." Here the monk interrupted the Abbé, and was about to repeat a whole volume of miracles, compiled by one of the brotherhood, when the vesper bell summoned him to prayer, to the great relief of Fléchier, who manifestly disapproved as much the profane travesty of holy things, as the lying miracles by which the Dominicans strove to attract into their begging-box and larder the contributions of the credulously charitable.

We perhaps risk censure by terminating this paper without a more minute consideration of the Grands-Jours themselves, the ostensible subject of Fléchier's book, and without examining in greater detail the nature of the crimes and characters of the culprits brought before the arbitrary tribunal. Although we have shown that a large portion of the *Mémoires* consists of

matters wholly unconnected with the proceedings of the court, it must not be thence inferred that the Abbé neglects his reporting duties, and does not frequently apply himself to give long and elaborate accounts of the trials, especially of the criminal ones. Many of these are sufficiently remarkable to merit a place in the pages of the *Causes Célèbres*. Some have actually found their way thither. In Fléchier's narrative, their interest is often obscured and diminished by wordiness and digression; and persons interested in the civil or criminal jurisprudence of the period will surely quarrel with the divine, who is a poor lawyer, apt to shirk legal points, or, when he endeavours to unravel them, to make confusion worse confounded. The state of society in Auvergne, in the seventeenth century, is exhibited in a most unfavourable light. We find a brutal and unchivalrous nobility, deficient in every principle of honour, and even of common honesty, unfeeling to their dependents, discourteous to ladies, perfidious to each other. Here we behold a nobleman of ancient name offering his adversary in a duel the choice of two pistols, from one of which he has drawn the ball, with a resolution to take his advantage if the loaded weapon is left him, and to find a pretext for discharging and reloading the other, should it fall to his share. He gets the loaded pistol, and shoots his man. A gentleman of rank and quality enforces the *droit de nêces*, formerly known in Auvergne by a less decent name—but language, as Fléchier says, purifies itself even in the most barbarous countries. And certainly there was much of the barbarian in the Auvergnat, even so late as 1666. The odious exaction referred to was compounded by payment of heavy tribute, often amounting to half the bride's dowry. The Baron d'Espinchal was another brilliant specimen of the aristocracy of Auvergne. After committing a series of crimes we have no inclination to detail, he pursued his wife (a daughter of the Marquis of Châteaumorand) with gross insult, even in her convent-sanctuary at Clermont. The unfortunate lady had contracted such a habit of fear, that she could not be in his presence without trembling; and on his putting his hand to his pocket to take out his watch, whilst separated from her by the grating of the convent parlour, she thought he was about to draw a pistol, and fell fainting from her chair. Numerous traits of this description prove baseness and brutality as well as vice on the part of the higher orders of the province, who appear to have been deficient in the military virtues and redeeming qualities sometimes found in outlawed and desperate banditti. We should have had less gratification in dwelling upon the crimes and excesses

narrated in the *Mémoires*, than we have derived from the consideration of their lighter passages, and of the occasional eccentricities and many admirable qualities of their estimable and reverend author.

DON JOHN OF AUSTRIA.

DON JOHN of Austria, the illegitimate son of the Emperor Charles V. (for an account of whose life we purpose to lay under contribution several curious documents lately published at Madrid) was born in 1545. His parentage on the mother's side is not quite so certain. Brantôme, Moreri, and others, after mentioning the Countess Barbe de Blomberghe as Don John's putative mother, assert that, although Charles's mistress, she certainly was not mother to Don John, whose parentage, they hint, should be laid at the door of some far nobler dame. But Ranke, and the best informed modern historians, affirm that Barbe de Blomberghe was really Don John's mother. This lady belonged to a noble family of Flanders, and was a celebrated beauty of her day. After his love for her was extinct, Charles V. gave Barbe de Blomberghe, with a large dowry, in marriage, to a certain Seigneur Rechem, who held considerable possessions in the province of Luxemburg, and lived constantly at Antwerp.

Don John's early life was passed in the farm-house of a rich peasant in the vicinity of Liege, where the young lad was subjected to all manner of privations, and early inured to hard labour and coarse fare,—a fitting preparation for his future career. Brantôme mentions it as a fact much to Don John's credit, that, in spite of this humble education as a peasant, he showed no trace of vulgarity in after life, but, on the contrary, that he had excellent and noble manners in the field and in drawing-rooms. The emperor, Charles V., sent for the lad, when he grew up, to come to Spain, rewarded the honest peasant for his trouble, and announced to Don John the secret of his birth. Although the Emperor loved the boy as the son of his old age, he gave him nothing during his lifetime, of which the ardent young prince much complained, saying that "the Emperor, having acknowledged him as his son, should have given him the means of living befitting his rank and birth." At his death, Charles left Don John nothing but a strong recommendation to his successor Philip II. The only wish which escaped the dying monarch was, that Don John should be educated for the church.

Meanwhile, Don John, who was but one year younger than Don Carlos, was brought up with Philip's ill-starred son: and at this period of his life a circumstance occurred which greatly influenced Don John's future destiny. The boy revealed to Philip II. some hare-brained folly of his son Don Carlos. This conduct gave the Spanish monarch so high an opinion of his young brother's integrity and honour, that he determined not to follow out Charles V.'s intentions, but to educate Don John for the military, instead of the ecclesiastical profession. This was not done, however, without strong opposition from some of Philip's royal council. The conduct of Don John, however pleasing to Philip II., drew upon the young prince the bitter animosity of Don Carlos who, ever after, treated his companion with marked indignity: his hatred one day went to the length of twitting Don John with his illegitimacy. Don Carlos called him a bastard, *hijo de puta*. "Yes," said Don John, "I am a bastard; but my father is a better man than yours:" whereupon the two lads came to blows.

Passing over much of his early life, we come to the year 1569, when Don John was sent against the Moors of Grenada. In this expedition he developed considerable military talents, and gave such evidence of personal courage, that the old captains and veteran soldiers who remembered the early campaigns of his father, Charles V., called out with one accord, "Ah! this is a true son of the Emperor." *Ea! es verdadero hijo, del Emperador*. Don John returned from this campaign covered with glory, and with the reputation of being one of the best captains of the age.

Meanwhile, the infidels were making rapid progress in another part of the globe. The taking of Cyprus by the Turks alarmed all Europe to such a degree, that a league was formed between the Pope, the Venetians, and the Spanish monarch, in order to put a stop to any further inroads in this quarter; a fleet was manned, soldiers were levied, to stem the threatened invasion of Christendom. Don John, whose reputation was now exceedingly great, was selected for the command of the allied forces. It had previously been offered to the Duke of Anjou. At this time of his life, Don John was six-and-twenty, in the full bloom of youth and manly strength. Lippomano, a Neapolitan, describes him as "a person of a most beautiful presence and of wonderful grace; with but little beard and large mustachios. His complexion is fair, and he weareth his hair long and turned back over his shoulders, the which is a great ornament unto him. He dresses sumptuously, and with such

care and neatness, that it is a sight to see." "Moreover," adds Lippomano, "he is active and well-made, and succeedeth beyond measure in all manly exercises."^[31] No one rode, no one wielded the sword better than the young hero, who, moreover, had all the popular qualities fitted to ingratiate him with women and soldiers—he was gracious, affable, and open-handed. Even at this early age, Don John lamented that he had not already won by his own right handsome independent kingdom of his own. To the attainment of this object he looked confidently to the league or to the Venetians; and the great victory of Lepanto, which he gained at the head of the allied fleets,—to which period in the life of our hero we have now arrived,—seemed to justify his expectations; in this, however, he was doomed to be disappointed.

The battle of Lepanto was fought on the 7th October, 1571. On the side of the allies were about two hundred large galleys, six smaller ones, and twenty-two other vessels; of these, eighty-one galleys and thirty frigates belonged to Spain, the rest to his holiness the Pope, and to the Venetians. The armament on board consisted of about twenty-one thousand fighting men, of whom eleven or twelve thousand were Spaniards, the rest Italians and Germans. Don John, like a good general, had carefully seen that the galleys were well-provided with ammunition: each galley, in addition to its regular crew and armament, had one hundred and fifty extra soldiers on board. The Turkish fleet consisted of two hundred and twenty-five large galleys, and seventy other smaller vessels, on board of which were, in all, about twenty-five thousand fighting men. The Turks came sailing down the wind, full upon the allied fleet, with a confidence acquired by the frequency of their victories over the Spanish vessels, which they had been in the habit of seizing and carrying as prizes into Argel and other ports. The Turks, moreover, had the advantage of the sun in their backs, and consequently it poured its hot rays full in the face of the Christian host. Don John of Austria was at first in some trouble, as Don Alvaro de Bazan, the Marquis de Santa Cruz, commanding the Neapolitan squadron, was by some means detained behind, as well as Don Juan de Cardona, who had gone with eight galleys to reconnoitre a distant port. Don John, however, despatched a few quick-sailing frigates in search of them, the moment the Turkish fleet hove in sight. Meanwhile, Don John and the crew of his vessel, as well as the crews and soldiers of all those galleys which were near him, raised crucifixes and standards, knelt down on the decks of their vessels, and made humble

supplication to the Almighty to give them the victory. Don John, with a soldier's heart, had a strong dash of the priest in his composition. Absolution was likewise given, during this interval of peace, to all who might so soon render up their souls to God, by Fray Juan Machuca, Alonso Serrano, Juan de Huarca, and other Franciscan and Capuchin friars and Jesuits who accompanied the expedition. Luckily, at this moment the wind lulled, and the Turkish squadron was forced to come slowly on with their oars. This happy incident gave Don John plenty of time to arrange his order of battle.

It was mid-day on the 7th October 1571 before the two armadas came together, and Don John fired a gun as a signal to his fleet to commence the attack. By this time, most fortunately, the Marquis de Santa Cruz, with the Neapolitan galleys, had arrived. Don John ordered all the brigantines and other light and fast-sailing vessels to retire from the scene of action, so that no one might think of escaping, but should fight to the last. When the armadas approached each other, Don John ordered the trumpets to sound the charge, and exhorted his people to prepare for action. On nearing the Turkish fleet, Don John was able to recognise the galley of the Turkish admiral, Basa Hali, (Ali Pasha) by its ensign and sacred standard. Don John ordered his own vessel to bear down upon the Turk, who reserved his fire until the Spanish vessel was within half a boat's length, when he fired three shots; the first carried away some of the bulwarks of the vessel, killing several of the galley-slaves at their oars; the second passed over the caboose or kitchen on board Don John's vessel, which was occupied by soldiers armed with arquebuses; while the third shot went over the heads of several soldiers who were intrenched in one of the boats on deck. Don John, who had likewise reserved his fire, now poured in a volley, which did infinite mischief to the Turk; and the two galleys ran into one another with a mighty crash, and got hopelessly entangled. The battle now became general, and raged furiously on both sides. No less than eleven other vessels were engaged in the immediate vicinity of Don John and Ali Pasha, and all the several crews fought hand to hand. The Turkish admiral was supported by seven other Turkish galleys, while Don John was assisted by five large vessels of his own side, of which one was the Roman galley, La Grifona, commanded by Marco Antonio Colonna, and the others were Venetian or Spanish. For one whole hour the fighting continued without either party apparently getting the best of it. Twice did the Spaniards carry the decks of

the Turkish admiral's vessel, and twice were they driven back with tremendous slaughter. Once they had almost reached the Turkish flag-staff. The caboose of Don John's vessel, filled with picked men under Don Pedro Zapata, did infinite service; one man alone fired forty rounds of cartridge. At the end of an hour and a half's hard fighting, victory inclined to the side of the Spaniards. The Pasha and above five hundred of his men were killed, his sons made prisoners, his standard pulled down, and the Cross planted in its stead. About the same time the other galleys near Don John's vessel likewise forced their way through the Turkish squadron. Don John now ordered victory to be loudly proclaimed, and had time to look about him, so as to bring assistance where it was most needed.

On his return from his reconnoitering cruise, Don Juan de Cardona, admiral of the Sicilian forces, had fallen in with some fifteen Turkish galleys, which he kept employed until Don John of Austria bore down triumphantly to his assistance, and captured the infidels. Of five hundred Spaniards who were with Don Juan de Cardona, not fifty escaped without a wound of some sort. It was in this same battle of Lepanto that Miguel Cervantes lost his arm, and most of our readers will recollect how the brave soldier tells the story of his own life in the fortieth chapter of *Don Quixote de la Mancha*. The Marquis de Santa Cruz fought most bravely, and twice narrowly escaped death—two shots from an arquebuse glanced off from his armour of proof. In this battle the Turks lost 117 galleys and some other smaller vessels; 117 cannon, 17 mortars and 256 smaller guns, and 3,486 slaves; all which booty was divided among the Spaniards, the Venetians, and the Pope. The sacred standard of Mecca, of which Luis Marmol has written a glowing description, was sent, together with the news of this great victory, to Philip II., and reached the Escorial in November 1571. This standard was about as large as a sheet; the white ground was covered with writing in the Arabic character, and most of the letters were gilt. It was burnt in the great fire which destroyed the monastery of the Escorial in 1671, just one hundred years after it had graced those walls.

When the news of this great victory reached Philip II., he was attending vespers at the church of the Escorial. A loud "*Te Deum laudamus*" was immediately sung with the whole strength of the choir, and the following day a solemn procession took place "*in gratiarum actione*," at which the austere monarch assisted. We cannot do better than quote a short letter,

written to Philip's trusty and confidential secretary, Antonio Perez, by one Francisco Murillo, who was engaged in the battle of Lepanto; the letter is dated the 9th October 1571, two days after the victory.

"Illustrious Sir,—*Te Deum laudamus, te Deum confitemur!* God and his illustrious Mother have been pleased to give us the victory over the Turkish fleet, and His omnipotence hath been most clearly made known, inasmuch as this proud and great armada hath been broken and conquered. We fought valiantly some two or three hours; many of our galleys were engaged with two, three, or four of the enemy's vessels. The number of the Turkish vessels, as far as I could learn, amounted to about 270, rather more than less; in the which they had stowed as many men at arms as they could collect in all Greece, both cavalry and infantry, the best they could find; and they were directed to come in search of us—for such were the orders from Constantinople. Some of the vessels of the armada, and some foot-soldiers, having been despatched on the approach of Don John of Austria, to consult with the Turk as to what was to be done, the Seignior ordered the Turkish fleet to seek until it found us. Nor had they much trouble therein: for the very same morning on which they left the port with this intent, namely, on Sunday the 7th October, the day of St Mark, Pope and Confessor, the two fleets came in sight of each other, near some islands called Le Corcholare, (?) whither they were coming with the same intent as ourselves, namely, to anchor. When we made this mutual discovery, nothing was to be done save to prepare for action. The Turks were amazed at the smallness of our number, and thought that we should fly; but they were speedily undeceived, and very much to their cost; for, in the short space of time I have mentioned, not a vessel of theirs but was taken, sunk, or burnt, or had fled. Many escaped by running their smaller vessels ashore, and Uchali, ^[32] with a part of his galliots, escaped. The Admiral Pasha died fighting, but his two young sons were taken. Many other notorious corsairs were likewise taken or killed. I cannot exactly say the number of vessels taken or destroyed; but I think for certain they are above two hundred; and the best is that, of our squadron, no captain-general or person of any importance is missing or even wounded; of the others I only know of Captain Francisco de Cordoba, the nephew of the Marquis of Santa Cruz, who was killed by an arquebuse-shot; of other folk but few are killed or wounded. It is the work of God and not of man. You will be pleased to hear that not one of our vessels but has another in tow, which it has taken, and that we all did well. The galley in

which I was did the least of all; we fought the Turk who was opposed to us, attacked the infidels' vessel by the poop, throwing into it shot, stones, and fire until it surrendered; and we captured two flags which hung at the stern. Some soldiers got good booty in clothes. After this we secured some others, and drove so many ashore that it is a shame to tell; and in all our vessel we had not so much as six wounded, and not one killed. Many of our galley-slaves who were released fought like lions, and restored to liberty an infinite number of Christian captives who were in the Turkish fleet; among these were more than 2,000 Spaniards, and many women and children whom the Turks had seized in Cephalonia and other parts. Had not the season been so far advanced, we might have gone safely as far as Constantinople; at any rate we might have taken all Greece and the Morea; but it is already winter, and, moreover, we have not sufficient provisions aboard.

"Don Bernardino de Cardenas died of a spent ball from an arquebuse, which struck him on the breast; although the ball did not enter the flesh, Don Bernardino fell and never rose again. The Count de Bianco, and a few other gentle folks, likewise fell fighting valiantly. Captain Juan Rubio is safe and sound, after performing marvels with his crew; for he fought with three large galleys at once, and made them all yield; but neither he nor I have got a single maravedi. It would have been no bad thing to have stumbled across a good purse full of ducats. But you, sir, will remember your servants; we have no hope from any one after you but in God, who we pray may keep you and your house in that health and in that increase of wealth which we, your servants, do desire. From Le Corchorale, this 9th October 1571. Illustrious sir, I kiss your hands. I entreat you to send a servant with this, on the first opportunity, to my brother the canon. I take this liberty as the affair is of importance."^[33]

Two years after the battle of Lepanto, Don John of Austria gained fresh laurels at Tunis and Biserta: and these victories seem to have confirmed him in his ambitious projects of obtaining an independent kingdom. Juan Soto, a man of much experience in military matters, who, at the time of the expedition to Grenada, had been placed about his person as secretary by Ruy Gomez de Silva, Prince of Eboli, and who had served with Don John all through the Moorish and Italian campaign, appears to have much encouraged Don John in these ambitious aspirations. By allusions to the

former pomp and splendour of ancient Carthage, Juan Soto inspired Don John with the idea of erecting Tunis into an independent kingdom; the Pope even was induced to recommend this scheme to Philip II.'s favourable consideration. But the monarch had no wish to lose so able a general as Don John, to whom he looked for the extension of the Spanish monarchy; still less could he think of establishing a rival and independent kingdom at Tunis. A despatch was therefore forwarded to Don John, in which all the reasons for the dismantling of Tunis were urgently put. But Don John disobeyed orders, and fortified the town, in the vain hope of erecting Tunis into the capital of his future kingdom. Shortly afterwards, the town fell again into the hands of the Turks. Juan Soto was shrewdly suspected at head-quarters of advising this act of disobedience to royal orders. It was therefore deemed expedient to remove the scheming and dangerous secretary; but some prudence was necessary lest Don John might see through the suspicions of the Spanish court. Juan Soto was accordingly rewarded by promotion, and made Proveedor-general of the armada. Juan Escovedo, a creature of Philip II., who, as we shall subsequently see, became far more dangerous than his predecessor in office, was placed about Don John as his secretary. Soto, however, was too useful to Don John to be so easily parted with, and we still find him acting, in conjunction with Escovedo, in the capacity of secretary, as late as 1577. Philip II. soon discovered to his cost that the change of secretaries brought no change of policy; nay, Escovedo proved a more willing tool, and inspired Don John with far loftier schemes of ambition than Soto, his predecessor in office, had ever conceived.

In the year 1576 Philip II. thought fit to take Don John of Austria from the scenes of his triumph in the Mediterranean, and to remove him from his dreams of independent kingdoms at Tunis into the midst of European intrigues. Don John was sent to take command of the forces in the Low Countries, where the ferocious and iron rule of the Duke of Alva, and of his successor, Don Luis de Requesens, the commendador mayor of Castile, had plunged the Flemings deeper into rebellion, and had obliterated the little loyalty to the crown of Spain which still lingered in the Low Countries. Don John was selected for this post from his likeness to his father, the late Emperor Charles V., whose memory the Flemings still cherished, and from his connexion with the country, his supposed mother belonging to one of the best families in Flanders. For these reasons, this appointment was held

likely to be popular, and to lead to good results. Don John was ordered to proceed without delay to his new government; and his secretary, Escovedo, came to Madrid to procure money and other matters necessary for his master's new office.

While Escovedo was in Madrid, apparently engaged in these details, Antonio Perez, Philip's confidential secretary, accidentally discovered from the Pope's nuncio, who asked him if there was about the court such a person as one Escovedo,^[34] that Don John's ambitious views were by no means extinguished. As his brother's policy would not permit him to found a new empire at Tunis, the Pope, the Guises, and Don John had planned an expedition for the conquest of England. Mary, queen of Scots, was to be released from prison; Elizabeth dethroned; England brought back to the bosom of the Catholic church under the guidance of Mary, queen of Scots, and her new husband, Don John of Austria—for this marriage formed part of the project. Here was a scheme to captivate an ambitious, chivalrous young prince! The nuncio in answer told Perez that, in a despatch which he had received from Rome, he was instructed to interest Philip II. in this expedition, and to request the Spanish monarch to aid Don John in this meditated attempt upon England. This was not quite new to Perez; some vague surmises had already been excited against the doings of Escovedo and Don John, by hints thrown out by Don Juan de Zuniga, the Spanish minister in Rome, whose suspicions had been excited by the frequent communications between Escovedo, the Pope, and the Guises. Antonio Perez, now that he held the threads of the plot in his hand, instantly informed Philip of the whole project. At this inauspicious moment Don John himself, against Philip's peremptory orders to proceed direct to the Netherlands, reached Barcelona, with two fast-sailing galleys, and hurried on to Madrid, where he found his brother Philip fully apprised of his scheme. But such was Don John's manly air, such the influence which his straight-forward conduct exercised over the suspicious nature of Philip II., that the Spanish monarch yielded a reluctant assent to his brother's plans of aggrandisement, and promised to allow him to make use of the Spanish veterans in aid of his expedition against England, after he had pacified the Low Countries. Perez says that Philip consented to this scheme with the view of encouraging Don John of Austria to use greater diligence in Flanders. Full, therefore, of his new government and of his own ambitious projects, Don John left Spain; and on the 17th October 1576, we find the

following letter from him to his friend and adviser Don Garcia de Toledo, Marquis of Villa Franca, whose reputation as a general was founded upon the capture from the Moors of the impregnable fortress of El Peñon de Velez.

"....Concerning my own journey I desire to say as much as the time will allow me, leaving to others to tell you more at length how I shall go. I journey to Flanders in disguise through France, and, next to God, the disguise will save me. I go, not a little contented to be able to do you some service;—(Don John had busied himself much in procuring for Don Garcia the promise of a grandeeship of the first class);—"desiring to encounter perils, and by no means fatiguing myself with these new labours which I have undertaken. Money is short, and my present necessities great. In the end God hath to take up this his cause in every way, and to aid me individually with a miracle. You must let me know where I shall receive your letters, and I will advise you, God willing, of my safe arrival: and I beseech you to tell me alway of your health, and to advertise me, as is your habit, of your opinion as to my doings; and to make use of me in all ways as a sincere friend, and as such I congratulate you on the marriage of Don Pedro, and on the state in which the Señora Doña Elvira is; and may it all turn out as you may best desire. From the Pardo, the 17th Oct., 1576. At your service, DON JUAN."^[35]

We gather the particulars of his journey through France from Brantôme, who says that "Don John without any great suite, and in order to go with greater certainty, rode post with six companions only; having with him Señor Don Otavio Gonzagua as his confidant, and a French postilion, whom he found in Spain, as his guide; the latter was, moreover, an excellent companion, and knew every road, lane, and bye-path in France. This man led Don John across France in most dangerous and unquiet times: in Guyenne they were on the eve of a war, which indeed broke out some three months after. Don John arrived in Paris, and got off his horse at the hotel of the Spanish Ambassador in the street of St Anthoine."^[36] That same night he seems to have gone to a great ball at the Louvre, where he was much struck with the beauty of the Queen of Navarre, before whom he stood like one entranced. The following day, Don John, still full of Marguerite of Navarre, saw the palace and the other sights of Paris, and started again on his journey,—no one having an idea, till he was gone, that he had been in

Paris at all. He travelled again in disguise, and on horseback, to the Duchy of Luxemburg, and thence to Flanders, where he found that Antwerp had just been taken and sacked. Shortly after his arrival peace was concluded; one of the first conditions of which was the departure of all Spanish troops by land. We shall see that they were forced to go to Italy instead of by sea to England, and were said to be so charged with booty that they could scarce walk. We find Don John writing in the following terms to Don Garcia de Toledo, on the 21st February, 1577, after peace had been concluded.

"Most illustrious sir,—Not to tire you with a long letter, I will refer you to my secretary, Juan de Soto, who will inform you of the state in which things are here, and by the grace of God they are better than could be expected, as every thing was, when I came, as bad as possible. To God be rendered thanks, in that he hath given me patience to suffer what it appeared impossible for any human creature to bear, before this blind people could be brought out of their passion, which kept their minds so hardened against their own peace and quiet. But since his Divine Majesty has permitted things to come to this pass, I trust that with time the whole machine will come round to its proper place. The moment any thing of consequence occurs I will let you know; and I entreat of you to inform me of the state of your health, of which I have heard nothing since I reached Luxemburg, which is now more than three months and a half. I know not how to account for this, as I do not hear that the passes are closed.... Some of the conditions of this peace are hard, most hard; but necessary to save religion and to ensure obedience. Time will do something, and already much has been done by the grace of God. At your service, DON JUAN."^[37]

But now, when Don John fully expected to reap the benefit of peace, and to employ his Spanish veterans in the conquest of England, he saw all his hopes frustrated. The states of Flanders steadily refused to allow the Spanish troops to be embarked on board ally vessels in their harbours, lest they should be used against Zealand and Holland, but demanded, in a peremptory tone, that the troops should be instantly despatched by land, according to the treaty. Moreover, Philip resisted the pressing appeal of the Pope's nuncio to interfere in this matter. Thus was England saved from the horrors of an invasion,—curious that for once in their lives Elizabeth of England and Philip of Spain should have had similar interests at heart!^[38]

Don John's ambitious spirit still drove him to seek some means of acquiring an independent kingdom, either in the East, in England, France, or Spain. Much to Philip's disquiet, Don John now held constant communication with the Guises; emissaries went to, and came frequently from, Rome, without Don John ever acquainting his suspicious brother with his intrigues. Escovedo was exceedingly busy, and Perez was employed by Philip II. to worm out the secret, which he did by the most dishonourable artifices. He entered into a secret correspondence with Escovedo, and, after blaming Don John's secretary for writing to the Pope without Philip's knowledge, Perez assured Escovedo that their correspondence should be kept profoundly secret from the king. All this time the wily secretary of state showed all the letters and despatches to Philip, who frequently amended the drafts of the minutes with his own hand. Nay, to obviate suspicion, Perez occasionally put in some abuse of the monarch.^[39] Don John, in moments of disappointment, wrote to Perez—For the sake of his life, of his honour, of his soul, he must quit Flanders—he would leave his post when people least expected it—although this crime might be punished with blood.^[40] He talked of entering France "at the head of a band of adventurers, consisting of 6000 infantry and 2000 horse."^[41] Moreover, Don John was frequently heard to say, "Escovedo and money—money and Escovedo." The latter became exceedingly bold, and said that, after conquering England, it would be easy to gain Spain: that with the ports of Santander and the Peña de Mogron, a footing might be gained in Castile. But what brought matters to a crisis was the demand made by Escovedo, who was now in Spain, to be instantly appointed governor of the Peña de Mogron. Philip, seeing in this demand confirmation strong of his worst suspicions, thought Escovedo too dangerous a person to be allowed to live, and Perez was ordered to despatch this intriguing emissary. Poison was administered in vain; at last Escovedo was stabbed in the streets of Madrid by one Insausti, on the 31st March 1577. But for the whole of this most curious chapter in the history of Antonio Perez, whose airs of authority had made him detested,—for a full comprehension of Don John's ambitious views,—of the part which Escovedo played in this drama,—of his murder by the command of Philip, and the manner in which the guilty accessory, Antonio Perez, was made the scape-goat of the whole transaction, and offered up as a sacrifice to the long-cherished hatred of Escovedo's family, and of his rival Mateo Vasquez—of the insurrection in Arragon, and other matters connected with this

transaction,—we must refer our readers to Mons. Mignet's interesting work on Philip II. and Antonio Perez, where they will find the whole story handled with admirable precision by a master of his art.^[42]

The murder of Escovedo must have opened Don John's eyes, and shown him that Philip would never allow him to acquire a separate and independent kingdom. Don John's ambitious spirit seems now to have preyed upon itself, and his constitution to have suffered from this internal struggle: he had frequent fits of melancholy, accompanied by attacks of low fever; and occasionally expressed an earnest desire to leave a career for which he daily felt an increasing dislike, and to be allowed to retire into some monastery. This feeling was much aggravated by the failure of the negotiation in the Netherlands, and by the prospect of a long and lingering war, in which none of those bold dashes and brilliant adventures, which formed so great an attraction to one of Don John's chivalrous and enthusiastic nature, were to be expected. At length, after several small successes, after a victory at Namur, Don John was seized with the putrid fever, of which he died on the 1st October 1578, in the 33d year of his age, and with him perished all his ambitious designs. On opening the body, Don John's heart was found much diseased, and his skin was as if it had been burnt; many attributed his death to poison. His last dying request was to be buried in the Escorial, near the bones of his father, the Emperor Charles V. We cannot better close this slight sketch of one so early snatched from a career of glory, than by quoting an interesting and detailed account of his last hours, written by his confessor, an eye-witness of his death.

"TO HIS MOST CHRISTIAN MAJESTY.

"Your Majesty will have heard, by letters from the Prince of Parma and from Prince Octavio Farnese, the trouble which it hath pleased God to bring upon us by the death of Señor Don John of Austria: and to accomplish that which he hath so many times commanded me to do, during his life, as well as somewhat to relieve the grief which I know will seize upon your Majesty's royal heart, I will relate the prayer which Don John desired me to make to your Majesty in his name, and with all humility, for the repose of his soul, the which I believe, and do dare to affirm, is now in the enjoyment of that crown of glory which all who sacrifice their life for the law and the gospels in the service of their king, are wont to receive as their reward. And

no one went through greater or indeed equal labours and troubles than did this most Christian and obedient gentleman.

"All the time, most powerful Sir, that his highness Don John was in the castle of Namur,—or, at any rate, most of the time,—he passed in making his peace with God, and in ordering his worldly affairs. He manifested unto me many times his strong wishes therein, entreating me to beseech God, by the merits and zeal of the invincible Emperor, his father and master, to employ his person in the defence of the Catholic faith, and to allow him to die before he should do, or suffer any thing to be done, which should offend God even in the smallest matter. He even said more: that he never could think of your Majesty, his father and master, without ardently desiring to assist in the defence and spread of the holy Catholic faith, and in enforcing obedience to your Majesty, who, he hath told me an infinite number of times, was his master, his father, his brother, and his whole wealth on this earth.

"Two days before the victory of Gemblours, Don John sent for me and told me that, although he did not then intend to engage the enemy, still, considering the many chances of war, he desired to make a general confession from the time when he could first remember to have had the use of his reason. This was the more easy for his highness, from the frequency with which he hath attended the holy offices of the church since he hath been in these parts: as rarely a month passed that he hath not communicated and confessed twice,—nay sometimes thrice. Thus on that night, after having made a clean breast, and disposing of his affairs as if he were truly about to render an account unto God at that moment,—as in fact he did in the spirit—his highness, with an appearance of deep feeling and great humility said, as he walked up and down the room, 'Reverend Father—in order that you may, once for all, know my last will and testament, and my wish in other matters besides those of which I have lately discoursed while I was at your feet, and that you may never put to me any other questions, for I have nothing further to say—I beg you will observe these three matters:—1st, My soul I commend unto God, and to my father.—2d, As to what regardeth my body, I well know how little it availeth where it lie until the day of judgment: but I wish you, in my name, to entreat his Majesty the king, my master,—looking to what the Emperor my father requested of his Majesty, as well as to the way in which I have served him,—to grant me

this favour—that my bones may rest somewhere near those of my father. In this guise my services will be amply satisfied and recompensed.—3d, As to these old rags which I have here, I know not how to dispose of them; but as I am the Emperor's son, and the Emperor recommended me as such to his Majesty, and as I die in his Majesty's house, and in his service, let him, like a true father and master, dispose of my possessions—not only as if they belonged to his son, but to his servant and slave; and I would do the same were the whole world mine.'

"Don John entreated me most fervently to beg your Majesty, in consideration of this his expressed wish, to pardon him if at any time in Italy or elsewhere he hath used your Majesty's moneys more than was fitting. He said very many other things to the same effect, the which, although I remember me of them, I will not write, in order not to wring your royal heart any further; and thus in that same night he repented him of his sins with as much fervency as if the last hour of his life had actually come, desiring to have some opportunity to receive the most holy sacrament on the following morning: this, however, was not possible until two days after that most famous and miraculous victory. The Saturday before the day of Pentecost, while we were before Philippeville,—acting upon the leave which his highness had formerly given me, I did entreat him almost with reproaches not to place a life, so useful to the church and to his brethren, in such frequent and imminent danger, nor to take upon himself labours to which his bodily strength was unequal, whatever his wishes and courage were. His highness replied; 'Reverend father, this life and much besides I owe to God, and to the king my master, to whom, as I have oftentimes said and now repeat, I leave my bones and all I possess, should I die here in his territories.'

"On the first of August—for I pass over many details in order not to weary your Majesty; the night before his highness (who is in heaven) bestirred himself against the enemy before Malines, he made a general confession of his sins, placing himself in the hands of God, preparatory to receiving the most holy sacrament on the following day; confessing again afterwards, and saying that that was a good testament when a man commended his soul to God, his body to the company which he loved best, namely that of his father and master, and his property in the hands of him who knew better

than he how to take the burden of it. And, in truth, his highness only used it in your Majesty's service.

"Finally, the second day on which he sickened, he said that although the physicians declared his malady not to be dangerous, he did, nevertheless, feel himself exceeding ill and worn. But what gave him infinite pleasure was to see that he was so poor that nothing on earth could prevent him from speedily being with God, more especially having his Lord and father in heaven, and on earth your Majesty as his lord and brother. And he was most confident that, if his affairs were left in your Majesty's hands, they would have that end and success which was proper. This same day he did ask me many questions touching the virtue of martyrdom, desiring to have some share of its merits, giving signs of his having many times entreated God for martyrdom.

"The following day, the 25th September, he confessed like one chosen of God, telling me that he knew his days to be numbered, and that his only regret was the little he had done for the service of God and of your Majesty; but that he trusted in God and in the Virgin Mary, that they would take this death as for their glory, for that of the Catholic Church, and of your Majesty, and for God's service; and that he wished to make the world understand that, as during life he had not been devoted to the church, as had originally been his father's wish, in death he wished to be so, in as much as depended upon him. He besought his brother and master to remember him of his servants, to whom he owed much for being good and faithful to God, to himself, and to your Majesty: and very many of them were poor, having served him by land and by sea; many of them, moreover, had been taken away from their homes, and he had not a maravedi wherewith to pay them their salaries, which had been owing to them for some time. Your Majesty was also to remember his highness's mother, whom he regarded and loved as a mother, and a young brother, whom he knew to be such. He likewise mentioned other persons, whose names in due time I will make known unto your Majesty. His highness concluded by saying, 'since on earth I do not possess an acre I might call my own, is it not just, Reverend father, that I should desire some space in heaven?' His highness then desired that Otavio de Gonzagua should have the command, on account of the good will which he saw in him to your Majesty's affairs, as well as to his highness. His highness ended by saying that, if he were not deserving of having his bones

placed beside those of his lord and father, he desired to be buried at the church of our Lady of Monserrat, whom all his life through he held in particular affection.

"On the morning of Friday, the 26th September, on my going to see him, Don John complained to me that the physicians had used force to compel him to drink a potion: this annoyed him much, as he thought it would interfere with his receiving the holy sacrament. On my telling Don John it was of no importance, he requested me to inquire of the physicians if he ran any risk should he put off communicating for another day, or if he left it even until the following Sunday, when he thought to gain the jubilee. The physicians told him that his illness was not so dangerous but what he might put off receiving the holy sacrament till then, or even later; and therefore, on Sunday, the 28th, he reconciled, himself with God, with such fervour, that it much pained me to see the pain in which he was, knowing that it would add to his malady. And while I was performing mass in his room, he requested to be allowed to touch the face of his God with an air of incredible devotion, saying 'Bring unto me, most Reverend father, the visage of my God;' and while he thus uttered words of such Christian import, he received the most holy sacrament. And on being asked if it were his pleasure to receive extreme unction, he requested it with much earnestness as a very precious gift and much to be desired.

"The mass over, Don John named the Prince of Parma as his successor, until your Majesty should be pleased to appoint some one else. Two hours afterwards delirium came on, and nothing that he said was clear save when he talked of God. The names of Jesus and of our Lady were mentioned; and when he was told to take or to do this in their name, he did it with much obedience and willingness.

"Don John passed Monday and Tuesday in great trouble and pain, and he wandered in his mind, which ran upon ordering intrenchments to be thrown up, or cavalry and ammunition to be sent here and there, saying alway, in answer to every question, that thus it concerned the service of your Majesty.

"This same Tuesday night, I inquired of him whether he wished to have the sacrament of extreme unction administered, and he answered as if he were suffering no pain whatever,—'Yea, father! Jesus! quick, Reverend father!'

and he received it with an appearance of praying, although we could not distinguish what he said, as he did not speak clearly.

"Early in the morning of Wednesday, the 1st October, which was the day of his death, and about one hour and a half before his decease, I asked him if he wished to hear mass, and he made a sign with his head in the affirmative. When the *corpus* was raised, they who were standing at his bed-side advised him of it; and although his eyes were shut, and we thought that his senses were wandering, his highness immediately clasped his hands together, and hastily tore off from his head some plasters and a cap, the better to adore with his heart that God and Saviour whom he could not see with his eyes. The rest of the time, until his decease, which took place at about one o'clock in the day, we passed in helping him to call upon the name of Jesus and of the Virgin Mary; and all who were present were filled with grief,—although, on the other hand, they were rejoiced to see such manifest tokens of the glory to which he was fast attaining: and thus he departed from our hands without a sigh, like a bird on its way to heaven.

"This, most powerful sir, was the end of the life of this son and servant of your Majesty, as he was wont to call himself. And, as far as I can see, for thirty and three years he hath performed the wishes of the two fathers whom he had in this life—that is to say, of his lord and father the Emperor, and of your Majesty, seeing that his highness hath informed me that his Majesty the Emperor wished him to be in holy orders, and your Majesty desired him to be a soldier. But his highness, like an obedient son, died as poor as a friar, and in an humble barrack like a soldier; for I promise your Majesty that the room wherein he died was a sort of garret over a stable, that in this he might imitate the poverty of Christ; and without doubt, most Christian Sir, for four or five months before his death, he was constantly occupied in works of charity, piety, and humility. His whole pleasure consisted in visiting the sick—of which there were many in the camp,—and in accompanying the holy sacrament, giving these wretched men charity with his own hand, receiving with the utmost compassion the poorest and most wretched soldiers, until he could procure carts in which to convey them to the hospital; constantly urging me to see that in the hospitals nothing was wanting, and particularly ordering me to see that the sacraments were duly administered to the sick, that none should die without this great comfort. He appointed a separate hospital for those who had contagious disorders, and

charged me to see that none of those should die unaneled. And since his Holiness gave him authority to name some one as vicar-general, to have full power in all matters ecclesiastical—whereof I understand his highness hath informed your Majesty by means of the Archbishop of Toledo—he determined to root out of the army all blasphemies, oaths, and evil doings, and in particular the sin of heresy, promising me that he would not favour any one, even if he were especially attached to his person; and he punished those who sinned in this manner in the army with such vigour, that, at the end of three months, the men, especially the Spaniards, were more like monks in a convent than like soldiers in a camp. And this most excellent prince acted in such a manner that, now when the soldiers see him dead, they cannot but believe that he had a spirit of prophecy touching his death. Nay, they do say that it does not appear to them as if his death were after the manner of men, but that he flew like an angel of heaven up to his God.

"Otavio Gonzagua performs, and has performed on his part whatsoever was ordered by the Señor Don John, taking advice in all matters of the Prince of Parma, and waiting like all of us to receive the commands of your Majesty, whose royal person may our Lord guard and prosper for many years to come, as is most necessary for the Church.

"From Namur, this 3d October 1578."^[43]

Don John died in the fortress commanding the town of Namur; and on the 3d October, his body, placed on a bier, covered with cloth of gold, was conveyed by several gentlemen to the cathedral. Don John was dressed in full armour, the order of the Golden Fleece was placed round his neck, and on his head was a plain cramoisy cap, over which was a crown of cloth of gold, covered with jewels; his fingers likewise were loaded with rings. In this guise the body was carried forth, escorted by all the clergy of the place, by several monks and their bishops. All the assembled crowd shed tears, and made loud lamentation as the cavalcade passed. The bier was placed on a raised platform in the church, and, after the service had been performed, the corpse, was lowered into a vault near the high altar, where it remained until it was carried into Spain in the following year.

Don John's corpse was then cut into three pieces, and placed in three small chests lined with blue velvet, the better to enable it to pass secretly through France. On the 18th March 1579, the cavalcade left Namur, and, passing by

Meziers and Paris, arrived at Nantes, where the whole party embarked, and reached Santander on the 6th May. On the 22d the funeral procession arrived at the monastery of Parreces, five leagues from Segovia, where it was met by Busto de Villegas, Bishop of Avila, by Juan Gomez, the Alcalde of the Court, accompanied by some alguazils, by twelve of the royal chaplains, and other people belonging to the court. The three portions of Don John's body were now joined together and placed in a coffin, covered with black velvet; on the outside was sewn a cross of cramoisy velvet, upon which were emblazoned golden nails. The coffin was made to open at the side, in case any desire might be expressed to see the dead body within. The cavalcade swelled as it approached the monastery of the Escorial, where it arrived on the evening of Sunday the 24th May 1579, accompanied by above four hundred men on horseback.

We will now follow an account given by Fray Juan de San Gerònimo, a monk of the Escorial, of what happened on the occasion. It seems the monks came out to meet the procession:—

"And because," says Fray Juan de San Gerònimo, "the Reverend Prior was absent at the general chapter, holden this year of 1579 at San Bartolemé el Real, the Vicar Fray Hernando de Torrecillas performed the offices in his stead, and went forth with the ministers in their full canonicals: all of the which halted at a table, over which was a dais of rich brocade, raised in the midst of the principal cloister, where the gentlemen bearing the pall placed the body. The choristers immediately began to chant the '*Subveniti Sancti Dei*;' whereupon they all returned in procession to the church; and these same gentlemen who bore the corpse on their shoulders placed it on the platform which had been raised for it, when the Reverend father vicar read the funeral oration in the presence of the whole convent; the bishop and the pall-bearers being ranged round the raised platform. When this was finished, the Reverend fathers went to the choir to sing a vigil, and the bishop, with his company, adjourned for a while to take rest. The following day, which was the 25th, high mass was sung, the bishop assisting the choristers in the choir. When mass was over, the monks went into the chapel where the corpse was, and sang the responses, accompanied by the organ, while the monks of San Lorenzo answered them in recitative without music."[\[44\]](#)

After this a formal ceremony was gone through. Philip's secretary, Gastelia, read a royal order from his Majesty, directing the friars of the convent of San Lorenzo to receive the body of his dear brother, the most illustrious Don John of Austria. Fray Juan de San Gerònimo thus concludes his account:—

"And after the reading of the said letter, the followers of Don John let down the corpse into the vault which had been prepared for it underneath the high altar, and placed it among the other corpses of the royal family. This was about eleven o'clock in the day. After this ceremony we all went to dinner."

At which excellent occupation we cannot do better than leave them.

A NIGHT'S PERIL.

Two days before I sailed from Mauritius, I was sitting at breakfast on one of the packages containing my traps. The walls were stripped of their pictures, the cherished whips and pipes were gone from the chimney-piece—the crockery which ministered to my occasions was borrowed. The Sarah transport floated in the harbour, and almost sent the tail of her pendant into my window.

There was no mistake about it,—I was on the move; and, of course, as I was bound to Old England, I ought to have been in ecstasies. But there is no such thing as "of course," in human affairs. Of them, the tide is subject to so many perturbations, that, like Mrs M'Stinger, there is no saying which way they may head at any moment. For myself, I have ever been somewhat of a cosmopolite, and felt it to be bad policy for a creature of condition so erratic as man, to circumvent too closely with particulars of locality his idea of home. It is a narrowing of our capabilities to anchor our hopes in some village or county, and to persuade ourselves that thence they cannot be started without shipwreck. If ever any of the sons of men were senseless of ambition, and the *auri sacra fames*—those circulating forces that draw men from the native hearth, and prevent the stagnation of societies—they would need a triple defence against Necessity to fortify such a position. When this "Daughter of Jove" descends in her might, and hurls them from their strongholds—when go from home they must, even then will men sometimes go resistingly, which is the same thing as to go painfully. A man who should cling to some particular post or pillar till torn thence by mechanical force, would probably be wounded in the struggle. And so is it that the mental lacerations which some emigrants exhibit as the work of cruel necessity, are but the effect of their own obstinate clinging to some spot or outward object from which the fiat of necessity has separated them. Such men are cruel to themselves, and must often move the pity of their fellow-wayfarers. Such men are to be seen nursing their sorrows, blinding their eyes, and denying the sympathies of their immortal and infinite spirits. *The World* is man's habitation; and a good Providence has so adorned its every part, that no where can we be called to dwell where a wise man may

not be happy and at home. The sacred asylum of home, is of no geographical nor material limitation. Its building is of love, and faith, and peace; and these foundations may be laid any where, for they dwell within the spirit of man, and are evoked by the voice of wisdom. Be wise, then, oh wanderer from the land of thy sires! Open thine arms to thy new brethren and sisters, and live no longer as though possessing no higher innate powers than an oyster or a cauliflower. Here, where you are, you have what may serve your present aptitude; for aught more you must wait till hereafter.

I by no means intend to infer that it required any high strain of philosophy to accommodate one's self to the circumstances of a few years' sojourn at Mauritius. One might, perhaps, assume it to be one of the most beautiful islands in the world. The good merchants and planters exhibit hospitality in its very pink, and abundantly evoke for your benefit the resources of the island. Objections, on the score of climate, I look upon as unworthy of a prudent traveller; for to one who will be at the pains of a little concession to circumstances, all climates soon become the same. 'Tis but an extra cloak at St Petersburg, and an hour or two's siesta at Calcutta. The one really assailable point in the constitution of Mauritius, is, that it is a little out of the twopenny-post line,—but as I was not in love, this mattered little to me.

When I say that I was not in love, I must be understood as speaking irrespectively of Mauritius. Till I set foot on those bewitching shores I had deservedly enjoyed the character of a hard-hearted, impregnable bachelor. It would be tedious to sum up the names of my messmates, whom one after another I had seen fall victims to eyes that had vainly expended fascination on me. The girls always gave me up as a bad job within three weeks of our arriving at new quarters. But now my time was come—*dedi manus*—I had stretched my tether to the utmost; and soon after I had set foot on the island of Paul and Virginia I had ceased to be a freeman.

Now, put all these things together, and you will not be surprised to hear that I was not out of my wits with joy, at being ordered home.

Mine was one of those complicated cases of love that will occur sometimes; not *one* flame, but many consumed me,—not *one* image of female loveliness, but many such specimens, beset my reveries. I would turn out in the morning with the perfect conviction that Maria was the real girl after all, and so rest satisfied, till some person or thing, envious of my peace, would

call up to my mind's eye, Lucie, or some other of the score of pretty names that rejoice Echo in that favoured spot. Thus did I shift my allegiance from one to another, and live in such uncertainty, that had Hymen's self decked for me the altar, I should have been so long in settling what name should thereon be inscribed, that he would infallibly have put his torch out in disgust.

So tempered I sat breakfasting. With the confusion of softer feeling, which I have tried to describe, was mingled a little indignation at a letter which I had just received from my old friend Jack Hardy. He did me to wit, that he had heard of my goings on, and congratulated me on being ordered off, before I was regularly nabbed. In case of the worst,—and this was the part for which I could have thrashed him,—in case of the nabbing aforesaid having actually taken place, he suggested, that I need be under no alarm, since now I had an obvious opportunity of going home to "consult my friends." Considering how often I had myself used this weary old joke, I remember it did seem to me a little odd, that I should so wince at it then. "Nabbed," thought I, "I only wish that Jack, or any body else, would tell me by whom." And then I began to think, how like my state was to that of a hypochondriac, who, assailed by fifty symptoms at once, knows not which to regard, and so misses the cause of all the evil. Authorities agree in stating, that a man can be in love with but one person at one time; so in spite of appearances, I was obliged to conclude that some one particular young lady was the motive power of the distraction I exhibited.

But little mattered it who, or how many, the girls might be; I was going to leave them all. Soon Mauritius and its happy company would have to exist for me dreamily, and as an image of the past, the vivid lights of its actuality pushed into obscurity by some harsher present. Soon the popular ----th, would be gone, and be succeeded by some other no less popular regiment—and then, thought I, how long will the girls be before their grief finds consolation from among the new arrivals? Will any inconsolable one remember us? Will any remember me? A buzz of the island patois broke in upon my meditations, just as I was beginning to make out the image of one fair friend, who seemed to stand forth in favourable relief from among the multitude. It was very annoying to be forced from hope just nascent in distinguishable form; but the ideal must ever, experimentally, give way to the real.

I approached the window, where a Babel of tongues was raging, "*Gaitli donc, gaitli! li grand mossieu, su li petit cheval.*"^[45]

The cause of the commotion was apparent, in the person of my friend Hamilton, who, at the precise moment of my reaching the window, had managed to make his way through the crowd, and was dismounting. I might have guessed, before seeing him, who was the comer, for he never stirred out, in his then fashion, without causing a disturbance of the popular quiet. He was a tremendous big fellow, who had a fancy for riding the smallest poney, that would keep his legs well bent up from trailing on the ground. This sight, for some reason or other, particularly tickled the fancy of the local vagabonds; and they habitually made point of affording him a guard of honour on his excursions.

On this occasion the noise waxed louder than usual, and soon let me see that something more than common was in the wind. As soon as I could make out the personal appearance of the steed, I saw that his garniture was out of the ordinary equestrian fashion. About his saddle was slung a collection of parcels, and over his neck depended two uncovered, and uncommonly good-looking bottles. Besides this, Hamilton had in his hands a basket, and was evidently made up in all respects for a start or a cruise some whither.

"Whither away my man?" said I as he entered, mustering up the most facetious look I could, to hide the possible traces of melancholy on my physiognomy; for I knew him of old as a desperate roaster.

"Where you are coming with me, Jack," replied Hamilton, "so get your traps together in a quarter less no time."

"But, my good fellow, I cannot; you know I sail the day after to-morrow, and have lots to do. Besides, to tell you the truth, I am a little, just a little out of sorts."

"Melancholy, and so forth," said my friend, "but let me tell you that's exactly the reason why I've come to fetch you. Here, read this *billet-doux*, and then give me your answer."

He threw me a pretty, little, three-cornered, rose-coloured, scented note, whose superscription set my heart palpitating. It was the calligraphy of

Virginie G——, and addressed itself, comprehensively, "To all whom it might concern."

In pretty mock heroics, it set forth the commands of certain undersigned fair inhabitants of the colony, to all and sundry the officers of Her Majesty's ——th regiment, to repair to a spot, some little distance on the other side of the harbour, there to hold *fête champêtre*, by way of parting festivity. I looked over the names of the fair despots, and saw that among them were most of those who had especially made happy the last few years of my experience. Virginie G—— herself was certainly the one on whom I thought the most frequently in connexion with the two days that alone remained to me.

"My dear fellow," said I, when I had spelt over the list of names, "here is enough to tempt one; but let us be discreet as we grow old. What can come of my going, but fresh regrets? Can I forget that in two days I am off, bag and baggage, and that some new fellow will succeed to all my tender interests here, just as naturally as he will to my quarters." Hamilton had lit a cigar, and smoked on thus far in silence, though I felt that he was watching me.

"I have not done my business yet," said he, "nor shall I without a little bit of treachery. Virginie wrote that letter."

"There's no treachery in telling that, for I knew it at once."

"But there is treachery in telling that she laid her commands on me to show the document to you: more especially, as I believe she would blush extravagantly, if she thought you knew it."

Now let me say, that though I had for Virginie that kind of sentiment that made me feel ill at ease under the inquisitorial eye of my friend, I had never felt sure that she cared for me *accordingly*. Some girls are so excessively tender, that they can spare more love to a canary bird, than others can afford to a declared suitor. Virginie was of this affectionate sort; so, though she had been tender to me, I lacked assurance that this tenderness contained in it any thing of distinction.

I will confess, then, that it touched me rather, to hear that she had actually vouchsafed me a particular remembrance.

"Jack," said my friend, "you must come. I'll be candid, and tell you at once that I've read you like a book. You're in love with one of those girls, and don't exactly know which it is. Well and good—that has been many a good fellow's lot before you. However, here's a chance for you to try to learn your own mind."

"Alas! and much good that would do me!"

"Good—of course it will. You will have them all together, and there's nothing like comparison for helping on a judgment. Besides, if you do nothing else, you will at least have a pleasant day, and leave a good impression."

I cannot say that I felt particularly disposed to join a mirthful party. But at least I should see once more assembled in their glory the kind creatures on whom I depended for pleasant recollections. I should be able to see whether any of them appeared sorry to leave us, who had borne them company in so many a deed of mirth. And as at all events I should escape a fair portion of the twice twenty-four hours' moping that otherwise must be endured, I determined to go, though at the risk of sharpening the regrets of parting.

There was also another reason why I was the readier to go; and as thereby hangs the adventure of this present inditing, I may as well explain at once. This was the last day on which I could write myself owner of my pretty little Mudian boat, the Wave. I had sold her off with my nag and the usual encumbrances, and the next day she was to be the property of a new master. Any one who knows the island within the last few years will remember the Wave, that used to beat every thing in her waters. The only thing that at all came up to her was the launch of the old Bucephalus. This was the fancy boat of the first lieutenant, who after many experiments had hit upon the lug as the becoming rig. With the wind well on the quarter, the old launch would beat me, and close hauled I would beat her; but which after all was the better boat was a question we could never settle. However, it was for no want of trying. As surely as it blew at all fresh, so surely would the little Wave be seen cruising about among the shipping, and passing under the stern of the Bucephalus; and so surely also would the launchers be piped away on board the big craft. Many was the prophecy uttered that the little barkey would be my coffin, and so once she certainly would have been, had

we not had water ballast aboard, when she capsized in a heavy squall, to which I would not shorten sail.

I liked mightily the idea of a farewell cruise in my poor little boat, in such pleasant company. Objections touching her unprovisioned state were met at once by Hamilton, who had laid in abundance, and was carrying about him some of the odd trifles forgotten in the first instance. He had fully bargained to go in my boat, and as my companion. Boating was no usual fancy of his; but somehow he had a great idea of my nautical skill, and a high opinion of the craft herself, that made him sometimes willing to enlist as my companion. He was a very good fellow, but, I am bound to say, more useful and agreeable on shore than at sea. He would sit down in the little hatch and smoke his pipe rationally enough when all was smooth. But directly we felt the wind, and began to lie over the least bit in the world, you might see him eyeing the dingy's skulls, or any stray bit of plank as a stand by in case of capsize. Once I saw him pull his jacket off for a swim ashore when well out of soundings. Put all this together, and you will understand my friend to have been of a temperament nervous as touching the water. However, he was a very good fellow; more particularly one to whom I least feared to communicate any little romantic episode that might turn up. A good deal in this way I had already told him; and, far from laughing at me, he had seriously set himself to help me at my need.

We settled then that we should go together to take this last day's sail out of the Wave, and to make the most of the ladies' society, before the act of severing should take place. It would be difficult to say what were the hopes that seemed to peep out at me from the prospect of our arrangement; but plainly enough I did encourage the hope of some good that was to come of it. Perhaps I was brightened up by the change for the better that my lively and somewhat whimsical friend had introduced into my morning society. Certainly he was much wittier, and more amusing than my own thoughts, which had been my only companionship before. At any rate, having once agreed to the convention, I set about the preparation of myself and my traps with a good will. The day was lovely, and by happy accident not too hot. A light breeze was springing up which would carry us nicely out of the harbour. The only difficulty in the way of a start was touching the due manning of my craft, as Pierre and his little son Antoine, who had composed my former crew, had been paid off the day before, and were

shipped aboard another craft by this time. Right sorry, too, they had been at the change, for both skipper and craft had been exactly to their taste. I was not up to navigating the boat entirely by myself, and had no great opinion of the value of my friend Hamilton as a watch-mate. However, he volunteered with such hearty good will, and the weather promised to afford so little room for seamanship, that I thought he might do at the pinch. It was the first time we had ever been out alone, for, frequently as we had been together, he had been constant to his character as a passenger.

"Now Hamilton," said I, "you must work your passage. You must stand by to clap on a rope, or run to the tiller."

"Ay, ay," said he, "never fear; I'll not shirk my work. I've had a wet jacket before I saw your craft. Did I never tell you about my cruise on the Cam?"

"Never, Tom."

"Then you do not know half my nautical experiences. Let me ask you how often you have been capsized in one day?"

"Never but once, I am happy to say, and that was when Pierre held on too long at the sheet, against that old launch of the Bucephalus."

"I've been before this twice fairly foundered, and once hard and fast ashore in one day. I was on a visit to Bob S——'s brother at Magdalen, and among the amusements of the season was boating: most unseasonable work it was just then, for the weather was bitter cold. We started, a lot of us, intending to navigate the river as far as Ely. None of us happened to know any thing about nauticals, so we blindly submitted ourselves to the guidance of a fresh-man who wore a remarkably hard-a-weather pilot-coat, and waddled in walking like a man unused to terra firma. He took the command as naturally as possible; never dreaming of so far doubting our judgments as to mistrust his own ability. We had hardly got well away, when a squall laid us right over, and fairly swamped the boat. This we regarded as an accident that might overtake the most skilful; and I verily believe that we even the more highly esteemed our Palinurus on account of the coolness which, we must all do him the justice to say, he exhibited. But when, soon after, he ran us regularly under water, we began to be suspicious, and hints flew about that he had undertaken more than he was up to. On this Mr Tarpaulin, with all imaginable complacency, asked us what the row was about, and whether

we thought that any of us would have done better, if this had been the first time in our lives that we had exercised naval command. After this confession, we were no more surprised at accidents. We regarded it as rather an easy let off that the concern was driven hopelessly hard ashore, in a stiff clayey soil, that allowed no idea of getting her off that night. All this may sound very little to a regular old salt, like yourself; but add to this little sketch the idea of a driving sleet, and a seven or eight miles' walk to Ely at midnight, without shoes, which the greedy loam sucked from off our feet, and the *ensemble* of hardship is enough to satisfy a landsman like myself. Since that time I have been little given to boating, and, as you know, never go out except with you."

"Well I'll try never to play you such a trick as did your tarpaulin friend. But the sea is a ticklish element, and the sky is a treacherous monitor."

"They never, either of them, promised better than they do to-day, so let us be off, or Virginie will start in search of pleasure with a cloud on her pretty face."

We bundled up our traps and started accordingly. The distance between my quarter and the little mole where the Wave lay rocking in the gentle undulations was soon passed over. I felt the influence of feelings far more serious than I wished to have perceived, and Hamilton evidently respected them. Like a good fellow, he pulled away at his cigar and said nothing. His little animal, under the guardianship of one of the ragged *gamins*, had preceded us to the waterside, and was there waiting our arrival, in order to the due discharge of its burden.

Poor little Wave! she was not accustomed to be lying in harbour when her sister craft were under weigh. One might have fancied that, with a sentiment of desolation, she allowed her burgee to droop listlessly, flapping it against her mast, as a bird makes sorrowful action with her wings. It did seem too bad to sell her;—and again I went over in my mind the bargain I had driven, and the price I had taken for her. After all, the conclusion was unavoidable, that I could not take her with me,—and, besides, I was going where could not use her.

All the rest of the fellows had started, and already were hidden from us, as we then stood, round the rocky point. There was no one to hail for a dingy, and we were beholden to a dusky gentleman in a country boat for a passage

alongside. We had a job to get the anchor up; for it had so happened that when last we came in all the buoys were occupied, and as I had little idea of wanting to use her again, I had let go her anchor. When we were fairly under weigh, I began to look a little into our capabilities. She had been sold "all standing," so that the general complexion of her gear was much what it had been under my catering. But there were already some symptoms of a change of masters. The sail locker was empty; and I remembered that her old suit had been exempted from the general bill of sale, and made over as a legacy to old Pierre. He had walked off with them; and thus we were left with no second suit of sails in case of accident. Those on deck were all she had to show. However, this deficiency was far from causing me any alarm; nothing in the way of sea accident seemed less probable than that we should carry away any of her rags that day. We were going, merely for easy locomotion, amidst a fry of small craft, some of whom would be sure to lend us whatever by any accident we might want. My present mate, moreover, had a special objection to "carrying on." There was a convention between us, by virtue of which it was understood that whenever he came with me, we were to slope along on an even keel. His apprehension of disaster comprehended nothing but fear of a capsize from carrying too much sail. I think he would have preferred going unprovided as we were, to leaving it in my power to make sail in case of accidents. All he realised was, that without sail a craft would not "turn the turtle;" and as to her fetching port, he had in this particular a blind confidence in the skill of his skipper for the time being.

There was scarcely enough wind for us to work out of the harbour, as the set of the sea carried us strongly towards the bluff of rock that stretches nearly across the entrance. But as I have said, there were few boats could go to windward of the Wave, and perhaps none that "went about" more readily, and with less loss. So we managed to shave past, and came into full view of the little squadron. We were signalised at once, not by the ordinary bits of bunting, but by general acclamation, and waving of handkerchiefs by our fair friends. On board the largest yacht, a committee of ladies had established themselves, with plenary powers of command. This was the Queen Bee, whose motions the rest were to follow. At the moment of our coming in sight she set the example of making sail, and making the best of our way to our rendezvous; and forthwith all the rest, who had been lying-to for us, followed her motions. The idea of the party was to get, as best we

could, with the light breeze that then served, to the rendezvous. For our return, we were almost sure of the land-breeze, which would help us along homeward without any trouble. They were all in tip-top spirits,—especially, I thought, on board the Commodore. In about half an hour we ranged up along-side of her, and there we found collected what might be called the bouquet of the party. Among them was Virginie, whom I had half hoped to find, but whom I could not flatter myself that I really did find, subdued at the parting with so many of her friends—more especially at parting with myself. She bore the air of happiness triumphant. Still I could not but fancy, when she waved her pretty hand to me, that it was with something of *empressement*. I know that I must have been considerably *empressé* in my salutation; for a host of latent associations stirred within me, at this, as I deemed it, farewell meeting. I had no desire to make myself ridiculous; so I kept my own counsel as well as I could. But I felt seriously unhappy, and repented for the moment that I had obeyed the invitation. I will not detail the history of the fête—it passed with every advantage of weather and sociability. The poor sentimentalists, if any there were besides myself, must have felt themselves sadly out of their element. All seemed as jovial as though no such thing as parting existed as a human necessity. Amid all I grew sadder and sadder, and blamed my own folly in coming. Already I thought that many of the damsels showed an unaccustomed disregard of my presence, as though it were no longer worth while to distinguish with attention a man who was on the eve of leaving them for ever. Virginie was unequivocally an exception to this rule. She was, as she ever had been, kind; and made many inquiries as to my future movements, even speculating on our meeting again. But she seemed thoroughly content that I should go, and as though no such dream had ever entered her head as that I might, under any circumstances, remain with her. Altogether I was so far from entering into the spirit of the party that I suffered an access of misanthropy. In my own mind I condemned her as having been utterly spoiled by education and early associations. She had been used to intimacy with so many, and such constantly changing friends, that she was utterly incapable of the stability of friendship. The devotion of love could not, I thought, be found with her; and without this devotion hearts are not given.

On the melancholy pasturage of my own thoughts I became at last so visibly doleful, that I acted quite as a wet blanket on the party. Some of the giddier among the girls rallied me, more wittily than compassionately, on

my love-tokens; and wished to try me by a sort of jury, to discover which of themselves it was that caused my grief. The effect of this badinage on me was to kindle no little exasperation against the principal persecutors, and to make me pretty considerably unamiable to all. I felt that I was behaving in a way that would be likely to leave behind me no good impression, and yet I could not constrain myself to propriety.

Thus far my expedition seemed to have answered ill. I have now to tell how it anon seemed to threaten worse, and then turned out in the happy issue which I at present enjoy.

The time came for us to think of returning. There was every probability of our finding this an easy task, as we were able pretty well to calculate on the rising of the land-breeze. The wind had fallen during the day, and for some hours there had been a dead calm. The breeze that was to succeed it was very long in coming. The revellers were so well pleased with their entertainment that no thought was breathed of getting ready for a start, till the gentle sighing of the neighbouring sugar canes told us that the elements would serve our turn. Such a large and straggling party was not got together and re-embarked without difficulty; and the upshot of all was that, by the time we were under weigh homewards, it was well on in the evening. This gave us little uneasiness; the nights were clear, the breeze was generally steady, and as the land lay pretty well astern, the only difficulty that occurred to me was concerning the orderly behaviour of some of the men, who had taken too much wine to be quite manageable.

As it concerns our subsequent adventure, I may as well say that none of the uproarious ones were on board the Wave. They none of them would patronise a craft (so they said) which was commanded by such a long-faced skipper. So Hamilton and myself were the complement returning, as we had been coming. He was as sober as a judge, and just as much disposed as ever to be "handy Billy," or, in common language, to do a turn of work wherever he might be useful. I should think that we must have numbered, in all, at least twenty boats. It did not seem unlikely that some of them might fall on board of each other, as they were crowded very thickly, and some of them kept poor watch. Some of the steersmen were too jolly to be careful, and the girls did not by any means call them to order. It is almost a peculiarity of colonial girls to be without fear. Perhaps it is because they see so much of change, that few things strike them as strange,—and it is strangeness that

generally terrifies. As I had sold my yacht, and bargained for her price, I felt that I ought to be particularly careful of what had become another man's property. I was unwilling to run the risk of injuring even her paint-work, which I supposed to be about the extent of damage threatened by a collision. So I held on till the whole set of them were started, and then got under weigh, keeping in their wake. There was no great distance between us, only just sufficient to keep us well clear of them.

Merry sounds of song and talk resounded from the tiny specks that floated on ocean. Good-humoured hails were sent back to me, and many an offer made of a tow-rope to help me to my station. Some of them had musical instruments with them, and gave the harmony of voice and string to be blended with the evening air. A happier or securer party never enjoyed themselves, nor any, I should say, that fancied for themselves a more perfect exemption from the possibility of danger.

Things went thus for about an hour and a half, the gradual change of evening into night being scarcely perceptible in the lengthened twilight. The wind, which had been gradually falling, seemed then fairly to expire. Nothing more was to be done by sailing, and the boats remained bobbing up and down in the slight swell, without the least homeward motion. It was plainly a case of "out oars." Sadly against the grain did it go with us to pull off our jackets and set to work; but there remained no choice. We could not stay there all night, and if we meant to fetch our port we must pull. Some of them managed very well, as they were helped by the man-of-war boats that had joined the cruise. They got considerably ahead, and thus a division was produced in our little flotilla. The Wave was amongst the sternmost, as for want of hands we had been able to do but little; and besides that, we were in no working humour. One by one they all forged ahead so far as to be out of sight at that time of night; yet still not so far but that we occasionally heard them hailing, or singing at their oars.

As we had no fancy for a hard spell at pulling, we took things coolly as they came. We kept all sail set to take advantage of any little breeze that might come, and meanwhile waited as patiently as we could. Some three-quarters of an hour probably passed in this way, and then the face of the night began to undergo a change. The clouds showed a disposition to concentrate in a particular point over to landward, and light catspaws to play upon the water. Soon the breeze steadied a bit, and allowed us to lie on our course; and

before long we were going through the water at the rate of five knots. We held on thus, till I knew that we must be coming close on to the ugly reef that lies about three miles S.S.W. of Port St Louis. The clouds had become blacker, and without doubt a squall was brewing. Judging from experience, I fancied that it would be only of rain; and, at any rate, it seemed not yet to be so near as to require us to take in canvass. So we held on everything, and I ran forward to look out for the reef, and left Hamilton at the tiller. I at no time particularly liked to have him for a steersman, but now I had no choice, for he would not by any means have done for a look-out man.

"Now Hamilton," I said, "look out, keep her as she goes a bit, and have one eye to windward, for there is a regular sneezer brewing, and we shall have it hot and strong in a jiffey."

As I ran forward, I looked at him to see whether he appeared to be at all in a stew, but was rejoiced to find him cool as a cucumber. He stepped confidently to his post, and looked out to windward like a regular sea-dog.

We had now come to that point of our course where the wind ceased to be right astern. The head of the coast makes it necessary to beat up a bit, in order to weather the headland. We were perfectly able to do this, and to have even a point or two to spare, only we should want a more skilful helmsman than Hamilton. However, we were just clearing the reef, and in a minute or so more I should be able to return to my post. Meanwhile, I kept her as she was a bit, till I should be able to put her round myself.

I had been for some minutes too much occupied with the pilotage to think of the weather, so had implicitly trusted the observation of this to my watch-mate. He ever and anon reported things looking worse and worse.

A fine dust of rain, as it were beating into my face, made me look up, and I saw that we were in for it.

"Stand by there," I sang out.

"Ay, ay," said Hamilton, and he did stand by with the air of a regular blue jacket.

This was all the caution for which I had time. The same moment the squall broke heavily upon us, and the poor little Wave was thrown nearly right on her beam ends.

"Luff there," I cried, "luff, man, quick."

"Ay, ay," was the ready rejoinder, but alas! just the contrary was the thing done. Whether Hamilton was flurried, or whether he never rightly knew what luffing meant, he put the helm hard up. In swinging off before the squall, she caught the full force of the wind, and for one moment I thought all was over with us. She went so far over that it seemed impossible that she should not capsize. But at the same instant, and before one could well think of the predicament, a jerk was felt, an explosion as of a pistol was heard, and the little craft righted. The mainsail had been blown clear away from the stay-rope, and was fluttering about in ribbons.

In a moment I saw the danger of our position. The squall had been the first burst of a regular built gale, which was now blowing tremendously off shore. Had we been all a-taunto we might have managed to beat against it, but even then it would have been a tedious business, and would have required careful steering. At present, with only our jib standing, it was perfectly impossible to dream of such a thing. No earthly power could prevent our drifting out to sea.

Does any man who has not been placed in such a position, think that he can realise the feelings of two human beings thrown thus, like us, waifs on the wide ocean. I believe that no man can; but to assist the imagination of such a one, let him consider one or two things. The waters before us came, with scarcely the break of an island, from the ice-fields of the south pole,—and behind us the waste might almost be called boundless. In a few minutes we should, as things went, find ourselves clear of the lee of the land, and then the Indian coast might be considered the nearest breakwater. The billows that would roll after us would come with all the force collected within such mighty limits, under the excitement of the gale. Had our bark been of proportions to combat the elements, we could have found no safety in an unvictualled refuge. She would at most have afforded us the means of prolonging agony. But I cannot say that the want of provisions seemed to me then to enhance the horrors of our condition. Our death by drowning seemed so certain, and so immediately imminent, that no room remained for remoter apprehensions.

For one moment, I believe, we both lost our self-possession. Hamilton was alarmed at the heeling over, and at the noise, but, when the boat righted, he

seemed to think all the danger was over. My blank look, however, somewhat alarmed him, and he did not quite understand why it was that we were sailing off shore at such a rate. "Halloo," said he, "what makes you look so grave? A miss is as good as a mile. We're all right now, a'int we?" I did not answer him in words; but leaving him to gather intelligence from my looks, I ran to the tiller to see whether there remained any hope of getting her sufficiently near to the wind to enable us to fetch any part of the coast.

The attempt was but a forlorn hope. I might just as well have tried to sail her in the wind's eye. I could not "bring her to" in the least, but she went tearing on right before the wind. "Hamilton," I said, "we are in a bad way. She cannot beat against this gale under her jib, and you know that we have not a stitch of spare canvass."

Strange as it may seem, he did not seem at first to catch the idea of the danger we really were in. He had so accustomed himself to think of one kind of peril only, that he could see nothing alarming in our state so long as we carried on under easy canvass.

"Do you mean to say," he at last asked gravely, "do you mean to say that we are in any danger?"

"Danger!" I said, "do you think there is much safety to be found in a craft like this, out on the Indian Ocean, with a gale blowing?"

"Out on the ocean!"—here his face fell with the expression of a dawning apprehension; "what have we to do with the ocean?"

"How are we to keep out of it? Our last chance was to get her round and run her on the reef,—a poor chance, but all that we could dream of. You saw me try her just now, and saw that it was impossible."

"Then you mean to say nothing can prevent our drifting out to sea?" My silence and dejection gave him the sorrowful answer.

Poor Hamilton! he was a brave enough fellow in his way, and willing to stand any risk for the good of the service,—this was all in the way of business, and he felt it to be right enough,—but the idea of being drowned on a pic-nic excursion seemed to strike him as something altogether out of his way. I will not say that he was afraid on the occasion, because I do not believe he would admit the influence of fear. But he gave me the idea of a

man labouring under the strangeness of an inadmissible proposition. It seemed as though a strong sense of injured innocence were mixed with his apprehensions, as if he felt himself to have been *done* and ill-treated.

"You don't mean to say that you cannot get her round?" this was said to me in a tone that seemed to imply that I could if I would. "If I could," I answered, "I should have run her on the reef; she would certainly soon go to pieces there, but it was our only chance."

"Never mind her going to pieces," said he; "I will pay half the damage."

It annoyed me, even at that terrible moment, to hear our condition made a question of pounds, shillings, and pence. I felt angry, too, with him, when I reflected that we had been brought to this predicament simply by his clumsiness. I so far gave way to anger as to tell him that, if we got safe to land I never would go sailing with him again, nor trust myself on salt water with a watch-mate who didn't know what "luff" meant, and who wanted to sail in the wind's eye under a jib. Poor Hamilton, who now seemed fully to appreciate our peril, contented himself with assuring me that I might rest quiet, for I never should go sailing again with him, or with anybody else.

A growing and abiding sense of the truth of this probability soon checked the spirit of squabbling within each of us. We were every moment drifting out farther and farther. So long as the lights of the island had been visible, they had imparted some degree of comfort. They at least showed whither our course would lay in case matters should so far mend as to enable us to choose our own course. But our distance was each moment increasing, and the night was waxing darker continually. A few more minutes, and the lights were hidden from us; and we were left simply and literally without any knowledge of our position, on the Indian Ocean. The sea had got up, prodigiously, the wind blew harder than ever, and the night was as dark as pitch. Though she was flying before the wind, we could not keep the sea out of her,—it washed in over her quarter every few minutes, and it was all that we could do to keep her free by baling. Happily we had a couple of buckets with us, that served the turn well.

I shudder when I look back to this part of that fearful night. Later on in the season of our peril we did not feel so acutely the horrors of our position, because our sensibilities had been then pretty well exhausted by the struggle for existence. So little hope remained at last that our spirits scarcely

retained the vitality necessary for suffering. We were as though already dead, and already taken away from living pains and feelings. But with the earlier part of the evening are connected associations of far more active pain—I mean during that part when I had not resigned hope. I know that there is a theory current that the living spirit never resigns hope; that a man sinking alone in the midst of the Atlantic, or bowed down for the stroke of the descending guillotine, never believes it to be impossible that he shall escape. I cannot pledge my own experience to the truth of this theory. The spirit of man is so firmly wedded to hope, that it is in extremity only that this blessing can be torn from us. But the divorce may be effected at last, even while the tide of life beats in the veins. I am quite sure that, during some hours of this night, we both felt perfectly devoid of hope, and that we could not have felt more certain of death had we actually passed the gloomy portals. But this was only latterly, when our physical energies had succumbed under protracted exertion, when every expedient we could devise for prolonging our chance seemed to have failed. At first I could not make up my mind that our case was hopeless, nor familiarise myself with the idea of approaching death. No rational ground remained of expecting any thing that could rescue us; and yet I could not forego the expectation that something would turn up. Our perishing seemed too bad a thing to be true. It could not be that our jocund morning should have such an issue; that we, so recent from the companionship of youth and grace, should be hurried to the contact of death. And yet all the while that I thus yielded to the promptings of natural instinct, I felt that we were drifting on each moment rapidly to the catastrophe.

While any room for activity remains, there is to be found some relief in exertion. The full bitterness of our condition was not felt till we had tried every device that we could think of, and had been reduced to inaction—without resignation. Our last resource was one on which I had been sanguine enough to build up some hope. It occurred to me that if we were to let go her anchor, the weight of that, together with her eighteen fathom of chain, might bring her bodily up. I only regretted that we had no spare spars wherewith to form a sort of breakwater, for I have great faith in the powers of a boat to ride out a gale and heavy sea under the lee of such a defence. Still I thought that we might manage to check her way effectually before we had driven too far out to sea; and then in the morning we might still find ourselves in sight of the island. There are circumstances under which one

learns to make much of a very little hope, and I had made the most I could of this. We watched till we got into a smooth place, and then "let go." The extremity of peril had been reserved for this moment. The sudden check certainly brought her up as we expected, but other effects of our manœuvre followed which were beyond our calculation. She rounded to abruptly, and swung head to wind. But the weight of her anchor and chain hanging at her bows seemed as if they would pull her under water. The depression was so great that we saw that not a minute was to be lost, and that our only chance lay in heaving up again as quickly as possible. In our haste we both ran forward to the windlass, and by so doing nearly completed our destruction, for the additional weight had a most alarming effect on her immersion. It became evident that we must at once get rid of the weight, and that it must be done without any additional strain. Our only plan was to slip the cable, and let both it and the anchor go by the run. This I accordingly did; but not even in this extreme peril without a pang of regret. Being relieved, she rose instantly, and in a moment was before the wind again. It had been a narrow escape for us, and, but that we had chosen a smooth place, we must have been swamped there and then. She had shipped a great deal of water, and we had hard work to clear her; and then once more all our work to begin again, for she shipped seas almost as quickly as we could bale them out.

For some little time we worked like men, and as if we really thought that we might work to good purpose. But soon it became quite manifest that we must be beaten. Our utmost exertion barely sufficed to keep her clear; and any little respite that we allowed to ourselves begat a terrible accumulation of water. This could not go on long. Hamilton was the first to admit this conclusion, and to give up the struggle for existence. I observed the particular moment when hope died within him, and noted it by the token of his sinking listlessly on the locker, and expressing in his countenance no sign of interest in our proceedings. To him there remained no more of the interest of speculation; there was for him but one idea, that of death, present and painful. I cannot say that I considered it all over with us yet. I am far from laying claim to any superior degree of courage, or thinking myself a braver man than was my companion. Perhaps my love of life was greater—at any rate I did not yet give in, and by after inquiry I know that Hamilton did. I am thankful that it was so; for my experience made me afterwards acquainted with this state of feeling, and taught how paralyzing are its effects. It may be that, had I earlier shared my friend's despondency, we

neither should have survived to tell the tale. What I contrived to do, though little enough, was yet sufficient probably to make the difference of some hour or so in our foundering, and this respite proved our salvation.

Each moment that passed was bearing us out continually farther into the waste of waters. The gale howled, the waters foamed in rage, and washed over our gunwale; my shipmate had resigned himself to his fate, and replied not by word or sign to any consolation that I tried to suggest. All ground of hope seemed stricken from us; and yet, by a sort of perversity, I would not consent to the verdict that seemed to have gone forth against us. Such a struggle against adverse circumstance, where it is according to the habitual tone of a man's spirit, entitles him to the name of magnanimous; with me, it was rather a particular phase of obstinacy. One single chance yet remained to us—scarcely enough for rational hope; but yet enough to justify resistance to actual despair. As the wind then blew, it was just possible that we should drift off the Island of Bourbon, or, at any rate, come near enough to be picked up by some of her vessels. It was, indeed, a slender chance, but being our all, I made the most of it; so much, indeed, did I make of it, that I verily believe I should have felt quite confident of making the port, if I had had the means of steering. As it was, we drifted along, without any sail set, and without any compass to point us our whereabouts. But the time was coming for me when I was to experience the pangs that attend the death of hope within us. This I regard as the painful part of this night's history. In the earlier stage, there was the relief of exertion; in the later stages there was the insensibility of apathy. The time of sharp anguish was during the transition from the one state to the other.

The *coup-de-grace* came thus. Some half hour or so after the affair of the anchor, while we were drifting before the sea, we perceived a light ahead. Of course, this must be a vessel, most probably a *chasse marée* belonging to the island. It was scarcely possible that we should reach this vessel, but of course we were violently agitated, at sight of her, with new-born hope. Hamilton even roused up and did what he could to help in keeping us afloat; which condition it was very doubtful whether we should be able to preserve long enough to enable us to come up with the stranger. She proved to be beating to windward, and we saw presently that one of her tacks would bring her within hail of us. To see this was to pass at once from despair to confidence. We regarded ourselves as saved, and scarcely heeded

the time that must pass before she could come up with us; a time, every minute of which was fraught with peril, that might shut out from us the prospective help. As she drew near, one only fear remained, lest she might pass us unobserved in the obscurity of night; and so diminutive, an object were we, and so little to be expected in that place, that there was some room for the fear. As she neared us we shouted loudly, but the din of the elements was not to be overcome by our puny voices. But on a night like that, it was necessary to keep a good look-out, and we knew that she must have watchful eyes peering into the darkness. I had on board a brace of pistols ready charged, which having been stowed away in the locker had been kept dry. We fired one after the other, when quite close to the vessel, and succeeded in attracting their notice. We even made out in the murky air, to which our eyes were becoming accustomed, one or two figures of men, who ran forward to see what was the matter. But the *chasse marée* held on her way, unheeding. When almost under her bows, we called out to them in agony, to heave to, and take us on board. But to our utter horror they held on their way, taking no notice of us except by some unintelligible cries. The *chasse marée* passed on, as if she thought it matter of little heed that two human beings were left to perish in the elemental strife of that dark night.

To this moment I cannot understand this adventure. It is scarcely possible to believe that any ship's crew of men could have the horrid barbarity to leave unsuccoured a boat perishing in that wild night. And yet it is, perhaps, quite impossible to believe that they could have thought us sea-worthy and safe. Our signal, our cries, the dismantled condition of our boat, all spoke for themselves. Bitter, surely, must be the recollections of that vessel's company! dark must be the character of that life, in which such an act of barbarism was an unobserved passage. That skipper's worst enemy might wish for him that he might have the knowledge of our escape; that so the pillow of his death may be spared the visitation of that terrible reminiscence.

We looked a moment at each other aghast. We could not believe that the promised succour had eluded us; that we were deserted by brother man on the wide ocean. But wind and water raging around us howled into our very souls the fact. From that time I may say that I gave up hope, that I became as dead; and when at last safety sprang up, it was as from the grave that I rose to grasp it.

From this time I have little more to speak of than a dull and stupid endurance. A period of pain there was to go through, when my mind was bewildered with thoughts of home, and of those I loved in my present abode. There was a bitter pang to think that I must resign my young existence, and there was a realising of the pains of suffocation. I thought it was a horrid death to drown. I remembered the popular idea of death by drowning as coming easily; but I *felt* this to be wrong, and knew by anticipation that I should have a cruel struggle when the water occupied my nose and mouth. Both my companion and myself seemed reduced at last to apathy. We neither spoke nor moved; and both, evidently, thought it vain to continue any longer the struggle for existence. We bade each other farewell, and then uttered no more words. What remained to us of life was given to inward discipline, and to that communing of which the wise man speaks not lightly.

The events that I have been describing, with I fear but little distinctness of arrangement, had carried us on to about midnight. It is difficult to estimate properly the duration of time under such circumstances; but so nearly as I can guess, it must have been about ten o'clock when the *chasse marée* passed us. It must have been little less than two hours that intervened between this time and the happy turn for the better that was awaiting us. My wonder is that we lasted so long; I cannot conceive how it was that the boat kept above water. The sea washed in continually, and we did nothing to oppose its progress. Certain it is that nothing in the history of escapes, with which I am acquainted, was ever more narrow than my own escape; nor ever did a boat float so exactly up to the indispensable point.

From the stupor of despair I was aroused by the report of a musket; it was enough to break the spell and re-awaken the love of life within us. Somebody was near, and we might yet be saved. Another, and another report followed, and a blue light blazed forth. We then distinctly saw, and not very far from us, a brig hove to, and, as we had not the least doubt, making signals to us. Joyously we sprang to renewed life and hope. We again loaded our pistols and answered the signals of our unexpected deliverer. To our unspeakable joy these were perceived, and soon we saw the brig fill her sails and bear away after us. Our plight was yet bad enough. We certainly were above water, and in sight of succour; but it was very doubtful whether we should be able to last long enough to avail ourselves of

the assistance that approached. Our gunwale was nearly level with the water, and in a few more minutes would be submerged. Oh! how did we long to be able to throw overboard every weighty article, and yet we feared to stir lest we should farther disturb the equilibrium. We sat still and motionless on the stern locker, measuring with our eyes the decreasing distance between us and the brig, and calculating the chances which each moment increased in our favour. We feared that the brig might run us down; but we did wrong to her skilful master. They ranged up nearly alongside of us, with main-topsail aback, and threw us out a rope. Hamilton was first, and easily drawn on board, at the expense of little more than an ordinary ducking. My turn came next; and I might have escaped as well as he did, but my worldly feelings had wonderfully revived, and I was no longer content to come off with the mere saving of life; I wanted also to save the boat, which, be it remembered, I had sold, but for which I had not received the purchase-money. I thought that if I could manage to make fast a rope to the step of her mast we might hoist her in bodily, and save her after all. The rescue would then be complete of the whole party. I sang out to them to stand by to haul us in, and rope in hand ran forward to make fast to the mast. But it was not to be. The gallant little boat had done her utmost; and now her time was come. She had saved our lives, but was herself to go down to the abyss of waters. She gave a heavy lurch, and I felt that she was settling. With scarcely the warning of a moment, she dipped her bows under, and sank at once and suddenly like a stone. In that moment the waters were boiling around me, the greedy waves sucked me under; but I held fast the friendly rope. I was drawn on board, but not without some difficulty; for my prolonged exertions had severely tried my powers of endurance, and I could hardly hold on long enough. But saved we were. As I trod the schooner's deck,—as I saw her make sail, and brave the elements which had so nearly wrought our destruction, I felt as though I had seen an angel's arm stretched forth to pluck us from the gulf of waters. I wanted no explanation of the causes which had led her forth; she had met us in extremity, and was to me the arm of Providence. The rescue is as providential in cases where the peril is over in a moment. But there does not seem to be room for such deep impression, where peril merely flashes as the lightning across one's path. The bitterness of death must be tasted by him who is to appreciate the sweetness of deliverance.

On board, we found ourselves in familiar company. Several of our friends were there, and gave us the history of our rescue. At the time when the squall had come on, the other boats had been, as I have said, well ahead of us, and clear of the reef. Some of them had had a little trouble in getting to their moorings, but all were present at muster except ourselves. This would not perhaps have alarmed them, had not the hours continued to pass away without our appearance. By and by their fears were fully excited by the arrival of a man who from the point had seen the accident. He declared that he had seen us blown out to sea, and his report was corroborated by our non-appearance. On this a regular alarm had been sounded in the island. The good old governor had despatched his tender to look out for us, and I know not how many volunteers had started on the same errand. Many were the good fellows who had braved the horrors of that stormy night, that they might have the hope of helping us. The brig was a merchant craft, whose skipper and owner had been induced to start on the cruise. She had been throwing out signals for an hour and a half, and was nearly giving up the search as a bad job. Well for us that she did not!

It was gray morning when the good skipper set us on shore; and I might very well end my yarn, with telling how we heartily shook each other by the hand, and how then I betook myself to those quarters which I had so little expected ever to revisit. But circumstances deeply affecting my after life came as sequels to this adventure, and I think the account of them should come here also. I reached my room without having met a single individual; and tired, wet, and worn out with mental agitation, I threw myself on my bed and slept soundly. My dreams naturally followed in the train of what had been my waking thoughts. Again I was afloat, and again underwent the terrors of foundering at sea. The phantasy of a dreaming spirit presented to my ear the lamentations of my friends. As waking, I had thought in the hour of peril of some one or two who would lament my sad doom; so in my sleep I went yet a step beyond this, and seemed to hear the utterance of the lamentations. These waxed more and more distinct, till the reality of them broke the spell of dreams. I awoke, and yet heard the same conversation.

"Poor fellow! what a dreadful thing!" said one voice.

"Shocking!" said another, which I knew to be that of my old boating antagonist, the first lieutenant of the Bucephalus. "Shocking! I always

prophesied that that craft would be his coffin, but little did I think my words would come true."

The good fellow actually wept as he spoke.

"And that poor fellow, Hamilton, who scarcely ever set foot afloat?"

"Well, they're both gone, but not without our doing, all we could to give them a chance—that's one comfort."

I was now fully awake to the consciousness that I was alive and well—and to the understanding that these mates of mine were lamenting my loss. I did not waste any words in endeavouring to convince them that they were mistaken, but, jumping out of bed, I stood before them. The men stared as if they had seen a veritable ghost, but, recovering themselves in a moment, almost wrung my arm off in congratulatory shaking. Intense astonishment was mingled with their delight, and they were perfectly vociferous in demanding an explanation of the phenomenon I presented in my own living person. It turned out that they had been cruising about pretty nearly the whole night, in the hope of falling in with me. They had full confidence in my resolution; and knew that I would not give in while a chance remained, and so they hoped I would manage to keep afloat, till some one of the numerous boats that were out should fall in with me. I have no doubt that they would have prolonged their search throughout the night, had they not fallen in with a craft, (by the description, I doubt not the identical *chasse marée* that so cruelly deserted us,) which gave them to understand that they had seen us go down. "*Fin, fin, allés,*"^[46] with expressive pointing to the depths of ocean, was the answer they had received to their inquiries. With heavy hearts they had returned home; and without meeting any but those whose search had been as ineffectual as their own.

"And now, Jack," said my friend the lieutenant, "now that we have got you within hail once more, safe and sound, who do you suppose it was that sent me here this morning?"

"To tell you the truth, I thought it was a little sentimental excursion on your own account."

"Not a bit of it. A cleverer head than mine or yours either ordered the expedition. Virginie would have it that any intelligence about you would be in one's way here."

"Then you told her nothing of the authentic account of our foundering?"

"Indeed but I did—but she would not believe it. Depend upon it, instinct is a fine thing. Her instinct has proved better than our reason,—for she would have it that you were not drowned, and that news would find its way here."

Then we entered into a sort of *resumé* of the shore-going events of the last night; of all that the governor had done, and the good fellows who had volunteered to row guard all night with lights. Then it was told me that the ladies had been deeply affected, but none so deeply as Virginie. She had taken no rest all night; but with tearful eyes had looked out for concerted signals of intelligence, and breathlessly questioned every messenger. My sailor friend had been in the same boat with her, and had won from her expressions of gratitude, by his determination to pass the whole night, if necessary, in the search for me. At that moment when we stood speaking, she did not know of my safety.

I determined to be myself the announcer of my prorogued existence, and set off at once to the residence of her father. I had prepared speeches of thankful acknowledgment of her interest in my welfare, and was maturing the intention of letting her see that love for her had been kindled in my breast. But my fine resolves were rendered of little effect, and my speeches broken short by the young lady, who, the moment she beheld me, threw herself—her dear self—right into my arms. She did, indeed, without the least preamble or apologetic qualification.

There is but one issue to such a predicament as this. I had not much time, certainly, for wooing; but I am happy to say, that before long I was wed, and that now I am the husband of Virginie.

SWITZERLAND AND ITALY.

IT is not one of the least curious incidents of the times in which we live, that two directly opposite movements should have taken place in the countries on either side of the Alps, and that their results should have been so extremely different from what might have been expected. In one,—the chosen land of freedom, as it has been called, the last home and refuge of Liberty, when she had deserted other and more genial climes,—the so-called liberals, the democrats, the radicals, have just undertaken a successful crusade against freedom of conscience, and have subdued the aristocratic defenders of religious liberty, even amidst the strongholds of their mountains. In the other,—long the supposed seat of despotism in its purest and most unmitigated form, where liberty and freedom of opinion had not, except during the storm of the French Revolution, ever shown any signs of existence,—a most decisive and energetic movement in favour of political freedom has taken place, and has been originated by the very chief and organ of what the Transmontane people generally consider as the concentrated expression of all that enslaves and subdues the mind. The facts have certainly been unexpected; they have burst upon European statesmen, or at least upon those of the northern and western courts, unawares; and their ultimate consequences appear to be as much beyond their ken as they are beyond their control. The Swiss Federation, notwithstanding the proffered mediation of the great powers, have settled their own matters among themselves; and the Italians seem inclined to *laver leur linge sale en famille*, as Napoleon used to recommend people to do when the operation was of a more than usually unpleasant nature, without saying "by your leave, or with your leave," to any of the barbarians that dwell on the northern sides of the Alps. Austria and France are equally balked in their views upon Switzerland and Italy; and the only power that seems likely to gain any thing by these events will be, in spite of herself, "the perfidious Albion." As usual, however, with English diplomatists, but still more as usual with Whig officials, and with the gaping good-natured multitude of the British Islands, those advantages that may accrue to our country will come, not through any astuteness of the government, or its servants, but

through the sheer force of events urging themselves on in their inevitable course, and filling up the series of secondary causes and effects that compose the history of the world.

To any one contemplating the enviable position and the natural advantages of Switzerland, and still more to any one looking at the fundamental character of the Swiss people, it would seem one of the most difficult political problems to find any cause for internal quarrel and disunion, much less for civil war. Blessed as they are with a country that necessitates all the skill and industry of man to bring forth its full powers, but which, when man tills its bosom, and pours the sweat of his brow into its lap, yields him the sweet return of abundant competence and varied riches, the Swiss have long been looked up to with justice as one of the most truly prosperous and thriving people of Europe. They have not been tempted to throw aside the agricultural occupations of their country for the dangerous and transitory fluctuations of commerce; they have remained strong in their national and natural simplicity; rich, and more than rich, in the produce of their lands, raised by the labour of their arms; and, amid the many changes of other states, when once the fever of the revolutionary malady had left them, tranquil and contented, and objects of envy to all surrounding people. Thus national ambition was of necessity limited; external aggrandisement and colonial extension they could know nothing about; their territory was safe from foreign aggression, or was supposed so, and their energies could only expend themselves on the affairs of their own country. Switzerland remained till within the last few years, as it had always been, the "cynosure of neighbouring eyes" to all Europe; and scarcely a traveller ever wandered amidst its vales and mountains, but sighed after a dwelling in that fairy land, and longed for it as his country by adoption next after the land of his birth. Of all people in the world, the Swiss, to external spectators at least, seemed to have the least to wish for, and the least cause to be discontented either with their country or themselves.

And yet, of a sudden, up rises a storm; the Federation splits; and, before men can come to comprehend what the mountaineers are quarrelling about, swords are drawn, shots are fired, a couple of towns are captured, and the war is declared at an end almost before it was known to have commenced. It has been like a drama at the opera. *Scene*, a rocky district, with a town in the distance: enter a chorus of peasants, who sing about liberty. Alarums: a

band of soldiers rush in and drive them off the stage. Grand cantata of the president,—and the curtain falls. Some connoisseurs in the boxes call for the manager, and ask when the opera is going to begin, as they wish to intervene: the manager enters from the side-door, bows humbly, and intimates that they may have their tickets returned if they please, the play being over. General disappointment!

Something like this would be the dramatised history of the late Helvetic disturbances; so brief, and we may almost say so ridiculous, has the whole seemed. In most countries, when a civil war is proclaimed, and one-third of the nation declares its intention of separating from the other two-thirds, a struggle of some length and earnestness of purpose may be with tolerable certainty predicted: even in Belgium, we should suppose that a civil war would take a month or two before it could be finally extinguished. But in Switzerland it appears that the feelings of the belligerents, whatever may have been their previous intensity, have found an easy vent for rapid evaporation; and after one or two passes with the sword, the weaker combatant has dropped his point and given up.

There must have been something false and spurious at the bottom of all this, or all the braggadocio of the Federalists and the Sonderbund could never have been dissipated by a few shots at Fribourg and Lucerne: one of the two parties at least could not have been in earnest, or they never would have knocked under so easily and so speedily. Political reasons for war cannot become on a sudden so thoroughly fallacious, nor military resources so thoroughly exhausted, as that one day's skirmishing at Fribourg, and two day's fighting near Lucerne, could suffice to settle the quarrel. We are inclined, therefore, to suspect the weaker party to have been conscious of wrong in this case, though to any impartial observer the acts of aggression lay all at the door of the stronger.

How stood the matter? The central cantons, strong in their mountain fastnesses, and on the borders of their sublime lakes, have maintained, under republican forms, the true aristocratic spirit, and the ancient religion of Switzerland. Those encircling these central states, the dwellers in the champaign country and in the cities, have gone into the follies of democracy, and have abandoned more or less the dignity of the old Swiss character, to ape the vices, political and social, of the neighbouring people, whether French or German. Ever since the factious burst of pseudo-

patriotism, during the *inglorious* "Three days" of 1830, the inhabitants of the northern Swiss towns have had their heads running on the visionary schemes that have distracted Frenchmen's brains; and like daws in peacocks' feathers, or servants in their masters' cast-off clothes, have been trying to imitate the "virtues," political and social, of the Gallic people. Hence has arisen the Radical party in the larger cantons; hence has arisen the crowds of infidels and debauchees which have latterly disgraced the petty capitals of those cantons; hence the Catholics have been persecuted and robbed in Argau, and the respectable people of Geneva ousted out of the government by the rabble of that city. Hence came the outcry against the Jesuits, and the former quarrel with Lucerne, in which, however, that city came the best out of the struggle: hence an infinity of petty jealousies and heartburnings, and acts of oppression, on the part of the Radical majority against the Catholic minority, and hence finally the recent resort to arms. The Radical and the stronger cantons have considered it injurious to their own interests, and derogatory to their own dignity, that the freedom of opinion which they claim for themselves should exist in its full integrity among their Catholic and less powerful brethren. They have insisted on the abolition of certain religious orders of men within the limits of their territories; and, because the others have claimed the liberty guaranteed by the Federal compact, they have envenomed the quarrel so far, as to bring it to the decision of might rather than of right. It is in fact, however, a struggle of the democratic against the aristocratic party, of which the Catholic question is only a particular phase; the real bone of contention was, whether the Democrats or Radicals should be endangered in their predominance in the Diet, by the compact votes of the Aristocrats or Catholics. The expulsion of the Jesuits was only a very subordinate part of the question; and, as it now stands decided, the supremacy of the Radical and Democratic faction is firmly established.

It appears to us that, had the cantons of the Sonderbund been governed by clear-headed men, and their armies led by men of talent, not only the political, but also the military, result of the contest would have been essentially different. The cantons cannot have been united by any very strong tie, or they never would have broken off from each other, and made their separate submission, so speedily after the fall of Lucerne. The forces of the Sonderbund cannot have been very confident in their leaders' abilities, or they never would have given up the fight while all the country

on the south and east of the Lake of Lucerne remained in their possession. And yet if they were able only to carry on the war for ten days or a fortnight, they were very blameable for having allowed things to come so rapidly to a crisis. It was a political mistake of no small gravity to form the Sonderbund, and to talk so largely of their separate existence, unless they intended to make a more stout stand in defence of their liberties. Although the Radicals were, like all democrats, the aggressors, still the aristocrats should not have defied them so loudly, unless they had better grounds for showing such confidence. The little boy who squares his fists even at the bigger one that bullies him, deserves a sound thrashing for his impudence, if he is ready to give up at the end of the first round.

We believe the policy of the French government to have been the true one on this occasion: it coincided, indeed, pretty nearly with that of the Austrian cabinet. In fact, any government, that wishes to stand, should be prepared to take the side of the Conservative party, wherever that party, in the true sense of the term "Conservative," exists. It must be prepared, at all times, to support the cause of order and religion against that of anarchy and infidelity; and, though the French cabinet is not overburdened with feelings of honour and delicacy, it has a sufficiently strong instinct of self-preservation, to induce it to side with its friends rather than with its enemies. The policy of the Austrian government could not be for a moment doubtful. Austria has always been the friend of order and of rational liberty; and it was her duty, no less than her interest, to take a decided step in favour of the Forest Cantons. We can conjecture no other reason for these two great powers not having interfered sooner, than that they must have been in uncertainty as to the intentions of the Whig cabinet on our side of the channel, and that they were checked in their action by the certainty that Prussia must take part in the contest, in virtue of the principality of Neufchatel. And yet we doubt not that both France and Austria will be sufferers from the impulse given to Radicalism, by the recent petty triumph of its principles within a day's journey of their respective frontiers. A French regiment in Geneva, and an Austrian one in the Grisons, would have restored the balance of parties, and would have brought back the Radicals to their proper dimensions. It may now be confidently expected that Switzerland will become a little focus of agitation for the discontented in both countries; and that it will exist as a political nuisance under the nose of each of its powerful neighbours, loudly calling for abatement.

England, which, as represented by the present tenants of Downing Street, is no doubt inclined to intrigue with the Radicals rather than with the Catholic party in Switzerland, may lay her account to profit by the stagnation which this contest will occasion in Swiss manufacturing and commercial operations; and may calculate on enriching some of our great exporting houses at the expense of the manufacturers of Zurich and Basle. That she intended or foresaw this result, we more than doubt; but it will very probably be a consequence of her tardy offer of mediation.

As it is, the dignity of position lies altogether on the side of the Federal Diet: they have employed force successfully. Whatever be the merits of their pretensions, they have imposed their claims on their opponents both promptly and efficaciously; and, more by the faint-heartedness and disunion of their enemies than by their own valour and concert, they have established their sway in undisputed tyranny over the whole Federation. The president of the Diet predicted this result, and his words have come true. As in the case of the United States and Mexico, it is the unrighteous cause that has triumphed; and the glory, if there be any, is all on one side. But the ultimate consequences of this state of things may be expected to bring about the decay of the national character, and therefore to undermine the last remaining foundations of Swiss nationality. Whenever a European war again occurs, Helvetia will fall as an easy spoil to be partitioned by France and Austria; and what is more, she will fall unregretted. Her mountains, her lakes and valleys, her forests and her glaciers, will still remain grand and beautiful, till time itself shall be no more; but the old Switzers will have become degenerate, and will have forgotten the glories of their former history. Some of them will be affiliated to the restless family of the Gauls, while the remainder will be learning over again the first rudiments of agricultural and rural prosperity, under the sceptre of the Ostrogoths. Swiss freedom and Swiss commerce will have disappeared from the land; and English manufacturers will be rejoicing at the bankruptcy of one class of their competitors in European or American markets.

In Italy, it is devoutly believed by all English politicians that the genius of catholicism is destructive of the national spirit; and that the long subjugation of that peninsula to the northern conqueror is to be attributed to a prostration of moral vigour arising from the trammels of superstition. And yet, what has happened? A new spiritual chief ascends the throne at Rome,

by accident rather than by design; he pronounces a few magic words, and in an instant the sacred fire of liberty, and the desire of resisting foreign oppression, pervade the whole land. Nor are the people only affected by this universal enthusiasm: even monarchs are carried away by the stream of popular opinion. The King of Sardinia and the Grand Duke of Tuscany come forward as the promoters and defenders of Italian liberty; the King of Naples advances in the same path, though not so rapidly as the revolutionists of his dominions could wish; and all but Lombardy is thrown into the vortex of political reform. To Pius IX., and to the noble conceptions of his prudent mind, the whole of the recent movements in Italy may be fairly attributed. Not but that the public mind was anxious for change: there have long been evils enough rankling in the Italian breast to make change desirable. Yet had it not been for the circumstance of a potentate, the father of his people, and the head of the Roman Catholic religion, coming forward and proclaiming himself favourable to a political change, the whole impulse that now has been given to the various races of Italy would have been altogether wanting.

It would be, perhaps, idle at the present moment to speculate upon the positive direction which this resuscitation of Italian freedom may take; the events of a few months are not to be trusted, as affording any very certain or fixed indication of how the current of the national fortunes is destined to run. The Italians may, perhaps, arrive at a gradual and moderate degree of freedom, such as may conduce to the improvement and elevation of their national character, and to the raising of Italy in the scale of European powers; or, on the other hand, they may run wild into the theory and practice of revolutionary wickedness, and may become the pest and the abhorrence of all Europe, while they sink down to a lower and still a lower depth in the abyss of political degradation. We hope for the former of these results, but we know that the latter is by no means improbable; and in order to point out where the danger of tending towards it lies, we append the following remarks:—

In the first place, it must be sufficiently obvious to any one, ever so little acquainted with the character of the Italian people, that the different nations and tribes of that peninsula are by no means all in the same degree of preparation and advancement for receiving the boon of constitutional government. There is a very wide difference between the inhabitants of

Milan and those of Naples, between the denizens of the Bolognese and the shepherds of the Abruzzi, and generally between the dwellers in Italian cities and the agricultural population in the bosom, or on the skirts, of the Apennines. But to apply the same kind of political institutions to all the inhabitants of a district, without regard to their various degrees of moral preparation for it, is to confer on them a punishment rather than a boon, and to do them evil rather than good. We have too melancholy an example of it at our own doors, where the exaggerated philanthropy of Englishmen has given to the Irish the same political privileges as they enjoy themselves, to wish that such a fruitful source of evil should fall to the lot of any other people. And so it would be with nine-tenths of the people of Italy: however advanced may be the notions of the upper classes, however ripe for political freedom may be the citizens of Florence or Rome, the peasants of Lombardy and Campania would not know how to use the advantages put within their reach, and they would but change the rule of the few for the more terrible despotism of the many.

Before the Italians can, as a nation, be fit for what we call a free government, they must be better educated, and better fitted by their moral and social organisation to understand its nature and advantages. But in order to this, we must first of all see the education of the people taken up as a national object by the national clergy; and we must further see the morals of the people made a point of all-paramount importance by the same body of men, and brought forward into a place of greater prominence than the mere practices of devotion. Can it be any boon to confer the political rights of election and self-government on men who are still plunged in the depths of complete ignorance? Can it be of any use to call upon a nation for the exercise of public virtues, when social and domestic virtues do not exist among them? Before the Italians can be constituted as a nation of freemen, they must be formed into families of virtuous citizens, in which decency and the natural exercise of the affections may be firmly established. For if there be one political axiom more fully demonstrated by the voice of history than another, it is this, that public freedom can never exist where private vice preponderates over private virtue; and where the sacred ties of domestic virtue do not prevail, it is in vain to look for the bonds of public good. It was the domestic vices of the ancient Romans that first weakened the empire; and until their degenerate descendants shall have awakened from their moral lethargy, that empire, that national power, shall not rise

again. It is, therefore, a favourable indication for Italy, that the movement should have commenced with the head of the national religion; for it may be hoped that a proper course will be adopted by the ecclesiastical authorities, and that the amelioration of all ranks and orders of men, clerical as well as lay, will precede and accompany the dawn of Italian independence. As long as the Italians remain in the state of moral weakness which, for so many centuries, they have exhibited, they need never expect to escape from the sway of the more virtuous nations of the north: they will never be able to face the Germans, whether in the cabinet or the field, until they learn to emulate them in the purity of their national character.

It may very well be doubted whether any of the Italians, and, indeed, any of their Transmontane admirers, know what is really fitted for them in political institutions—what will really do them good—what is really suited to the genius of the people and the requirements of the country. Political institutions are like plants that cannot always bear transferring from one region to another: they require the process of becoming acclimatised, and, on their first introduction into a new country, demand the fostering shelter of the hot-house and the gardener's constant care. Because a representative constitution is supposed to be the acme of human wisdom in the latitude of Great Britain, it does not therefore follow that it will flourish so far south as Naples; and because a national guard is reckoned the *ne plus ultra* of national institutions at Paris, we are by no means sure that, it would produce any good results at Rome. It seems, in fact, to us to be one of the monomanias of the present age, that the same Procrustean bed of representative government is laid out for all people that think they require more political liberty than they are at present in possession of; and should the inhabitants of Timbuctoo, of Canton, of Tobolsk, of Alexandria, and of Morocco, take it into their heads, some fine day, to send deputations to the united *quidnuncs* of London and Paris, requesting the transmission of constitutions for their several states, we have no doubt that a couple of legislative houses, and a corps of national guards, *à pied et à cheval*, would be immediately recommended, as equally applicable to their several wants. It seems to be the privilege of civilised Europeans to think that the right of governing themselves is the essence of civil freedom: far more true, in the vast majority of cases, would it be to say, that it constituted the essence of political thralldom. It is a social truth, most unpalatable to ninety-nine-hundredths of mankind, but not therefore the less true, that ninety-nine men

out of a hundred are not fit to govern themselves, even in the relations of social life, and far less in those of political. And so it is with nations: for one nation that has really prospered under the plan of self-government, there are ninety-nine that have brought on themselves evils which, under a less popular system, they would have avoided. If the physical and social condition of a people be taken as a test; if the durability of their institutions, if the dignity and influence of their government, be quoted, as proofs of the advantages of their several forms of political institutions, we really know not any constitutional form to which, *ceteris paribus*, we could appeal as deciding the question against those of a monarchical tendency. If the privilege of taxing themselves to an amount that defies all power of redemption, and cripples the resources of the nation to a point that menaces its existence as an independent power, in the struggle of nations; if the freedom of conducting commercial affairs in such a manner that every seventh year shall bring the whole trading interests of a country to the very verge of bankruptcy; if the balancing of the influence of the several classes so badly, that at length the lower threaten to swallow up the upper in a wild flood of irreligion and anarchical spoliation; if the system of "*propter vitam vivendi perdere causas*" be adopted as the acme of perfection—if all this be considered fit and proper, then let a constitutional monarchy be preached up as the model for every nation under the sun. But we cannot wish so ill to any of our fellow-men as to advise them to relinquish present good, however small, for the prospect of such evil, however seductive. We do not approve of plying the poor Red man with fiery liquors till his tribe becomes exterminated; and in the same way we would withhold the intoxicating draught of self-government from the lips of those people who hitherto have sucked in their milk, as babes, at the hands of others.

To us it is a bad sign that the Italians should be calling out for representative assemblies, and for national guards. They are not fit for the former, nor can they be so for the next hundred years—we should not congratulate them even if they obtained these dangerous tools, wherewith to play at the hazardous game of legislation: and as for national guards, they do not want them, inasmuch as nobody is going to invade them; and if an invasion were made by a northern nation, we know, by long experience, that the national guard would be perfectly useless. The Italians "don't fight;" they bluster and talk big, like the Spaniards, and run away ere the first shot is fired. Ten thousand Germans or Frenchmen, may march from one end of Italy to the

other without meeting any man that dares fire at them, except from behind a rock or a stone wall. The Italians must be made of sterner stuff, before they take upon themselves the responsibility of bearing arms.

The position of the several sovereigns in Italy is such, that their opposition to the wishes of Austria, if that opposition be real, creates in us some surprise. The King of Sardinia ought to know, by the long and sad experience of those who have preceded him on his slippery throne, that there is no chance of safety for him in a European struggle, unless he depends on the House of Austria. France always has been, and always will be, a treacherous neighbour to Piedmont; and she will never cease coveting Savoy until she has made it her own, or has been deprived even of the power of envy. The Grand Duke of Tuscany is so closely related to the Emperor that family interests alone ought to make their policy identical; and the King of Naples, like the King of Sardinia, has no firmer support for his foreign power than the friendship and countenance of the Court of Schönbrunn. The Pope is certainly an independent prince, and at his wish to keep the Holy See free from all foreign influence we cannot feel surprised: it is the healthiest, because the least unnatural, symptom of the whole crisis.

For Austria, we can well conceive that the prudent and cautious policy of that ably conducted monarchy must dictate excessive jealousy and suspicion of these popular movements. Austria, more than any other power in Europe, has the truest cause to pride itself on the good results of its peculiar system of government, as demonstrated by the solid and practical wellbeing of the States under its paternal sway. As much as any state of the Continent has it cause to abhor those systems of anarchy which, under the guise of patriotism, lead only to revolution and misery: and as one of the great conservators of the monarchical principle in politics, it is called upon, by its very station and dignity, to check rather than to encourage what may very possibly prove to be only a spurious attempt to gain licentiousness, rather than freedom. Lombardy, no doubt, is allied to its illustrious rulers most unwillingly; but it does not therefore follow that it would be in the least degree more prosperous and happy if left to itself. On the contrary, we have no doubt that, could Lombardy receive at once the full license to establish its own form of government, it would split into as many petty states as there are large cities in it, and would be plunged into all the horrors of civil contest. It is a most fortunate thing for the north of Italy that it is

under the strong hand of the most steady and respectable power in Europe—one whose rulers will never set it a bad example, who are able to protect it from all aggression, and who watch over its social and internal progress with unceasing care. The Lombards, like the Irish agitators, may cry out for "Repeal of the Union;" but the granting of that repeal would be the signing of the death-warrant of national prosperity. Austria is no enemy to rational, well-balanced liberty: there is no country in the world where *real* liberty and happiness are more widely diffused, or more intensely felt. Its people are free from the clamours of noisy and frothy patriotism, which, when stripped of its false clothing, proves nothing more than vulgar and self-interested ambition. They enjoy all the blessings of good government, and are able each man to sit under his own fig tree, and to see all around him in a state of unmixed prosperity. Such a power as this will not readily give way to the declamations and "pronunciations" of the rabble; it will rather wait for the amelioration of the national character; and, when it finds its subjects fit for some of the introductory processes of self-government, it will concede them.

We could wish to see the other powers of Italy taking advice from Austria, and not hastening onwards too rapidly along that path, wherein a return is so unpleasant and so difficult. Far better would it be for them to be too slow than too hasty with political innovation: the safety of such a retardatory course is certain, whereas the success of a more rapid advance is exceedingly problematical.

As for England, whatever tends to the real benefit of Italy must tend also to her advantage. She has so many commercial, if not political relations with that country, that the well-being of a considerable class of her customers cannot but promote the interests of her own traders. But Italy revolutionised will not be the Italy that now imports large quantities of our goods, and that pays for them in valuable products of first-rate necessity to the English consumer. Italy, well governed and prosperous, will always offer a good mart for British goods; and therefore, upon this ground alone, Great Britain is especially concerned to see that the Peninsula remains quiet and healthy. But, to take a higher view of the state of things, it is the true interest of England—whatever Radical orators and Whig statesmen may think—to ally herself with the friends of order in Europe, and to avoid all connexion with the promoters of wars and tumults. France would be delighted at seeing

Italy convulsed from one end to the other, were not the crafty occupant of her throne afraid of thereby injuring the solidity of his own dynasty. But for England, there can be no second course to pursue; and having gained her own freedom through the long experience and the severe trials of centuries, she can never honestly encourage other nations to hope for similar results by the proceedings of a few months and weeks. If she does, or rather if her ministers tamper with the revolutionary party in Italy, or elsewhere, instead of supporting the cause of steady government, she abdicates the high position she holds in the European family, and deserves to lose those multifarious advantages,—those numerous possessions, which she holds only on the tenure of being the great supporter of reasonable freedom, and international justice.

THE PERIODICAL LITERATURE OF AMERICA.

BRITISH readers are not unacquainted with the American newspaper press, as, not to mention the numerous extracts from transatlantic papers in the columns of London journals, the merits of that press formed, but a few years ago, a topic of controversy between two London Quarterlies. But of American magazines and reviews they seldom hear any thing. This is certainly in no degree owing to the scarcity of these publications, for they are as numerous, in comparison, as the newspapers, have a very respectable circulation, (in some cases nearly four thousand,) and that at the not remarkably low price of four or five dollars *per annum*. Neither is it to their insignificance at home, for their editors make a considerable figure in the literary world, and their contributors are sufficiently vain of themselves, as their practice of signing or heading articles with their names in full would alone show.^[47] Indeed Willis's idea (so ridiculed by the *Edinburgh*,) of a magazine writer becoming a great lion in society, is not so very great an absurdity if applied to American society. Nor is this due to the fact that their topics are exclusively local; for there is scarcely a subject under heaven of which they do not treat, and a European might derive some very startling information from them. The *Democratic Review*, for example, has a habit of predicting twice or thrice a-year that England is on the point of exploding utterly, and going off into absolute chaos.^[48]

"Perhaps," interrupts an impatient non-admirer of things American generally, "it is because they are not worth hearing any thing about." And this suggestion is not so far from truth as it is from politeness. Considering the great demand for periodical literature in the New World, one is surprised to find it so bad in point of quality. Not that the monthly and quarterly press is disfigured by the violence and exaggeration that too often deform the daily. Over-spiciness is the very last fault justly chargeable upon it. In slang language, it would rather be characterised by the terms "slow," "seedy," "remarkably mild," and the like. Crude essays filled with commonplaces, truisms, verses of the true *non Di non homines* cast, tales such as shop-boys

and milliners' girls delight in, and "critical notices" all conceived in the same spirit of indiscriminating praise, make up the columns of the monthlies; while the one or two more pretending publications which now represent the quarterly press, are of a uniformly subdued and soporific character.

Now the first phenomenon worthy of notice is, that this has not always been the case. It was very different eight or nine years ago. The three leading cities of the north, New York, Boston, and Philadelphia, had each its Quarterly: the *Knickerbocker*, a New York magazine, boasted a brilliant list of contributors, headed by Irving and Cooper, and its articles were frequently copied (sometimes without acknowledgment,) into English periodicals. This change for the worse is worth investigating, at least as a matter of curiosity.

"I don't know that it *is* a change for the worse," says a prim personage in spectacles. "If your periodical literature dies out entirely, you need not be very sorry. I shouldn't be if ours did." And then come some murmurs of "light," "superficial," "unsound," and more to the same effect.

"My good sir, this in the face of *Maga!* not to mention the *Quarterly* and the *Edinburgh*. With such *faits accomplis* against you, what *can* you say?"

"I don't believe in *faits accomplis*. They are the excuse of the timid man, and the capital of the unprincipled man. *Fait accompli* means, in plain English, that 'because it is so, therefore it ought to be so'—a doctrine which I, for one, will never assent to."

"Well, there is something in that last position of yours. We will condescend, therefore, to argue the question. Let me ask you, then,

"*First*, Do you see any *primâ facie* improbability in supposing that a man may write a very good essay, who could not write two good volumes octavo; or a racy and interesting sketch, who could not put together a readable novel; or a few graceful poems, without having matter enough for a volume of poetry?

"*Secondly*, Is a treatise necessarily profound, because it is long; or superficial, because it is of practicable dimensions?

"*Thirdly*, When you use the term 'superficial,' do you really believe and mean to imply that periodical writers are in the habit of discussing subjects

which they do not understand? Would you say, for instance, that Macaulay's reviews denote a man ignorant of history, or that Sedgwick knows less geology than the man who wrote the *Vestiges of Creation*, or that Mitchell knew less Greek than Lord Brougham?

"But perhaps it is the literary criticism to which you object. You are an author yourself, perhaps, though we have not the pleasure of recollecting you. You have written a good-sized volume of *Something, and Other Poems*, and cannot bear that your thoughts and rhymes should be scrutinised and found fault with by a reviewer—that your immortal fire should be tested in so earthy a crucible. In that case you will find many more or less distinguished names to sympathise with and encourage you. There is Bulwer, with whom the word critic is an exponent of every thing that is low, and mean, and contemptible; and on our side of the water (sorry are we to say it) a much milder man than Bulwer—Washington Irving—has spoken of the critical tribe as having little real influence, and not deserving more influence than they have; while of the small fry of authorlings, there is no end of those who are ready to rate the reviewer roundly for 'finding fault with his betters.' One cannot even condemn an epic of impracticable length and hopeless mediocrity—nay, not so much as hint that verses are not necessarily poetry—without being assailed by an unceremonious *argumentum ad hominem*—'You couldn't make better.'^[49] And perhaps the critic could not. It is more reasonable to suppose that he wouldn't if he could, entertaining the commendable conviction, that to spend a day, much more a month or a year, in writing middling verse, is an awful waste of time. But what an absurd irrelevancy of counter-charge! Suppose Brummell had found fault with the (Nug ee?) or Buckmaster of his day for misfitting him, and the schneider had replied, 'Mr Brummell, you couldn't make as good a coat in a year.' 'Very probably not,' the beau might have retorted; 'but my business is to wear the coat, and yours to make it.' Must a man be able to concoct a *bisque d'écrevisse* himself, before he can venture to hazard an opinion on the respective merits of the *Trois Frères* and the *Café Anglais*? Or shall he be denied the right of giving a decided vote and holding a decided opinion in politics, because he has not ability or opportunity to become a cabinet minister to-morrow? In seeking to put down, or affecting to despise criticism, the author makes a claim which no other distinguished character ventures. The artist does not insist on controlling the judgment of

his contemporaries,^[50] still less the statesman. Did a premier fulminate his dictum to the effect that no journalist had a right to find fault with his measures, he would raise a pretty swarm of hornets about his ears. By what precedent or analogy, then, can the poet, or novelist, or historian, set himself up as autocrat in that realm of letters, which is proverbially a republic?

"Besides, suppose for a moment that all professional critics were Sir-Peter-Lauried in the most complete manner, who should help to guide the popular mind in determining on the merits of a work? Are we to trust the written puffs of the author's publisher, or the spoken puffs of his friends? Or are *authors* only to judge of authors, and is it quite certain that in this way we shall always obtain unprejudiced and competent judgments? Or shall we make an ultimate appeal to the public themselves, and decide a book's merits by its sale—a test that would put Jim Crow infinitely before Philip Van Artevelde? No doubt a *bad* critic is a very bad thing; but it is not a remarkably equitable proceeding to judge of any class by the worst specimens of it; and surely it is no fairer to condemn critics *en masse*, because some of them have formed erroneous judgments or uttered predictions which time has falsified, than it would be to condemn authors *en masse*, because many of them have written stupid or dangerous books. Let us ask ourselves soberly what a critic is—not the caricature of one that Bulwer would draw, but such an idea of one as any dispassionate and well-informed man would conceive. In the first place, criticism depends very much on taste, and taste is of all faculties that which is founded on and supported by education and cultivation. Therefore the critic must be a liberally educated man in the highest sense of the term. And as he has to be conversant with niceties of thought and expression, philology and the classics should have formed a prominent element in his education. We should be very suspicious of that man's critical capacity, who had not thoroughly studied (by which we do *not* mean being able to speak) at least one language besides his own. Then, as a matter of course, before beginning to write about books, he must have read many books of all sorts, and not only read, but studied and comprehended them. All which will help us to see why the professional critic is likely to be a better judge of books than the professional author, because the preparation of the former renders him eminently eclectic; while the latter is apt to have a bias toward peculiarities of his own, and thus to judge of others by a partial standard.

"Next, the critic must be a courageous and independent man. His judgment upon a book must be entirely irrespective of any popular outcry for or against it. If he is at all apt to float with the opinions of others, he cannot be the adviser and assistant of the public, but will only encourage accidental error or premeditated deception. For a similar reason, he will keep all personal and private considerations out of view. He must not be supposed to know the author, except as exhibited in his works. But while personality is the bane of criticism, partisanship, moral or political, is so far from being a hinderance to the critic, that it is actually an aid to him. If he has legitimate grounds for praising a coadjutor or condemning an opponent, he will write all the better for his partisanship; for, indulging that partisanship, he feels himself, if he be an honest partisan, to be also serving the public. We do not pretend to have enumerated all the requisites for a critic. There are some natural qualities, which, if not indispensable, are at least a great assistance. Thus we find men who have the same immediate perception of styles that portrait painters have of countenances, and can immediately assign to any anonymous writing its author, though the peculiarities which distinguish that author be so slight that it is not easy to illustrate, much less to explain them. And thus, if you ask such a man, 'How do you know that —— wrote this? What turn of expression or traits of style can you point to?' He will reply, 'I can't give you any reason, only I am sure it is so;' and so you will find it to be. He knows it, as it were, by intuition." But we have already said quite enough on the general question; so let us leave our friend to wipe his spectacles, and come back to our particular case.

In examining the causes of the inferiority of American periodical literature, the most readily assignable, and generally applicable is, that its contributors are mostly unpaid. It is pretty safe to enunciate as a general rule, that, when you want a good thing, you must pay for it. Now the reprints of English magazines can be sold for two dollars *per annum*, whereas a properly supported home magazine or review cannot be afforded for less than four or five. Hence no one will embark a large capital in so doubtful an undertaking; and periodical editorship is generally a last resource or a desperate speculation. One of the leading magazines in New York—perhaps, on the whole, the most respectable and best conducted—was started with a *borrowed* capital of 300 dollars, (say £65.) But it is hardly necessary to remark that the proprietors of a periodical should have a fair sum in hand to begin with, that they may secure the services of able and

eminent men to make a good start. The syllogistic conclusion is obvious. At the same time, the editor finds at his disposal a most tempting array (so far as quantity and variety are concerned) of gratuitous contributions; for there is in America a mob of—not "gentlemen" altogether—men and women who "write with ease," and whose "easy writing" seldom escapes the correlative proverbially attached to easy writing. This is, in a great measure, owing to the system of school and collegiate education, which, by working boys and girls of fourteen and upwards at "compositions" and "orations" about as assiduously as Etonians are worked at "longs and shorts," makes them "writers" before they know how to read, and gives them a manner before they can have acquired or originated matter. Most of these people are content to write for nothing; they are sufficiently paid by the glory of appearing in print; many of them could write no better if they were paid. And it certainly is a temptation to be offered a choice gratis among a variety of articles not absolutely unreadable, while you would be compelled to pay handsomely for one good one.

But the specific evils of such a system are numerous. In the first place, it prevents the editor from standing on a proper footing towards his contributors. Many a man who is not so engrossed with business but that he can *afford* to write for nothing, would nevertheless find an occasional payment of forty or fifty dollars a very timely addition to his income, and would prefer that way of making money to many others. But, in comparison with the editor, he appears positively a rich man, and as such is ashamed to ask for any pecuniary recompense. He feels, therefore, as if he were doing a charitable and patronising, or at least a very friendly act, in contributing, and will be apt to take less and less trouble with his contributions, and write chiefly for his own amusement; while the editor, on his part, does not like to run the chance of offending a man who can write him good articles occasionally, and feels a delicacy about declining to insert whatever the other writes.

Next, it often stands in the way of honest criticism. Men can be paid in flattery as well as in dollars, and the former commodity is more easily procurable than the latter. If the editor eulogises the author of "—— and other Poems," as at least equal to Tennyson, there is a chance that some of the "other poems," may come his way occasionally. Of course, if he were

able and willing to pay for good articles, he could always command the services of good contributors, and need not stoop to so unworthy a practice.

Thirdly, it destroys all homogenousness and unity of tone in the periodical, by preventing it from having any permanent corps of writers. The editors must furnish good articles now and then, to carry off their ordinary vapid matter; and, accordingly, they are sometimes under the disagreeable necessity of paying for them,^[51] but not sufficiently often to make it worth the while of a writer to whom the pecuniary consideration is an object, to attach himself permanently to any of their concerns. Hence, those men who expect to derive any appreciable part of their income from writing in periodicals, are continually changing their colours, and essentially migratory. And as the principal attraction of the unpaid writers is their variety, which is best provided for by frequently changing the supply of them, while one great inducement to themselves is the gratification of their vanity, which is best promoted by their appearing in the greatest number of periodicals, they also become migratory and without permanent connexion. Accordingly it is not uncommon for a periodical to change its opinions on men and things three or four times a-year. Frequently, too, these changes are accompanied by disputes about unsettled accounts and other private matters, which have an awkward tendency to influence the subsequent critical and editorial opinions of both parties. Now and then they lead to libel suits,—sometimes to still greater extremities. Mr Colton, editor of the *American Review*, had occasion to dispense with the services of a young Kentuckian with whom he was at first connected. (It is but justice to the former gentleman to say, that there were no short-comings on his part; his only error seems to have been entangling himself with an unworthy assistant in the first place.) The discharged assistant forthwith issued a pamphlet against Mr Colton, of which that gentleman had the good sense to take not the slightest notice, and his example was pretty generally followed. Furious at this contempt, the Southerner attacked his late principal in the street with a life-preserver. Fortunately Mr Colton possessed a fair share of what never comes amiss with an editor, especially an American editor,—personal prowess. In the scuffle which ensued, he upset his assailant, and carried off the *spolia opima* in the shape of the bludgeon aforesaid.

But the worst consequence of all is, the suspicion cast upon all offers from periodicals to really eminent writers, by the failure of editors, (through bad

faith, or inability, or both,) to fulfil promises made to their contributors. Some of these cases are positively startling. In one instance a distinguished author was promised, *or given to understand, that he would have* as much as one thousand dollars a-year. He wrote for two years steadily, and never received two cents. Another case occurred very recently. A comic or would-be-comic, periodical was started in imitation of *Punch*, and the proprietors offered ten dollars a page for all accepted articles. This they paid for a few weeks, and then, having secured on credit a supply for some time longer, deliberately broke their word, and would at this very time, if solvent, owe to a number of small litterateurs in New York, small sums of five and ten dollars. In this case, retribution was speedy, for the whole affair broke down in less than a year.

We see, then, one great radical cause of inferiority in American periodical literature, affecting it in all its departments. But there are other influences which especially conspire to pervert and impede *criticism*. Some of these will be obvious, on referring back to our hints at the requisites for a critic. We said that he should be in the highest sense of the term a liberally educated man. Now this is what very few of the American periodical writers, professed or occasional, are. The popular object of education in the new world is to make men speak fluently and write readily about any thing and every thing—speaking and writing which, from their very fluency and readiness, tend to platitude and commonplace. Those studies which depend on and form a taste for verbal criticism, are pursued in a very slovenly and unsatisfactory manner; the penchant being for mathematics, from their supposed practical tendencies.^[52] Men read much, but they do not "mark, learn, and inwardly digest." Their reading is chiefly of new books, a most uncritical style of reading, to which the words *reference*, *comparison*, *illustration*, are altogether foreign. Again, we said that our critic must not only be able to form, but ready to express his own opinion—in short, that he must be bold and independent. Now this is no easy or common thing in America, not so much from want of spirit and fear of the majority as from want of *habit*; the democratic influence moulding all minds to think alike. At the same time, it must be admitted that a spurious public opinion does often exercise a directly repressing influence. Cooper says, in his last novel, that the government of the United States ought to be called the *Gossipian*, and certainly Mrs Grundy is a very important estate in the republic. Then there are many powerful interests all ready to take offence and cry out. The

strongest editor is afraid of some of these. Thus the *Courier* and *Enquirer*, which, all things considered, must be said to stand at the head of the New York daily press, is completely under the dictation of John Hughes and the Papist faction in that city. By *under the dictation*, we mean that it never inserts any thing in favour of Protestantism, nor omits any opportunity of saying something in favour of Romanism.^[53] And if these influences have such power over a newspaper which has mercantile intelligence, advertisements, and other great sources of support, much more must they affect a magazine or review. One great aim of an American magazine, therefore, is to tread on nobody's moral toes, or, as their circulars phrase it, "to contain nothing which shall offend the most fastidious"—be the same Irish renegade, repudiator, or Fourierite. Accordingly, nearly all the magazines and reviews profess and practise political neutrality; and the two or three exceptions depend almost entirely on their political articles and partisan circulation. It was once mentioned to us by the editor of a Whig (Conservative) Review, that he had *one* Democratic subscriber. And we know another editor who is continually apologising to his subscribers, and one half of his correspondents, for what the other half write. This has not always been the case. The *Southern Literary Messenger* was established to write up "the peculiar institution," and therefore only suited to and intended for the southern market; but there was a time when, under the management of Mr E. A. Poe, an erratic and unequal, but occasionally very brilliant writer, it had considerable circulation in the north. And the "Democratic Review," while it contained and paid for good articles, was subscribed to and even written for by many Whigs.

Another enemy of true criticism in America is *provincialism*. There is no literary metropolis which can give decisive opinions, and the country is parcelled out among small cliques, who settle things their own way in their own particular districts. Thus, there are shining lights in Boston, who are "small potatoes" in New York; and "most remarkable men" in the West, whom no one has remarked in the East. Sometimes, indeed, these cliques continue to ramify and extend their influence into other places. This is effected by a regular system of flattery,—"tickle me and I'll tickle you;" nor is there even an endeavour to conceal this. For instance, when the classical lion of a certain clique had been favourably reviewed by a gentleman in another city, whose opinion was supposed to be worth something, the periodical organ of the clique publicly expressed its thanks for the favour,

and in return, dug up a buried novel of the critic's, and did its best to resuscitate it by a vigorous puff. Here was a fair business transaction with prompt payment. We have observed that the tendency of American reviewing is to indiscriminate praise. The exceptions to this, (setting aside some rare extravagances which resemble the efforts of a bashful man to appear at ease, attempts to annihilate Cooper, or Warren, or Tennyson, for instance) usually spring from some of the private misunderstandings we have alluded to; *e.g.* two *litterateurs* quarrel, one of them is kicked out of doors, and then they begin to *criticise* each other's writings. And the consequence is, that it is next to impossible to pass an unfavourable opinion upon any thing, without having personal motives attributed to you, and getting into a personal squabble about it. When an author, or an artist,^[54] or an institution is condemned, the first step is to find out, if possible, the writer of the review, and the next to assail him on private grounds. Indeed, the author's friends do not always stop at pen and paper. Some years ago, an English magazinist charged a fair versifier of the West with having "realised" some of his inspirations,—a very absurd claim by the way, as there was nothing in the disputed stanzas which would have done any man much credit. Soon after, the Kentucky papers announced that a friend of the lady had gone out express by the last steamer, for the purpose of "regulating" the Englishman. What the result was we have never heard.

Such are some of the causes which militate against the attainment of a high standard in American periodical literature. For some years it went on very swimmingly *on credit*; but it is exceedingly doubtful, to say the least, if the experiment could be successfully repeated. We have seen that many of these obstacles are directly referable to the fact that the editorship of Monthlies and Quarterlies does not tempt men of capital into it; and it is not difficult to perceive that such of the others as are surmountable, can be most readily overcome by remunerating those engaged in the business. If good critics are well paid, it will be worth men's while to study to become good critics; and if a periodical is supported with real ability, it will make its way in spite of sectional or party prejudices, as we have seen was the case in some instances. And since it is plain that the republication of English magazines must interfere with the home article, the conclusion seems inevitable that the passing of an International Copyright Law would be the greatest benefit that could be conferred on American periodical literature.

IRELAND AND THE MINISTERIAL MEASURES.

It is unnecessary to remind our readers, that on more than one occasion we pointed out to the late so-called Conservative administration the dangers to which they were exposing the country, and the misfortunes which were sure to arise from the fatal policy which they had adopted for the government of Ireland. We told them on those occasions, that the lax manner in which the laws were administered, and the indecisive conduct of the Executive, would lead to the state of things which we then foresaw, and which all parties now deplore. We warned them, that tampering with the incipient evil, instead of boldly striking at its root, would advance its growth instead of diminishing its power; and that the welfare of all classes imperatively demanded at their hands the repression not only of crime itself, but of those causes to which the origin of crime was clearly traceable. Unhappily our advice was unheeded. The Peel government persevered in the same course which its Whig predecessors had pursued, augmented the obstacles which impeded the due administration of the laws, and retarded the pacification of the country by the culpable lenity which marked their proceedings against those who perpetrated crime, as well as towards those, still more criminal, who countenanced and abetted its commission.

The law which empowered the Crown to challenge improper jurors, rendered a dead letter by the Whigs in order to conciliate Mr O'Connell, was allowed so to remain by the Tories; and thus accomplices of the criminals in the dock became arbiters of their associates' fate in the jury-box; and it is unnecessary to say how much the impunity procured by this means tended to increase the audacity of the violators of the law, and to deter the mass of the people from having recourse to the tribunals of the country for justice and protection.

An association openly aiming at the dismemberment of the empire was not only allowed to pursue its seditious course in peace, but its leader was flattered and courted in the senate, until, imboldened by the subserviency of his opponents, and pressed on by the impatience of his followers, he

assumed such a menacing position, as compelled the interference of the constituted authorities. He was condemned, imprisoned, released, and permitted again to talk his treason and boast his triumph to an ignorant and excitable people, who witnessed his success without being able to appreciate the causes to which it was attributable. While the feelings of the people were being acted upon by the orators of Conciliation Hall, the English press accomplished the triumph of agrarian outrage by the course which, with few exceptions, was adopted by the leading organs of public opinion. The unfounded statements of the demagogues, both lay and clerical, were adopted with avidity, and commented on with surpassing ability. In every instance the falsehood of those premeditated lies was subsequently established, but that did not prevent the adoption of every future tale, even though emanating from the same polluted source. The strictures based on those untruths were assiduously copied into the Irish papers; and, palliating as they did the crimes of the peasantry, by the ridicule, contempt, and detestation which they excited against the owners of the land, they tended not only to provoke and encourage the peasantry to resistance of the law, but the effect produced by their simulated horrors on the public mind tied up the hands of the Executive, and rendered the acquiescence of Parliament, in such measures as might be necessary for the preservation of the public peace, a thing scarcely to be expected or hoped for, even had the administration the good sense or the manliness to determine on demanding them. The writers in the English press denounced the landlords, under all circumstances, and for all manner of causes. If one of them dispossessed some of his tenantry who held portions of the soil too small to afford them support, even though given for nothing, in order that the holdings of the others should be enlarged to such a size as would enable them to live in comfort, he was denounced as an exterminator, even though he largely remunerated, and then at his own expense sent the dispossessed to countries where land was abundant and labour remunerative, and to which the most affluent of their neighbours were every day voluntarily emigrating. If, deterred by the abuse of the press and the denunciations of the priest, he allowed them to continue in the same state of misery and destitution in which he found them, he was represented as heedless and unfeeling, and the poverty of his tenantry (which, though willing, he dared not remedy) was made an article of dittay against him. If he endeavoured to enforce his rents, he was a tyrant. If he allowed them (as did Mr Ormsby

Gore,) from mistaken compassion, to run *ten and twelve years in arrears*, he was pronounced to be "culpably negligent." In fact, no matter what he did, he was wrong; and in their desire to convict the Irish proprietors, the press acted on the principle of the Cork juror—"If he did not murder the man, my Lord, he stole my gray mare."

To the many internal causes which tended to aggravate the evils of Ireland, another, and one arising from circumstances of an extraneous nature, was added. The British minister determined to abolish the corn laws—to shelter himself against the attacks of his betrayed followers, and to enlist public sympathy in his support. He *fabricated* an Irish famine a year before that scourge actually visited the land; and, to prove the sincerity of his convictions and the truth of his statements, he had recourse to the establishment of food depots at the public expense, and to the system of public works, which effectually demoralised the bulk of the population; and the pernicious consequences of these measures, although now fully admitted, are yet far from having arrived at that portentous magnitude which they are daily threatening to assume.

While those continued and unremitting attacks of the English press led the peasantry to look with distrust and hatred on the class above them, the system of gratuitous relief and remuneration without labour, which Sir Robert Peel was forced to adopt, in order to evince his own conviction as to the truth of his statements in the House of Commons, told with fearful effect on the morals of the people; for if it was no crime to destroy a tyrant, so it was considered no disgrace to beg instead of to earn; and men who a few months before would have blushed at the thoughts of receiving public relief, were seen daily seeking for their rations, although they had cows, horses, and sheep, and in many instances profitable employment, which they abandoned to obtain gratuitous support. With a feeble and apathetic government, and with a powerful and talented press advocating their cause, influencing public opinion in their favour, and attributing with success to the misconduct of others the misery and destitution fairly assignable to their own indolence and dishonesty, it is not much to be wondered at, that the Irish peasantry should have become still more reckless and inattentive than they were before. When the principal protection which the law provided for the due administration of justice was withdrawn, it is not surprising that they should have become still more turbulent and criminal; and with the

fierce denunciations of the lay and clerical demagogues ringing in the ears of an excitable and ignorant people, we cannot marvel at the scenes of horror and the deeds of death now enacting in their degraded country. And yet even the appalling catalogue laid before Parliament, gives but a faint idea of the fearful state of society in Ireland. It is but a list of the "*faits accomplis*;" and cannot depict the condition of those unhappy men who "live in death," who know their doom has been sealed, whose execution is openly spoken of as a thing certain to occur, who have no protection but God's mercy to rely on, and who are so circumstanced, in many instances, as not to have the means of fleeing from a country which has become the charnel-house of their class. And who can paint the feelings of the wives and families of those unfortunates? We ourselves know instances of their sufferings which would harrow the soul of any person possessed of the smallest portion of humanity.

But the other day, the wife of a clergyman, as amiable and charitable a man as lives, drove into a neighbouring town, and in the shop of a tradesman heard an expression of regret that certain gentlemen in the neighbourhood were so soon to be murdered, and amongst others, her own husband, whose charities and attention to the poor she vainly hoped would have secured his safety. Hurrying home, she found he had gone to attend one of his congregation, to whose sick bed he had been summoned. Distracted by her apprehensions, she went to an adjacent police station, and sent two of the men in the direction her husband had taken. He returned alive—her precaution had saved him,—but when she learned from his lips that the call was but a snare to bring him within reach of his assassins, the shock overpowered a weak constitution; she fell in a fit, and died entreating with her last breath mercy for the father of her children from the assassins, by whom in her delirium she fancied him to be surrounded. She left a large and helpless family, whose only protection is a broken-hearted and a doomed man; and yet there are to be found in the Senate those who protect the system to which this amiable woman has fallen a victim, by refusing to support even the paltry measure introduced by the government for its suppression.

We had hoped, when parliament was summoned at an unusual season to deliberate upon the state of Ireland, and when the condition of that country was so strongly alluded to in the speech from the throne, that effectual

measures would have been resorted to for the suppression of crime, and for the protection of the lives and properties of the well-disposed portion of the Irish people. We did hope that the clear-sightedness and decision of Lord Clarendon had prevailed; that at last a man was found capable of threading his way through the maze of Irish difficulties, and of enforcing his views on the apathetic feelings of her Majesty's advisers. But we have been disappointed, and either the present lord lieutenant is not so competent for the performance of the arduous duties attached to his office as we had supposed, or his exertions are paralysed and his counsels are rejected by the imbecile administration to whose control he is subject.

The condition of Ireland is admitted by all parties to be such as no civilised country ever before presented; and what are the remedies propounded for its amelioration? Simply this, that two hundred additional police should be employed—that the carrying of arms, or their possession by a certain class of persons, in certain districts where crime has *previously* prevailed, should be a misdemeanour, and that the expenses of the proceedings to enforce those enactments should be levied on the inhabitants of the disturbed districts. But Sir George Grey, while he read his list of horrors, was most cautious lest he should offend the feelings of (what the member for Cork termed) "the most endearing and religious people on the face of the earth," by implicating more than four or five counties in the conspiracy which he denounced; and too tenacious of the constitutional privileges of the Irish assassins to propose their general disarmament, or the violation of the sanctity of their homes by the efficient remedy of nocturnal domiciliary visits. No: those visits are only to be paid by day, when the parties suspected of the violation of the law may have full notice of the approach of the constabulary, and, as a consequence, full time to remove the arms of which they may be possessed; and they are *only* to be made in search of arms, and not at all as a means of deterring "the endearing" people from leaving their homes at night, to perpetrate the murders which they now accomplish by day. Another clause is added, on the efficacy of which Sir George Grey seems to place great reliance, but which is of so ludicrous a nature that we scarcely know how to notice it seriously. "The justices and constables shall have the power to call on all persons between the ages of sixteen and sixty, residing or living in the district, to assist in the search for and pursuit of the persons charged with the commission of crime; and thus," triumphantly exclaims the Home Minister, "it will be the duty of every

person to join in such pursuit, and do his utmost to assist in discovering and apprehending the offender; and any person refusing to assist in such pursuit and search, would be guilty of a misdemeanour, and would be liable to be imprisoned with or without hard labour for any term not exceeding two years." There is an old adage that "one man may take a horse to the water, but twenty can't make him drink;" and so it will be found in reference to the operation of this most sapient enactment. The justice or the constable may call out the lieges, but can they induce or compel them to guide them to the haunt of the murderer? "Not a bit of it;"—they will join most willingly in the pursuit, but it will certainly be to mislead the pursuers; and, as the police force is generally found sufficient to vindicate the law, if they can only arrive when the crime is being perpetrated, they will not summon any assistance except in those cases where the outrage has been committed previous to their arrival; and in such instances, the culprits will have had full time to escape, and the witnesses of the deed, ample opportunities of arranging their plans for his protection. We assure Sir George he will find that this clause, all-powerful as he hopes its operation to prove for the repression of crime, will remain a dead-letter on the statute-book; for no magistrate, who is acquainted with the feelings of the people, would be so silly as to expect efficient support or correct information from them; and no officer who understood his duty, would hamper himself with a mob of assistants, whose undoubted object it would be to deceive and thwart him in its discharge. A story is told, that, during Lord Anglesey's administration, when Whiteboy offences were prevalent in the South of Ireland, a Cabinet Council was summoned, at which the then Chancellor, (Sir Anthony Hart,) having been called upon to give his opinion as to the best remedy to be adopted for their repression, at once, with the feelings of an Englishman, declared,—"that he would order the sheriff to call out the 'posse comitatûs.'" "By my sowl," interposed Chief Baron O'Grady, in his broad Munster brogue, "my Lord Chancellor, that's just what we want to avoid!—'the posse's' out already: may be you could give us some method of getting them to stay at home." And so it will be with "the posse" of Sir George Grey, if ever called out; they will prove an encumbrance instead of an assistance to the officers of justice. But what a lamentable state of ignorance as to the state of Ireland does the proposal of those most absurd remedies indicate, on the part of our present rulers! Every one at all acquainted with the country, knows that the assassin is *never* selected from the inhabitants of the

immediate neighbourhood where the crime is to be committed; and yet, by this enactment, only the persons resident in such districts are to be disarmed, or deprived of the right of openly carrying arms. And thus, by residing beyond or by stepping over the ditch which bounds the proscribed locality, the murderer may assert his right of bearing arms, and defy the police to deprive him of his gun; or, by altering his position so as to avoid the forbidden ground, he may coolly wait the advent of his victim without the slightest danger of molestation. "On the very day that Major Mahon was murdered," continues Sir George Grey, "two persons were seen lurking about, who it was strongly suspected were the murderers. There was, indeed, no moral doubt that they were the persons by whom the fatal act was committed. Now, if the police had been armed with the powers which were sought for by this bill, those persons might have been arrested; the fatal weapons would have been taken from them, and they would have been amenable to the law for a misdemeanour, in carrying arms contrary to the provisions of this act, or for having arms concealed for the purpose of carrying them to effect a murderous object." Now we deny the Right Honourable Baronet's conclusions. This enactment could not have prevented the assassination of Major Mahon, for his murderers had only to choose a locality where it would not be in operation. Neither will it at all affect the commission of other meditated murders; *for there is now organised* (and we give the information to her Majesty's government, if they are not already in possession of it,) *a new society,* ^[55] *who have regular hired assassins in their pay, for the purpose of pursuing, wherever they may be found, the denounced persons who have fled the country and escaped their vengeance.* This may appear incredible; but it is well known and openly spoken of in the disturbed districts. One of those bravos, the other day, in Dublin, entered the office of a marked man, who is agent to an English gentleman, a large proprietor in a western county; he inquired for the person of whom he was in search, but who was fortunately absent. Suspicion having been excited by his contradictory replies to questions which were put to him touching his business, and from the well known fact that the gentleman he desired to see was denounced, he was given into custody, and on his person was found a case of loaded pistols. Now, there can be no doubt that this man meditated murder; yet he walked off with his arms, and we should be glad to learn how this enactment, even though it were on the statute book, could have interfered with his proceedings.

Galway, from whence he came, might be proclaimed, but it is not possible that Dublin, where he purposed to commit the deed, should ever come under its operation. We admit that a general and stringent Arms act would have afforded, both in this and Major Mahon's case, probable protection, and possibly might have saved many other victims from a premature and bloody death. And whose fault is it that such is not in existence? Whose but that of the administration of which the Home Secretary is an influential member? To overthrow a hostile government, and obtain the reins of power for themselves, they sacrificed the peace of Ireland and the lives of multitudes of most estimable persons; and now they unblushingly come to parliament to ask the enactment of a measure which they must well know will prove but a mockery and a delusion, as a substitute for the efficient law which their factious opposition blotted from the statute book. Have those men hearts to feel or consciences to be smitten?—if so, what must their sufferings be at the record of each successive murder, which adds another victim to those already sacrificed by their fatal and unprincipled policy.

While those provisions of the proposed law, to which we have already alluded, are utterly inefficient and valueless for the repression of crime, there is another clause in the bill which inflicts a positive and unmerited injustice. The proclaimed district is to pay the expense of the additional police force, necessary for its pacification. Now, the gentry and large farmers, who are the victims of the system sought to be repressed, and not its supporters, will be the persons upon whom this heavy charge must principally fall. The guilty have little or no land, and, consequently, will be exempt from the increased taxation; and thus the pockets of the peaceable and well-disposed will be picked, although their persons may not be protected. We do not understand why government, which is bound to protect the lives and properties of its subjects, should mulct those whose safety is their peculiar charge, because additional expense is rendered necessary to root out crime, generated and fostered by its own incompetency or neglect. But this is an administration of political economists, and the loyal and peaceable portion of the Irish nation need not expect ordinary security without the payment of an extraordinary price for it, upon the same principle that the struggling English trader could only obtain monetary assistance, at a rate of interest too usurious to leave the aid useful.

No wonder that Mr John O'Connell should express his "agreeable disappointment at the measures proposed," when, in common with the generality of the public, he expected that the melancholy state of things would have compelled even the Whigs to originate something more stringent and effective. Nor need we be surprised, that his gratitude overcame his discretion. This was but natural, even though it exposed him to the lash of his more circumspect rival. We have waded through the entire debates on the state of Ireland, from the schoolboy puerilities of Mr Adair, to the cold-blooded percentages of Sir George Grey, and we have discovered nothing which would lead us to anticipate the adoption of such measures, or of such a system of government, as would ensure the pacification, and, as a consequence, the prosperity of that unhappy country. Enough there is of the cuckoo cries of "developing resources," "introducing capital," "creating domestic manufactures," &c. &c.; but we would ask those holiday declaimers how resources are to be developed, or capital introduced, or manufactures fostered, in a country where property has no rights, and where life has no protection?

Whoever ventures to propose for the government of Ireland a system, stringent and effective enough to secure the enjoyment of the fruits of industry, and the preservation of life, is at once met with the cry of, "you have tried coercion long enough, and it has failed—try a conciliatory policy now, and you must surely succeed." But the truth is, that although both systems have been tried, neither have been judiciously applied; and it is to the shuffling and changing of successive administrations, that all the evils which now curse the land are mainly attributable. "You tried coercion for centuries," the Irish *patriot* will exclaim, "and what are you the better for it?"

It is true, that in former days, the Irish peasant was ground to the dust, and trampled on, when he was faithful, trustworthy, honest, and submissive. It is true the Popish priest was persecuted, and a price set upon his head when he was intelligent, educated, loyal, and pious. But it is equally true, that when the Roman Catholic layman was placed upon a full equality with his Protestant fellow countryman, and the Roman Catholic priest was recognised by the law, and protected in the discharge of his duties, another and an equally mischievous course of policy was adopted towards both. A sort of political saturnalia was allowed the emancipated slaves, and they

were taught to riot in the enjoyment of newly acquired liberty. They were misled and corrupted by cunning and designing demagogues, while the government, which should have enforced submission to the laws when they had removed all just causes of complaint, remained passive, until the minds of the people were poisoned by false representations. Then first was yielded to political combination as a matter of expediency, that which, if conceded at all, should only have been granted as a matter of right. And when, by intimidation and violence, the representation of the country was vested in the heads of agitation, it became an object of the last importance to each of the political parties who rule the country to procure the popular support; and, to accomplish this, no sacrifice of principle was considered too great, and no concessions to democratic principles too exorbitant. The Whigs, after they had coerced with success, were obliged to abandon their protective policy, because they were denounced as "base, brutal, and bloody;" and then, adopting the other tack, they boldly launched their bark on the sea of conciliation. The lowest, and least intelligent class of men, and those who, from their callings and station in life, were most exposed to intimidation, were placed indiscriminately on the criminal jury lists. The right which the Crown enjoys of challenging improper jurors, was forbidden to be exercised, and, to consummate the glorious triumph of liberality, "the beloved Normanby" commenced his tour of grace, and, in the plenitude of his mercy, liberated those malefactors who had been consigned to the restraint of the gaols by the vindicated laws of their country. The Peel government followed in the same course as to the administration of the law, established the poor-houses, issued the land commission, and suggested the principle of tenant-right. They permitted the most unbounded liberty of speech and of action; they allowed hundreds of thousands of men to unite in military array, for the purpose of dismembering the empire; they endowed Maynooth, founded the godless colleges, and recognised the temporal rank of the Roman Catholic prelates, by placing them in royal commissions above the heads of temporal peers. They complimented O'Connell on his patriotism, after they had been compelled by his boastful menaces to prosecute him for sedition, and connived at his escape when they had procured his conviction. And after those conciliating measures, may we not ask, what has conciliation accomplished? The answer is obvious: its result is to be *read* in the list of crimes which have annihilated all law in Ireland—it is to be *heard* in the

wailings and lamentations of those who have been made widows and orphans by the system of assassination which it has generated and protected.

But if we find that neither unreasonable persecution on the one hand, nor unjustifiable concessions on the other, have been productive of good, is that a reason why we should not now have recourse to temporary measures which are indispensable to secure the action of the law, and the lives of the Queen's Irish subjects? What is coercion, after all, but an extraordinary means to enforce the law, and to support the constitution, when the ordinary means have failed? In England, the law is respected and obeyed, and the people have sense and discrimination enough to perceive that their own welfare and safety are identified with its maintenance. But in Ireland, the case is widely different; we think it was Swift who said, "that what was considered morally wrong in other countries was considered morally right in Ireland,"—and if the Celt be not enlightened enough to appreciate, he must be taught to respect, the blessings which the British constitution confers upon him.

The utter inefficacy of the measures for which the Whig administration now seek the sanction of Parliament is not all that we have to deplore. On reading the debate, there will be found in the tone of the ministerial speeches, in their promises, and still more in their omissions, much to be lamented. Instead of boldly insisting on the vindication of the law as the primary object to be accomplished, they, to use Sir Robert Peel's expression, "hold parley with the assassins;" and instead of denouncing with firmness, they palliate, as far as decency will permit, the conduct of the Irish conspirators, and studiously avoid all allusion to the transgressions of the priests. Crime they say, must be repressed, but "a sop is thrown to Cerberus" at the same time, and an additional stimulus is given to agitation by the announcement, that a landlord-and-tenant bill is under the consideration of the government. Now we tell her Majesty's ministers that they never laboured under a greater delusion, than to suppose that any measure which they or any other administration can venture to propose to Parliament, on this subject, will be sufficient to meet the views or satisfy the wishes of the Irish peasantry; and furthermore, that even although they did *apparently* succeed in accomplishing this object, by other means than a transfer of the property of the land from the present proprietors to their

tenantry, they would be just as far as ever from effecting the pacification of Ireland. The visionary and prosy Mr Scrope, or the egotistical Mr Crawford, may occupy themselves in talking and attempting legislation on a subject which the one does not understand, and the other is incapable of explaining; but any man of common sense who comprehends and considers the question, must at once perceive that great danger must attend on any attempt to legislate for the exercise of private rights, and that in this instance it would be an utter impossibility to satisfy the wishes of one party without absolutely sacrificing the just rights of the other. And, after all, what is this mysterious measure of "tenant-right," which like the wand of Aladdin is at once to restore peace and establish order, and to which the prosperity and happiness of the Protestant north is so often and so erroneously attributed? If it be what the advocates for its universal adoption represent it,—namely, "The right of the occupying tenant to dispose of the interest derivable from the improvement of his farm, should he fall into arrear or wish to emigrate, and the possession of what remains of the purchase-money after paying all rent due, as a recompense for his labour, skill, and expenditure,"—we at once answer that nothing can be more reasonable, unexceptionable, or just; but is any man so silly as to suppose that such a measure, if carried, would satisfy the desires of the Munster peasant? As Mr O'Connell used to say, he would cry "Thank you for nothing,"—he is much better off at present than he could be under any such arrangement; he in reality not only makes the want of tenant-right an excuse for his indolence and dishonesty, but he uses it as a cloak for his meditated spoliation.

Mr Griffith, the government valuator, stated in his examination before Lord Devon's commission, that his valuation was based upon the market price of certain articles of agricultural produce, which, at the time he commenced his proceedings, were *ten per cent* higher in value than they were at the time when the act which authorised his valuation was passed; and that, consequently, being restricted to the respective values attached to each article in the schedule of that act, his valuation was in the first instance ten per cent *under* what it would have been had he not laboured under such a restriction. He further says, that while in the north the rent actually paid amounted in most instances to from thirty to fifty per cent *above his valuation*, in the western counties it was not much if at all more than the value he had put upon the land; and yet, he adds, the peasantry in the north,

paying those high rents, were industrious, prosperous, and happy, while those in the west, who held better land on so much more reasonable terms, were steeped in misery and crime. It is then manifestly unjust to attribute the poverty of Connaught to the exorbitance of the rents, or the prosperity of Ulster to the moderate price exacted for the land. But then the northern tenant is secured remuneration for his toils if he wish to dispose of his tenant-right:—admitted,—but the southern and western tenant has still the advantage, for he sells or is compensated where he has never made any improvements at all. There is no absolute law to protect the right of the tenant in either case: but whereas custom, a due regard to justice, and we may also add, to his own interests, induce the northern landlord to consent to a sale which will secure not only his rent, but a thriving instead of a failing tenant,—intimidation and violence compel the southern landlord not only to forgive all rent due by a defaulting tenant, (and that in most cases amounting to three or four years) but also, after he has been put to heavy legal expenses, to *compensate* him for leaving his house a wreck and his land a wilderness. Under such circumstances, can it be supposed for a moment that any landlord would refuse a tenant the right to sell, thereby avoiding the loss of his arrears; or that he would prefer to evict at a heavy legal expense, and then in the end remunerate, in order that he might conciliate the outgoing tenant, and thus escape being shot?

Tenant-right is as really, though not so ostensibly, enjoyed in the south as in the north; and if we hear of *sales* of tenant-right in the one and not in the other locality, the difference arises from the fact that the northern tenant having improved his land, advertises his interest in it and sells, while the southern tenant having deteriorated, instead of having improved his farm, compensates himself for "his right of possession" by mulcting his landlord, and levying a species of black mail under the name of "good-will" money from his successors. Is any man weak enough to suppose that, if the southern tenant was secured by law a right to sell that which his indolent and lawless habits will not permit him to make, (improvements on his farm) such a contingent right would in any wise reconcile him to his condition, or render him more obedient to the law? Before the emancipation act passed, it was said by the leaders of the people, "Grant us this, and you secure peace and tranquillity to the land;" and the same has been said with regard to every other concession which they exacted. Peace was to follow the abolition of the tithes, the enactment of the Reform Bill, and the recognition

of the right of the destitute to obtain support from the land: but what has been the consequence? Each successive triumph of the Popular Party has but imboldened their pretensions, and confirmed them in the doctrine which they have been assiduously taught—that "to succeed they have only to combine:"—and so it will be with tenant-right; give them what their advocates *profess to ask for*, and you will have them clamorous for more. This tenant question has been adopted as a sort of safety-valve to secure an escape for the leaders of repeal, now that the delusion on that question can no longer be upheld; and its agitation is prosecuted with vigour by the priests, because, by means of it, they hope not only to strike down their hated rivals, the landlords, but to secure the overthrow of all those legal rights by which the possession of property is guaranteed.

It is not, we presume, contemplated that land should be held without payment of any rent, save what the tenant may see fit to give the owner of it, after he has secured from the produce of his farm enough for his own "comfortable and independent subsistence." Neither do we suppose that government will sanction a law, by which the tenant in possession shall remain so in perpetuity, subject to the payment of such surplusage of his profits as he shall find it convenient to bestow upon his landlord: yet those are precisely the doctrines laid down at the tenant-right demonstrations, and any thing granted short of these will be considered as a blinking of the question, and treated as an attempt to delude and deceive the people.

It has been said that the well-conducted tenant has no security of tenure, and consequently that he will not labour, when he is not guaranteed the just remuneration for his toils. Now, it is a curious circumstance, and ought to show the groundlessness of their complaints on this head, that at the great popular demonstrations of Holy Cross, Cashell, Kilmakthomas, or Wexford, not one single case was brought forward where tenants have been deprived of their land, or despoiled of the value of their improvements, so long as they honestly met their engagements. There was abundance of declamation. "The tenant *might* be turned adrift after improving the condition of his land," but there was not a single fact adduced to show that he had been so treated. We have gone fully into this question, for the purpose of disabusing the minds of the ministry, and of showing them, that if they hope, by the concession of a landlord-and-tenant bill, (founded on the demands of its parliamentary advocates), to effect a change for the better in the conduct

and condition of the Irish people, they will find themselves grievously disappointed. Every step which the present government have taken to meet the wishes of the popular party in Ireland, has but led them still deeper into the mire of social disorder. They repealed the Arms Act, and by that most reprehensible proceeding, mainly produced the state of anarchy and confusion which now exists; and within one short year they are themselves compelled to pronounce condemnation on their own imprudence. They most recklessly squandered the public money on useless or mischievous works, sooner than expend it on the improvement of the land, lest by benefiting the Irish proprietor they should displease their patrons, the priests. They created a spirit of insubordination and idleness amongst the people, by giving employment on public works where no return was exacted by their numerous and overpaid staff for the wages which were given, and where multitudes were employed who did not require it, on the nomination of the priests, while many who did were excluded from its benefits; and, to complete the climax of their blunders, they conceded outdoor relief, at a time, and under circumstances, which must render such a measure not only a curse to Ireland, but a grievous burden on the other portions of the British empire. It has been declared by the minister that in twenty-two unions the rental twice over would not be sufficient to support the pauper inhabitants; while many of the popular Irish members maintain that there are three times that number of unions placed in similar circumstances, and in which the means of subsistence must come from the Imperial treasury.

But are the Whig ministry sincere in their declarations against Irish crime, and is incompetency their only fault?—alas! we cannot believe it. There are amongst them shrewd and sensible men, who must have perceived that they have been hitherto acting in error, and there can scarcely be one so besotted or ignorant, as not to see that to the policy they have pursued is to be attributed the ruin of the country. But at the same time, they well know that they must obey the dictates of their task-masters the Irish priests, or surrender their power; and they yield themselves bound hand and foot, sooner than abandon office which they have made so many and such shameful sacrifices of principle to obtain. Thirty-seven Irish members are completely in the hands of the priests, and this is a political power which Lord John Russell's cabinet has not the courage or the strength to defy.

While her Majesty's ministers and their supporters draw the most appalling pictures of the state of society in Ireland, and recount horrors which are enough to curdle the blood, they one and all abstain most scrupulously from attributing those evils to the causes which have really produced them—they studiously avoid touching the sore spot. It is admitted that priests denounce men from the altars, and that such persons become immediate victims. "Did you denounce this man from the altar?" asked a coroner the other day of a reverend gentleman who was giving evidence at an inquest. "I did." "And he was murdered immediately after?" "*Yes, he was murdered at five o'clock on the same day.*" Now here is a palpable admission made by a man on his oath. He does not seek to screen himself from the consequences of his act; he seems rather to pride himself on the speedy execution of his decree. Henry the Second exclaimed, "Have I no friends to rid me of such a torment?" and Becket was sacrificed; a Roscommon priest, from the altar of God, and on his holy Sabbath, cries to his infuriated auditors, "*This man is worse than Cromwell, yet he lives,*" and Major Mahon is savagely slaughtered! Is there any notice taken of the conduct of those men by the law-officers of the Crown?—any condemnation pronounced upon it by her Majesty's ministers? Not at all: although the crime of the one is admitted on his oath, and the truth of the accusation against the other is undenied—both, though in the eyes of God and the law equally criminal as the wretch who executed their commands, are "honoured and at large;" and while such things pass before our eyes, we are told, that "to the wonderful and praiseworthy exertions of the Roman Catholic priesthood," we are mainly indebted for not having the country in a worse condition than it really is!

It may be said that government cannot punish priests for such monstrous conduct—"there is no law which will reach the offenders." Be it so; but why is not such a law enacted now, with the full knowledge of the facts which we have stated, and of many equally criminal instances of priestly aggression which must have been reported to them? The ministry introduce measures for the repression of crime, without the slightest allusion to this practice of denunciation, which may be considered as the very source of it. They propose to punish the peasant who commits the assassination, "but they grant entire immunity to the priest who points out the victim and counsels the act." We are told, however, by an authority which seldom errs, (*The Times* newspaper,) that there is actually in existence a law fully competent to deal with those transgressions. And we are the more inclined

to coincide with the opinion given in *The Times*, when we see, by proceedings lately taken in the Court of Queen's Bench in Ireland, that there is on the Statute-Book a law rendering those who conceal a murderer liable to be indicted as accessories after the fact. Now, perhaps, in the whole range of legislation, nothing could be hit upon more likely to stem the torrent of crime than such an enactment; and yet we find that owing either to the ignorance of the law-officers of the Crown, or the connivance of the government, it has been allowed to remain a dead letter, and is only dragged from its hiding-place, when the Viceregal power has been intrusted to a man of more political honesty than his predecessors.

But though Lord Clarendon may enforce the law against the peasant, dare he put that which would punish the priests into operation?—Their influence in the House forbids the supposition.

Mr O'Connell managed the power which he had created with his well-known skill and discretion; but since the sceptre has fallen into the hands of his feeble successor, the real props of agitation have openly assumed the position which they have long, though secretly filled. To them every "ruined rascal" who betakes himself to the "last resource" of patriotism must now address himself. Formerly, the candidate was expected to pay (say £2000) for his seat; now, it may be secured by the utter abandonment of principle, and unbounded submission to the will of the Donors; then, aspirants with some appearance of propriety and decency of conduct were required; now, both qualifications may be dispensed with. The more degraded the man, the more fit he will be considered "to do those acts which the less vile refuse to execute;" he may be a blackleg, a swindler, or an open adulterer, and it will be no bar to his advancement in the eyes of the Roman Catholic bishops, who, while they profess to admire virtue, have no objection, if it secure their purposes, to patronise vice; and who, while they preach peace and good-will, tolerate, if they do not approve, the encourager to murder. In what other country in the world could men have acted as it is admitted those priests have acted, without being reached by the strong arm of the law? of what other Christian church than that which is ruled over by the "bigoted M'Hale," and the "vulgar and vindictive Higgins," would they have been allowed to continue members?

The Irish Roman Catholic priests are said to have unbounded influence over their flocks, and we believe it: yet can a more conclusive evidence of their

unworthiness be adduced than the state in which we find the people subjected to their spiritual care, and who are so fatally obedient to their dictates? A dignitary of the church, Archdeacon Laffan, contrasts the pusillanimous conduct of the cowardly Saxon, who bears his sufferings with patience because "he can do nothing like a man," with the gallantry of his true-hearted Tipperary boys, who remove those who inconvenience them by the bullet! Can we then be surprised at the criminal conduct of the unfortunate persons consigned to such teaching? When such men are placed in authority over those who proclaim God's word, can we be astonished to read the account given by the priests' own organ, *The Tipperary Vindicator*, of the posthumous honours paid by the well-instructed and Christian people of Tipperary to the memory of departed worth? What a testimony do the facts recorded bear, to the zeal and efficacy with which his doctrines have been promulgated and enforced by the meek and christian Laffan!

A few months ago, we read the following description of the proceedings which took place at the funerals of Fogarty, Rice, and Hayes, the executed murderers of the late Mr Clarke. There was no doubt of their guilt, no declaration of their innocence, and no grounds whatever to question the justice of the verdict which condemned them to die. They were not men roused by oppression to execute "the wild justice of revenge." No; they were regular matter-of-fact men of business; hired bravos, ready to perpetrate any murder they were paid for committing, and who had never been injured by the person they deprived of life. In other countries, the carcasses of such wretches would have been shunned; contact with them would have been considered a pollution; and assisting at their obsequies as little better than participation in their crimes: but not so in "virtuous and moral Tipperary," the vineyard consigned to the spiritual labours of the venerable and apostolic Laffan. "The bodies of the *unfortunate* men," says *The Vindicator*, "were conveyed in funeral procession to the homes of their respective relatives.... They were laid out and waked as if they had not been strangled by the rope of the hangman. *They were surrounded by those who mourned for them with as keen a sympathy, and as tender an affection, as if they had died each on his humble pallet of straw*; hundreds flocked around the corpse-houses from all directions; and we shall leave others to conjecture whether the sight was calculated, in the present alleged state of the country, by the advocates of a Coercion Bill, to induce tranquillity, or to rake up the fires of desperation and revenge. They had funerals. The funeral

of Fogarty took place on Saturday. It was attended, we understand, by some thousands, who followed his remains to the grave *in crowds more numerous, with feelings more interested, than if he had otherwise gone out of the world....* Hayes and Rice were buried on Sunday. *There were forty cars, a strong body of equestrians,* and a vast crowd of pedestrians accompanying the former. The latter was attended by one of the largest funeral processions remembered for a long time in the district through which the remains were conveyed." What a lesson are we taught by those revelations! "Funeral honours paid to convicted murderers!" and the demoralisation so wide-spread, as to induce the attendance of even the more respectable class of farmers, whose presence was attested by the "forty jaunting cars and the large body of equestrians," who swelled the ranks of the admirers of assassination. Some say that the Irish criminals are few, others, that the mass of the population is tainted with the fatal leprosy: in either case the conduct of government should be to repress crime with a strong hand, and with a celerity which would strike terror into the hearts of the malefactors. The government have to deal with a revolutionary priesthood and a demoralised people, and it is not by such paltry expedients as their present measures, that the one can be checked in their career, or the other awed into submission; and to enact remedial measures while all laws are openly set at defiance, would be but a ridiculous farce. The ministry must be aware, although they have dishonestly concealed the fact, that the same spirit of outrage which is evinced by acts of assassination in the five counties they have alluded to, *is prevalent in all the other midland and western counties*, and is rapidly extending itself towards the north. Neither are those outrages now perpetrated solely against those who transgress the agrarian code in respect to the management of their estates. Assassination is found a safe, ready, and efficient remedy for every violation of the popular will. Mr Baily was shot, because, as chairman of a board of guardians, he refused indiscriminate out-door relief. Mr Hassard, because he prosecuted a steward for theft; a widow had her brains beaten out because she was about to marry another husband; and a man named Burns was murdered at Belturbet, merely because he thought fit to change his religion. There is a spirit of anarchy abroad, which nothing but strong and decisive measures can arrest, and which nothing short of martial law will enable the executive to cope with.

Our space will not permit us to comment as fully as the importance of the subject would require, on the other remedial measures suggested for the benefit of Ireland by men who argue that, because such would be beneficial in other countries, therefore they must be well adapted for that apparently incomprehensible island. We will merely say that it is an error to suppose that the waste lands of Ireland can be cultivated with success by the state, or with any degree of advantage as regards the location of the superabundant population. The expense of their reclamation would amount to much more than the price at which the very best ground can be purchased; and it would be manifestly absurd to undertake, at the public expense, such an immense and profitless work, while three-fourths of the richest soils in the country are in a state of semi-cultivation; and where, by judicious advances, which are sure to be repaid, an equal amount of employment may be afforded by the landlords without any loss to the state. Neither do we conceive that the location of the peasantry on properties under the control of the government is at all judicious; experience teaches us the reverse. On the estates of the Crown in Roscommon, agrarian outrages in that county had their origin. From mismanagement or other causes which we have not heard explained, the tenants on the Crown lands were permitted to run many years in arrear; and now they refuse to pay any rents whatsoever, on the ludicrous pretence "That Queen Victoria never took out administration to King William the Fourth!" And thus they have been allowed, by their successful resistance to the Crown, to encourage others in a similar course of conduct towards her Majesty's lieges, who are, in their eyes, but the subordinate owners of the soil.

The difficulty of dealing with the subject of emigration, when the task is undertaken by men who are not practically acquainted with the state of Ireland, and the feelings and habits of the Irish people, is made manifest by the speeches delivered on the scheme in parliament. Mr Hawes, when the question was brought forward last session, refused to sanction any government system, on the grounds that voluntary emigration was proceeding at too rapid a rate already; and that it would be much better to keep the people at home. Now, while we advocate a measure which would remove a certain portion of the population, who can have no permanent occupation afforded them on account of the numbers congregated in particular localities, and who consequently must become a charge upon the resources of the country, we quite agree with the under-secretary of the

colonies, that nothing can be more lamentable or more ruinous to the prosperity of Ireland than the removal of those persons who emigrate at their own expense. But, paradoxical as it may appear to the honourable gentleman, the system which we consider absolutely necessary, would act as a most effectual check to the abandonment of their country by the industrious and comparatively wealthy, which he so justly laments. Those industrious and well-conducted men ought to be the "thews and sinews" of the land; but they are driven from their homes by the insecurity of life and property in their wretched country. They cannot extend their operations in proportion as they acquire wealth. They dare not venture to enlarge the size of their farms, although they see the land uncultivated and lying waste around them. Death is the penalty they are certain to pay, if they take the ground from which others have been removed, no matter what may have been the cause of their expulsion. They therefore realise their property, and carry their capital and their industry to other countries, where they can freely use the one, and fearlessly enjoy the fruits of the other; while the idle and profligate ruffian who is the means of driving them from the land of their birth, revels in his crimes with impunity, and derives a legal support from the community which he oppresses—he either cannot, or he will not emigrate. Now, it is clear, that if a system were adopted by which men who become a charge on the public should have the option of leaving the country at the public expense—of course we mean exclusively at the expense of Ireland—and that at the same time the laws were so vigorously administered, as to prevent the possibility of their earning a livelihood by the commission of crime at home; the country would get rid of the worst and most irreclaimable culprits, and society be relieved from the crimes and the oppressions which they practise; industry would be protected, and prosperity would advance. Lord Clarendon may seek, by his well-intended advice and his remonstrances, to stay the march of crime; but his efforts will only evince his ignorance of the habits and prejudices of the people he has to govern. He may subscribe his money to communicate agricultural knowledge to those, whose poverty and misery lead him to suppose that they only require instruction to become industrious and happy; but he should know, that those persons to whom he so praiseworthily wishes to impart information, *are in fact the best skilled agriculturists the country can produce*. They compose the migratory hordes who annually proceed to Scotland and England. There is not a man amongst them above sixteen

years of age, who has not practical experience in the very best systems pursued in those countries to which they resort; and we would "wager a ducat," that scores of boys may be found in Ennis and in Galway, who could instruct his paid lecturers in the performance of the nicest operations of agriculture. The Irish Viceroy feelingly deplored the disappointment of his hopes with regard to the Irish Fisheries, when giving audience to the Clare deputation. "When I came to this country," said his lordship, "I indulged in the hope of promoting the prosperity of the Irish Fisheries; but I have been grievously disappointed. When the nets and gear were redeemed from the pawn-office, the men would not use them, or go to sea, unless they were fed; and when they were fed, they caught no fish." The same spirit which actuated the fisherman in this instance, actuates the agricultural peasant. He will not till his land, not because he is ignorant of the best method of doing so with success, but because he prefers idleness to industry, and gratuitous support to honest independence.

We respect Lord Clarendon's talents, and admire the honesty with which he has set about discharging the high and arduous duties of his office; but we tell him that the pacification of Ireland can never be effected by the powers now at his disposal, nor yet by the emasculated measures proposed by the ministry for the adoption of parliament. Neither need he calculate on any assistance in his efforts from the diplomatic devices of her Majesty's advisers. Lord Minto may earwig the Pope; but the Pope's influence is set at defiance by the Irish bishops, when it happens not to be exerted in the furtherance of their own particular views. The present pontiff's predecessor issued his commands, that both priests and prelates should abstain from agitation, and avoid those political festivals where some of their body had covered themselves with such well-merited disgrace; but his encyclical letter was treated as so much waste paper, and had only the effect of increasing the custom it was intended to abolish. The Viceroy can have no hope or expect no succour but from the efficiency of the laws, and their uncompromising administration. Military tribunals must be substituted for civil ones. No juror in the present state of the country will hazard his personal safety by the due discharge of his duties, when he sees no chance of obtaining adequate protection. Summary justice must supersede the ordinary law's delay; immediate punishment must follow upon conviction; agitation of every kind must be suppressed; and the disturbers of the public peace must be dragged forth and made amenable for their crimes, whether

they be found beneath the smock frock of the peasant, or the cassock of the priest.



BLACKWOOD AND COPYRIGHT IN AMERICA.

In connexion with an article in this Number from our able American contributor, it may be interesting to the readers of *Maga* to be informed of her precise position at present on the other side of the Atlantic, where she is figuring as the champion of the rights of authors, and the leader of an important revolution in literature.

Whether we consider the claims of literary men to the property of their works as founded on inherent right, to be controlled only by the superior good of the community,—or as supported by a mixture of moral and equitable considerations, having reference to the reward and encouragement of learning and talent, it is undeniable that, without some protection of this kind, the fairer and better productions of literature will fail, and their place be occupied by a rank and unwholesome growth, offensive to the senses and noxious to social life. Even the selfish and short-sighted policy of our American brethren, which, in extending the privilege of copyright to their own countrymen, has denied it to foreigners, is found to operate in the most prejudicial manner upon their native literature; as no American publisher is likely to pay its due price for any composition of domestic genius, when he can please his customers and fill his pocket by reprinting, without any remuneration to the author, the most successful productions of the British press. The repression of such a system of piracy in America, would benefit alike the foreigner, whose copyright is thus pilfered, and the American man of letters whose talent is borne down by so disadvantageous a competition.

The publishers of the Magazine had for many years been aware that a cheap American reprint of the work was in regular circulation to a very large extent and they were naturally desirous to put an end to such an injustice.

[\[56\]](#) While they were turning their attention to the subject, they received in the early part of the past year, a communication from an American gentleman, suggesting as an effectual means of redress, the insertion in the Magazine, from time to time, of an article from a native or naturalised citizen of the United States, who should establish a copyright in his own

person, or that of an assignee, and thus either protect the whole work or compel the publishers of the pirated edition to reprint it in an imperfect form, such as would materially check their success, and, in either way, break up the system.

The tone and talent of this communication seemed to the publishers to recommend their correspondent as himself well qualified to lead the way in this most righteous enterprise, and the result was, the appearance in the October number of the article "Maga in America," which has been highly relished on both sides of the Atlantic. Of this article a proof was despatched to Mr Jay, a solicitor of eminence in New York, who, with the utmost promptitude, registered the copyright in his own name, and, presenting himself to Messrs Scott, the reprinters, inquired if they were about to publish the Magazine, as usual, that month, as he thought it right to inform them that, by so doing, they would be placed in a delicate position. On hearing an explanation, Messrs Scott were considerably taken aback, and, although unwilling to acknowledge that the game was up, they seemed to have a painful consciousness that such was the case. The negotiation terminated in the meantime, in their agreeing, after various letters, and not a little conversation, to pay a sum as copyright, before they issued the October number, and a like amount for each succeeding number, until a further arrangement were made. It would have been very easy for the proprietors to have brought the reprinters under heavy responsibilities, by giving them no hint of their movements, and allowing the October number to be published as usual, when Messrs Scott would have become liable to a severe penalty for every copy sold. This was not done, as no blame is attached personally to Messrs Scott, who have merely acted under a bad system, in which any one publisher might think himself free to seize all advantage which was open to all.

This movement has been most cordially welcomed by the American press, and it will be a source of great pleasure and pride to the Messrs Blackwood, if the step they have taken should in any degree, however humble, assist in establishing, an international copyright, which alone can effectually check a system of reprinting which is ruinous to American authors, and only very moderately profitable to American publishers, who are compelled, by the fear of rival reprints, to sell at a price which leaves a narrow margin of profit, even with no expense but paper and print. They are also in their turn

afflicted with a host of smaller weekly pirates, who select the best, or at least the most attractive articles from all the periodicals, and serve them up in a cheap form, not without seasoning sometimes of a very questionable character both in taste and in morals.

The more oporose contemporaries of *Maga* will learn with some surprise—whether pleasant or painful, it would be presumptuous to say—that the buoyancy of her contents seems to be used to float off a few hundred copies of their ponderous productions, which might otherwise be stranded without help or hope. It appears that subscribers are obtained to no less than four quarterly publications, by the inducement that, on such condition, they will receive *Blackwood* at two-thirds of the price.

Edinburgh, January 1, 1848.

Printed by William Blackwood and Sons, Edinburgh.

FOOTNOTES:

[1] *Wealth of Nations*, vol. ii. b. iv. c. ii. p. 195.

[2] Table showing the British and Foreign tonnage with Sweden, Norway, Denmark and Prussia since the Reciprocity treaties with these powers in 1821.

	SWEDEN.		NORWAY.		DENMARK.		PRUSSIA.	
	British Tonnage	Foreign Tonnage	British Tonnage	Foreign Tonnage	British Tonnage	Foreign Tonnage	British Tonnage	Foreign Tonnage
1821	23,005	8,508	13,855	61,342	5,312	3,969	79,590	37,720
1822	20,799	13,692	13,377	87,974	7,096	3,910	102,847	58,270
1823	20,986	22,529	13,122	117,015	4,413	4,795	81,202	56,013
1824	17,074	40,092	11,419	135,272	6,738	23,689	94,664	151,621
1825	15,906	53,141	14,825	157,910	15,158	50,943	189,214	182,752
1826	11,829	16,939	15,603	90,726	22,000	56,544	119,060	120,589
1837	7,608	42,602	1,035	88,004	5,357	55,961	67,566	145,742
1838	10,425	38,991	1,364	110,817	3,466	57,554	86,734	175,643
1839	8,359	49,270	2,582	109,228	5,535	106,960	111,470	229,208
1840	11,933	53,337	3,166	114,241	6,327	103,067	112,709	237,984
1841	13,170	46,795	977	113,025	3,368	83,009	88,198	210,254
1842	15,296	37,218	1,385	98,979	5,499	59,837	87,202	145,499

—PORTER'S *Parl. Tables*, vols. i. to xii., p. 50 each vol.

[3] Dumas, viii. 112; Mackenzie's *St Domingo*, i. 312.

[4] "Of the progressive decline in the powers of production of the West India possessions generally, some idea may be formed from what has been observed in

Jamaica; for though that island labours under some peculiar disadvantages, that fact merely increases the force of the argument which is derived from its past experience:—

Average of the five years ending 1807—last of the slave trade,	£3,852,624
Average of the five years ending 1815—date of the Registry Act,	3,588,903
Average of the five years ending 1823—date of Canning's Resolution,	3,192,637
Average of the five years ending 1833—last five of slavery,	2,791,478
Average of the five years ending 1843—first five of freedom,	1,213,284

"The House of Assembly, from whose memorial to the government (June 1847) we borrow these facts, makes the following remarks on this instructive table:—

"Up to 1807 the exports of Jamaica progressively rose as cultivation was extended. From that date they have been gradually sinking; but we more especially entreat attention to the evidence here adduced of the effects of emancipation, which, in ten years, reduced the annual value of the three principal staples from £2,791,478 to £1,213,284, being in the proportion of seven to sixteen, or equal, at five per cent., to an investment of about thirty-two millions of property annihilated. We believe the history of the world would be in vain searched for any parallel case of oppression perpetrated by a civilised government upon any section of its own subjects."

[5] EXPORTS TO BRITISH WEST INDIA COLONIES:—

1827,	£3,583,222	1840,	3,574,970
1828,	3,289,704	1841,	2,504,004
1829,	3,612,085	1842,	2,591,425

—PORTER'S *Parl. Tables*, xii, 114.

[6] Buxton on the *Slave Trade*, 172.

[7] For a few days during the panic consequent on the Mutiny at the Nore, the 3 per cents were at 45, but they soon rose and ranged from 55 to 58. The interest of money never exceeded 5 *per cent.*, and indeed it could not, as the usury laws were then in operation. The issue of one pound notes in sufficient numbers by the Bank of England, after February 1797, soon relieved the distress, extinguished the panic, and brought us triumphantly through the war. The following are the rates of interest and amount of bullion in the Bank of England for thirty years past, which shows how little low interest has to do with the plentiful stores of the precious metals:—

	Bullion.	Rate of Discount.
1815.—28th February	£2,037,000	Five per cent.
1816.—29th February	4,641,000	Five per cent.
1820.—29th February	4,911,000	Five per cent.
1826.—28th February	2,460,000	Five per cent.
1832.—29th February	5,293,000	Four per cent.
1837.—28th February	4,077,000	Five per cent.
1839.—October	2,522,000	Six per cent.
1840.—25th February	4,311,000	Five per cent.

1847.—13th November 9,258,520 Eight per cent. *min.*

The rate of eight per cent. has not been charged by the Bank of England before for upwards of a century and a quarter.

[8] Report of the Glasgow Poor Inspector, 28th November, 1847.

[9] Mr Newdegate's Speech in Parliament, December 2, 1847.

[10]

TO OCTOBER 10 IN EACH YEAR.	1845.	1846.	1847.
Machinery,	£644,839	£897,442	£942,533
Iron and steel,	2,854,048	3,374,335	4,096,367
	<u>£3,498,887</u>	<u>£4,271,777</u>	<u>£5,038,900</u>

[11] AGRICULTURAL PRODUCE IMPORTED FROM JANUARY 5 TO OCTOBER 10.

	1845.	1846.	1847.
Live animals,	19,593	85,542	172,355
Provisions, beef, pork, &c. cwts.,	109,550	206,455	403,877
Butter, cwts.,	189,056	177,165	243,140
Cheese, do.,	183,891	216,191	243,601
Grain in quarters,	1,336,739	2,635,218	7,905,419
Grain in flour and meal, cwts.,	394,908	2,631,341	7,900,880

The grain imported in nine months measured in quarters will stand thus:—

In quarters,	7,905,419
In flour and meal, cwts.,	<u>2,650,263</u>
In nine months, quarters,	10,555,682

The greatest import in any one year before was in 1841, when it was 4,772,641 quarters.

[12] The sum invested in railways from 1841 to 1845, was £154,716,937; of which £114,513,035 was subscribed capital, and £46,203,902 authorised to be borrowed. See *Parl. Returns*, Nos. 159, 1844; and 637, 1845. Since that time it has at least risen to £200,000,000, of which *half* may be considered productive.

[13] See *Parl. Debates*, xxviii. 66, 67.

[14]

Viz. England,	£85,000,000
Scotland, about	5,000,000
Ireland,	<u>16,000,000</u>
	£105,000,000

[15] *Lords' Report on Real Property*, pp. 8, 9. In our last Number we stated the amount of heritable property at £63,000,000, from a desire to be within rather than beyond the truth. But the latter figure was taken from the *Poors' Rate* return, which, as the *Lords' Report* justly states, is always below the truth; and their own report of £85,000,000 is taken from the rating for the property tax, founded on the returns by the occupants.—See *Lords' Report on Real Property*, p. ix.

[16] RATE OF DISCOUNT OF FIRST-CLASS BILLS AT THE UNDERMENTIONED PERIODS.

	Jan.	Feb.	March.	April.	May.	June.	July.	Aug.	Sept.	Oct.	Nov.	Dec.
1824—	3½	3½	3½	3½	3½	3½	3½	3½	3½	3½	3½	3½
1825—	3½	3½	3½	3½	3½	4	4	4	4	4	4½	4½
1826—	5	5	5	5	5	4½	4½	4	4	4	4	4
1827—	4	3½	3½	3½	3¼	3	3	3	3	3	3	3
1828—	3	3	3	3	3	3	3	3	3	3	3	3½
1829—	4	3½	3½	4	3½	3½	3½	3	3	3	3	3
1830—	3	3	2¾	2¾	2½	2½	2½	2½	2½	2¾	3	4
1831—	3¼	3	3½	3½	4	4	4	3½	3½	4	4	4
1832—	4	3½	3¼	3¼	3¼	3¼	3	3	3	2¾	2¾	2¾
1833—	2¾	2½	2¼	2¼	2½	2½	2½	2½	3	3	3½	3½
1834—	3½	3	2¾	3	3¼	3¼	3¼	3¼	4	3¾	3¾	3¾
1835—	3¾	3¼	3½	3¾	3¾	4	4	3½	3¾	3¾	3¾	3¾
1836—	3¾	3¾	3½	3¼	3¼	4	4	4½	5	5	5½	5½
1837—	5½	5½	5½	5½	4½	4½	4½	4	3½	3½	3¼	3½
1838—	3½	3	3	2¾	2½	2¾	3	2¾	3	3	3¼	3½
1839—	3¾	3¾	3¾	3¾	4	5	5½	6	6½	6½	6½	6½
1840—	6	4¾	4¾	4¾	4¼	4¾	4½	4½	4¾	5	6	5¾
1841—	5½	5	5	4½	4½	5	4½	4½	4¾	5	5½	5
1842—	4¾	4½	3¾	3¾	3¼	3½	3¼	3	2½	2¾	2½	2½
1843—	2½	2¼	2	2	2	2¼	2¼	2	2	2¼	2	2½
1844—	2¼	2	2	2	1¾	2	2	1¾	2	—	—	—

[17] The following is the statement of the Chancellor of the Exchequer on the sums authorised by government to be expended, and actually expended, in each of the undermentioned years:—

Authorised Expenditure.

Year.	
1840	£4,000,000
1841	3,500,000
1842	6,000,000
1843	4,500,000
1844	18,000,000
1845	59,000,000
1846	124,500,000
1847	38,300,000

These are the sums authorised to be expended by the acts passed in each of these years. The following table shows, as nearly as can be estimated, the sums actually expended:—

Actual Expenditure.

Year.	
1841	£1,470,000
1842	2,980,000

1843	4,435,000
1844	6,105,000
1845, first six months	3,510,000
1845, second six months	10,625,000
1846, first six months	9,815,000
1846, second six months	26,670,000
1847, first six months	25,770,000

Supposing the actual expenditure, under existing railway acts, to have proceeded at the same ratio for the next three years the following would have been the results:—

Estimated Expenditure.	
Year.	
1847	£64,000,000
1848	70,000,000
1849	47,000,000
1850	10,000,000

[18] That this statement is not exaggerated will appear evident from the following returns:—

	1845.	1847.
Corn, flour, meal, live animals, &c., imported to October 10,	£4,410,091	£31,241,766

This of itself, coupled with the simultaneous contraction of the currency and fall of the exports, will explain the whole catastrophe.

[19] The following table of the prodigious advance in the importation of two articles alone, tea and sugar, will show how rapidly they have increased in the three last years, at the very time that our exports were diminishing:—

	1845.	1846.	1847.
Sugar, cwt.	4,413,969	4,469,772	6,510,693
Tea, lb.	36,825,461	41,432,794	44,912,880
	1846 to 1845.	1847 to 1845.	
Sugar, cwt.	55.803 incr.	2,096,724 incr.	£4,193,448
Tea, lb.	4,607,278 incr.	8,087,419 incr.	803,741
			<u>£4,997,189</u>

[20]—Mr Newdegate's Speech, *Morning Post*, December 2, 1847.

[21] Parliamentary Paper, 30th July, 1843.

[22] Viz. in round numbers:—

England,	£14,000,000
Country Banks,	8,000,000
Ireland,	6,400,000
Scotland,	3,300,000
	<u>£31,700,000</u>

[23] *Mémoires de Fléchier sur les Grands-Jours tenus à Clermont, en 1665-66*: publiés par B. Gonod, Bibliothécaire de la Ville de Clermont. Paris 1844.

[24] These letters were addressed to a young Norman Lady, Mademoiselle Anne de Lavigne, who wrote sonnets in the Scudéry style, and with whom Fléchier kept up a gallant and high-flown correspondence in mingled prose and verse. As far as can be ascertained the *liaison* was an innocent one; it is quite certain that it caused no scandal at the time. Most of the letters bear date three or four years subsequently to the *Grands-Jours*.

[25] *Voyage en Auvergne, and Résumé de l'Histoire d'Auvergne*.

[26] From the end of the fifteenth century there were no serfs in Auvergne, as is shown by the municipal law of 1510; "*Toutes personnes estans et demeurans au dict pays sont francs et de franche condition*." All persons being and dwelling in the said country are free and of free condition. Nevertheless, there were still "*héritaiges tenus à condition de mainmorte*."—(*Coutume, titre xxvii. art. 1.*) But on the confines of Auvergne, in the Pays de Combrailles, there were persons "*de serve condition, de mainmorte et de suyte*;" *ibid. art. 2*, which means that the servitude of those persons was attached to their flesh and bone; that it followed them every where, even when they abandoned their inheritance and fled the country. One is glad to hear Fléchier and Talon stigmatising, in the names of religion and humanity, those iniquitous rights, which subsisted more than a century after them. *Personal* servitude was abolished only by an edict of August 1779; for which Louis XVI. and his minister Necker are to be thanked. It took ten more years and the revolution of 1789 to do away with *real* servitude, which was general in France.—*Mémoires*, p. 112.

[27] This included Upper and Lower Auvergne, the Bourbonnais, the Nivernais, the Forez, the Beaujolais, the Lyonnais, the Pays de Combrailles, Berry and the Upper and Lower Marche.—*Vide Mémoires*, Introduction, xvi.

[28]

In plain good French,
Each gentleman
From morn till night
Doth swell his rents,
And multiply his gain.
Observes no faith,
Takes field and hay,
The farmer's grass and grain;
Then plays the steward
With his pease and pork,
And cudgels all at leisure;
And like a king, with crown on head,
Proclaims it his good pleasure.

[29] An anecdote told of Louis XIII. and Mademoiselle d'Hutefort.

[30] A species of thread lace, in which there was formerly a great trade in Upper Auvergne. It is now scarcely used except by peasant women, and its manufacture is almost abandoned.

[31] Ranke, *Fürsten und Völker*, vol. i. p. 170.

[32] Uchali was a famous renegade, a Calabrian by birth, who, from being a slave of the Grand Seignior's, became King of Argel.—See Brantôme, *Hommes Illustres*, vol. i. p. 286.

[33] *Documentos ineditos para la Historia de España*, vol. iii. p. 224.

[34] *Memorial de Antonio Perez del Hecho de su Caso*, p. 300.

[35] DOCUMENTOS INEDITOS PARA LA HISTORIA DE ESPAÑA, vol. iii. p. 178.

[36] Brantôme, HOMMES ILLUSTRES.

[37] DOCUMENTOS INEDITOS PARA LA HISTORIA DE ESPAÑA, vol. iii. p. 182.

[38] Ranke, FÜRSTEN UND VÖLKER VON SUD EUROPA, vol. i. p. 178.

[39] *Memorial de Antonio Perez del Hecho de su Caso*, pp. 304-308.

[40] Ibid.

[41] Ibid.

[42] *Antonio Perez et Philipe II.*, par Mons. Mignet, 1 vol. 3d ed.

[43] *Documentos ineditos para la Historia de España*, vol. vii. p. 247-257.

[44] *Documentos ineditos para la Historia de España*, vol. vii. p. 265.

[45] "Look there, look at the big gentleman on the little horse."

[46] "Gone, gone."

[47] One of the superficial peculiarities of American magazines is that the names of *all* the contributors are generally paraded conspicuously on the cover, very few seeking even the disguise of a pseudonym. The number of "most remarkable" men and women who thus display themselves in print is surprising.

[48] This periodical is particularly unfortunate in its predictions. Last year one of them was absolutely falsified *before* its appearance. The *Democratic* introduced a biographical sketch of an eminent politician, with the announcement that "before another number was issued, the people of his State would have re-elected him to the highest office in their gift." Accident delayed the publication of this prophecy for a short time, and it appeared the very day after Mr —— had been *defeated* by a large majority. Thereupon some editors on the other side stated that the *Democratic Review* was to be discontinued, "as we learn from its own columns," which may have been a good joke or not, according to tastes. Certainly the editor of the *Democratic* did *his* best to make it so, by publishing a serious and angry contradiction of the report.

[49] We have heard this *argument* again and again in America, generally in reference to the seediest of verses; and there could not be a greater proof of the vagueness and erroneousness of American public opinion as to the nature and object of criticism, and the qualifications for exercising it.

[50] As a general rule, that is: we in America have lately met with some striking exceptions.

[51] Even then, the price is what in Great Britain would be considered small. The *American Review* pays two dollars (8s. 8d.) a page, and some of the other

periodicals from a dollar to a dollar and a half.

[52] It is hardly necessary to expatiate on the absurdity of this fallacy. Every man who reads any thing better than newspapers, finds frequent use for his classics in the way of explaining quotations, allusions &c., while nothing can be imagined more utterly useless in every-day life than Conic Sections and Differential Calculus, to any man not professionally scientific. But because arithmetic is the introductory branch of mathematics, and also the foundation of book-keeping, it is thought that working a boy at mathematics will make him a good man of business.

[53] On one occasion, when a converted priest was lecturing against Romanism, the *Courier* and *Enquirer* recommended the intervention of that notorious popular potentate *Judge Lynch*, who *intervened accordingly*.

[54] These attempts at undue influence and direct intimidation are not confined to the natives; foreigners are very quick at catching them. This very winter an Italian musician endeavoured to expel one of the editors of the *Courier* and *Enquirer* from his concert-room, because that paper had not seen fit to praise him so much as others did, or as he himself wished and expected.

[55] "The Mary Ann Greens."

[56] It may be worth while to insert here a copy of the American advertisement of the April Number, in which a denunciation of American piracy, which had been inserted in an article on the "Model Republic," is actually put forward as a *puff* of the reprint.

Blackwood's Magazine

FOR APRIL, will be published TO-MORROW MORNING.

CONTENTS.

- I. Cromwell.
- II. Lays and Legends of the Thames—Part III.
- III. Letters on the Truths contained in Popular Superstitions, No. 2—Vampirism. No. 3—Spirits, Goblins, Ghosts.
- IV. A New Sentimental Journey.
- V. The Fighting Eighty-Eighth.
- VI. Lord Sidmouth's Life and Time.
- VII. How they manage Matters in the Model Republic.
- VIII. Horæ Catalinæ—No. 2.
- IX. Lessons from the Famine.

Extract from the article on the "Model Republic":—

"When these malignant pages arrive in New York, every inhabitant of that good city will abuse us heartily, except our publisher. But great will be the joy of that furacious individual, as he speculates in secret on the increased demand of his agonized public. Immediately he will put forth an advertisement, notifying the men of 'Gotham' that he has on board a fresh sample of British Insolence, and hinting that, although he knows they care nothing about such things, the forthcoming piracy of *Maga* will be on the most extensive scale."

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Transcribers Notes:

Punctuation and spelling inaccuracies were silently corrected.

Archaic and variable spelling has been preserved.

Variations in hyphenation and compound words have been preserved.

On page 22, --Mr Newdegate's Speech, has been given the value "Footnote 19:", omitted from the text.

On page 107 the transcriber could not construe the word (Nug ee?). A search for Mr Brummell's tailor or another name for an outfitter proved fruitless.

*** END OF THE PROJECT GUTENBERG EBOOK BLACKWOOD'S
EDINBURGH MAGAZINE, VOLUME 63, NO. 387, JANUARY, 1848

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